

*This document is published by the Registry of Motor Vehicles (RMV), Commonwealth of Massachusetts, for the benefit of residents and visitors alike. While it contains a great deal of information about RMV policies and state laws, it is important to note that this is **not** a legal document. Every effort is made to present the most accurate, error free, and up-to-date information. However, RMV policies and fees change from time to time, as do laws governing motor vehicles.*

The RMV will make every effort to post information about changes to the fees, policies, procedures or laws referenced in this Driver's Manual that may affect your ability to obtain a Learner's Permit, Driver's License or Identification Card. Relevant changes will be posted on the RMV's website at www.mass.gov/rmv. If you do not have access to a computer you may call the RMV's Phone Center at 617-351-4500 (from the 339/617/781/857 area codes) or 800-858-3926 (from all other MA area codes).

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Introduction

The Massachusetts Registry of Motor Vehicles (RMV) has changed a great deal since its inception in 1903. There are now nearly 5 million licensed drivers in our state. And today, more than ever, the Agency is committed to increasing efficiency and improving customer satisfaction through technology and innovative initiatives.

Enhanced computer technology continues to strongly impact customer service. Through the RMV's Web site (www.mass.gov/rmv), you can conduct such transactions as renewing a registration, ordering a special plate, paying a traffic citation ordering a duplicate license/ID, or changing your address. You can also download forms, view this *Driver's Manual*, and learn the latest "rules of the road." Over the Internet, the RMV also invites you to ask questions and offer suggestions for improving RMV services.

To encourage you to avoid unnecessary trips to one of the RMV's branches, the Agency wants you to process some transactions over the phone; you can replace a lost license, pay a citation, order a driving record, schedule a road test, and renew a registration. By mail, you can conduct some title and registration transactions. Through the Electronic Vehicle Registration program, participating automobile dealers and insurance agents can issue new plates and perform registration transfers and renewals.

The RMV's License Express offices, which are in malls across the state, are convenient places for you to renew your driver's license and submit change-of-address forms. The RMV will continue to explore other ways to improve its relationship with you.

How to Use This Manual

For *new drivers*, this booklet is a useful tool for understanding the licensing process and for studying the rules of the road. For *experienced drivers*, this booklet offers more than the procedure for obtaining a learner's permit. It provides valuable information on RMV policies, changes to driving laws, and safe driving tips. Keep this manual in your vehicle and refer to it whenever you have a question.

Obtaining Your License

If you are a Massachusetts resident, you must have a valid driver's license to operate a motor vehicle on any public road, highway, or other way permitting access to the public.

Through the Registry of Motor Vehicles (RMV), the Commonwealth of Massachusetts issues five license classes with various privileges and restrictions. Class A, B, and C licenses, which are known as commercial driver's licenses (CDLs), allow you to operate large vehicles, like trucks and buses. The Class D license, which is most common, is for passenger vehicles, vans, and small trucks. The Class M license allows you to operate motorcycles.

CHAPTER 1

License Descriptions and Classifications

This chapter contains licensing rules and procedures for **Class D** (passenger) and **Class M** (motorcycle drivers). The table below summarizes Massachusetts license types.

A Double/Triple Trailer endorsement can only be added to a Class A license.

Endorsements for Class A, B, and C licenses include Combination, Doubles and Triples, Tank Vehicles, HAZMAT, Tank Vehicles with HAZMAT, and Passenger Transport Vehicles.

Unless otherwise exempted by Federal Regulations, any operator of a Commercial Motor Vehicle (CMV) weighing more than 10,000 lbs., must have in his or her possession a valid U.S. Department of Transportation Medical Card or a valid Medical Waiver Card issued by the Massachusetts Registry of Motor Vehicle.

Massachusetts Driver's Licenses	
License Class	Vehicles Permitted
A	Any combination of vehicles with a gross combination weight rating (GCWR) of 26,001 lbs. or more, provided the gross vehicle weight rating (GVWR) of the vehicle(s) being towed is over 10,000 lbs., except a school bus. With a Class A license and the appropriate endorsements, you may operate any vehicle covered by Classes B and C.
B	Any single vehicle with a GVWR of 26,001 lbs. or more or any such vehicle towing another vehicle not over 10,000 lbs. GVWR, except a school bus. With a Class B license and the appropriate endorsements, you may operate any vehicle covered by Class C.
C	Any single vehicle that is under 26,001 lbs. GVWR, or any such vehicle towing a vehicle not over 10,000 lbs. GVWR, or a vehicle placarded for hazardous materials or designated to transport 16 or more people, including the operator, except a school bus.
D	Any single vehicle or combination, except a semi-trailer unit, truck-trailer combination, tractor, or truck with a registered gross weight over 26,000 lbs., bus or school bus.
	A motorcycle or any motor vehicle with a seat or saddle for the rider that is designed to travel with no more than three wheels contacting the ground.

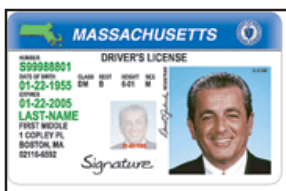
A Massachusetts driver's license is valid for a maximum of 5 years and expire on your birthday. However, your 1st license will expire on your 5th birthday following the date of issue. In the Commonwealth, your credit-card-style driver's license is considered a primary form of identification ("ID"), showing proof of identity,

residence, age, and signature. For nondrivers who would like similar identification, the RMV issues **Massachusetts IDs** and **Liquor IDs** (see *Appendix B* for more information).

The Photo-Image License/ID

In addition to listing your personal information, a license or an ID issued to you by the RMV features an image of your photo and signature, which is stored on the RMV's central computer. This photo-image technology not only helps make your license or ID tamper resistant, it allows the RMV to issue replacements quickly.

You must obtain a Learner's Permit before you can apply for any license. (This manual specifically outlines the procedures for obtaining a Class D or a Class M license.)



Endorsements and Restrictions

Endorsements are additional driving privileges that can be attached to your basic license class. Most endorsements concern commercial vehicles. For example, you may add a HAZMAT endorsement to a Class C license.

Restrictions are limitations placed on your driving privileges. Refer to the Driving Restrictions section for more information.

For more information on commercial licenses (CDL), refer to the *Massachusetts Commercial Driver's License Manual*, which is available at any RMV Branch.

School Pupil Transport

(8 or fewer passengers)

If you transport school-aged children, you must have a separate license or special endorsement. A pamphlet on school pupil transport license information is available at RMV Branches.

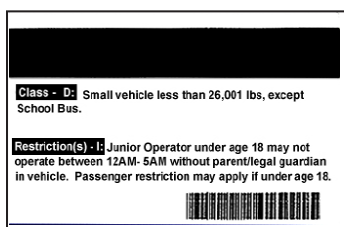
School Bus

(9 or more passengers)

For information on school bus driver's licenses, contact the Department of Telecommunications and Energy (DTE) at 617-305-3559.

Driving Restrictions

Your driver's license may be issued with various restrictions. These restrictions are indicated by code letters on the front and back of your license.



The back of your driver's license lists your license class and any endorsements or restrictions.

If you develop a medical condition that affects your ability to drive, you *must* report the condition to the RMV. Please call the Medical Affairs Bureau (MAB) at (617) 351-9222.

Medical Restrictions

The RMV's Medical Affairs Bureau (MAB), which reviews license applications listing physical or mental conditions that may affect a driver's abilities, may issue driving restrictions related to your current medical condition. For example, if you pass the driver's license vision test by wearing glasses or contact lenses, your driver's license will be issued with a "Corrective Lenses" restriction (code letter **B**) and you must wear your corrective lenses when you drive. If you need a mechanical aid or prosthetic device (adaptive equipment) to operate a motor vehicle, the Medical Affairs Bureau will issue your license with restriction(s). The Medical Affairs Bureau considers license applications on a case-by-case basis, and you may be required to provide a physician's letter for medical clearances or special driving-related equipment.

If the Medical Affairs Bureau issues you a separate Restriction Card, your license will display the restriction code letter **J**. With this restriction, you must carry your card *and* your license when you drive.

Junior Operator Restrictions

The Junior Operator restriction (code letter **I**) is added to the licenses of all operators under age 18. A licensed Massachusetts driver between ages 16½ and 18 may *not* drive a motor vehicle between 12:00 a.m. and 5:00 a.m. unless accompanied by a parent or legal guardian.

Operating a Moped

Under Massachusetts law, mopeds fall into the category of “motorized bicycles” (with or without pedals) and are therefore regulated by driver’s license rules. You must have a valid driver’s license or learner’s permit to operate a moped. Mopeds must have automatic transmissions and cylinder capacities of no more than 50 cubic centimeters. In addition, mopeds must meet all federal safety standards and have maximum speeds of no more than 30 mph. The following limitations apply:

- You may *not* drive at a speed greater than 25 mph.
- You may *not* ride on state highways or limited-access roads with signs prohibiting bicycles.
- You must use the proper hand signals before stopping or turning.
- While you may use bicycle lanes along roadways, you may *not* ride on off-street recreational paths.
- You and any passenger must wear DOT standard helmets.
- You may *not* carry a passenger if you are operating on a permit.

To comply with state law, a rider and any passenger must wear a DOT standard helmet.

Rules for Visitors and Other Nonresidents

A U.S. resident living outside Massachusetts may drive in the Commonwealth using a valid out-of-state driver's license. This rule applies both to visitors and to out-of-state residents who work in Massachusetts.

No person under the age of 16 may drive in Massachusetts. This is true even if you have a driver's License (or learner's permit) issued in a state or U.S. Territory or another country that allows operation of a motor vehicle by a person less than 16 years of age.

If you are a visitor from another country, you may drive private passenger vehicles in Massachusetts for **up to 1 year from your date of arriving in the United States** provided you have a valid driver's license issued by your home country and your country is recognized under one of the conventions listed in Appendix C or the Registrar has specifically granted driving privileges to residents of your country as detailed in *Appendix C*. An International Driver's Permit is not required, but it may help provide an English translation of your foreign license.

You must have your valid out-of-state or foreign driver's License in your possession when driving in Massachusetts.

Once you have established residence in Massachusetts, you must obtain a Massachusetts driver's license to retain your driving privileges. For the procedure for converting your out-of-state or foreign license, see the *Policies for New Residents* section.

Applying for a License

Anyone who is at least 16 years old and has not had a driver's license or the right to operate revoked may apply to begin the process of obtaining a Class D or Class M License at any full-service RMV Branch (see *Appendix F* for a

list of locations).

You must obtain a learner's permit before you can apply for any license. (This manual specifically outlines the procedures for obtaining a Class D or a Class M license). To get a learner's permit, you must complete an application, present identification, pay a fee, and pass a written test. Your learner's permit does not become a license until you pass the road test and have paid all license fees. If your learner's permit expires, you must take the written test and pay the required fees.

Currently, you can opt to pay the written test, road test, and license fees when you take the written exam. If you choose not to pay all the fees at that time, you can pay the remaining fees when you book your road test. If you are a new Massachusetts resident and have an out-of-state driver's license, you may be eligible to convert your license without testing. For information on license conversion and foreign license policies, see the *Policies for New Residents*.

License Fees

The written test **\$30.00**

The learner's permit written test fee covers the cost of processing your application and administering your written exam. If you fail the written exam or your permit expires, you will be charged this fee again for another examination.

Road test fee **\$20.00**

The RMV charges a flat fee for any license application. This fee covers the cost of processing your application and scheduling a road test. If you fail the road test, do not appear for the road test, are rejected by the examiner, or cancel your appointment with less than 24 hours notice, you will still be charged the \$20 fee. For more details on road testing and fees, see the *Taking the Road Test* section later in this chapter.

License issue fee Class D **\$40.00**

License issue fee Class M **\$40.00**

The RMV charges a driver's license fee so it can issue a tamper-resistant, credit-card style Class

Massachusetts law requires those convicted of sex offenses to register with their local police departments. For more information, call 1-800-93-MEGAN.

RMV Phone Center
617-351-4500
in the 339/617/781/857
area codes

1-800-858-3926
from all other MA
area codes

Monday–Friday
9 a.m.–5 p.m.

Internet Address
www.mass.gov/rmv

D or Class M license that features your photo-image, your signature, and a magnetic code stripe.

Amending an existing license \$15.00

The RMV charges a fee when you add or change a restriction. Any other change that results in the reissuance of a license will be charged a duplicate license fee of \$20.

Out-of-state conversion fees

Class A* **\$110.00**

Class B* or D* **\$100.00**

Class C* **\$90.00**

Class D **\$90.00**

**To add motorcycle privileges (Class M) to any of these license classes, you must pay an additional \$15.00.*

Class M only **\$90.00**

Class D or M permit conversion **\$30.00**

Fees are subject to change.

If your license has been revoked in Massachusetts or any other state, you may need to meet additional license application requirements. For details, see *Chapter 2*, which covers license suspensions and revocations.

Graduated Licensing/ Junior Operator Law

The law has several requirements and restrictions that significantly affect the operation of a motor vehicle by a person who has a JOL. The basic purpose of the law is to provide new drivers supervised opportunities in which to develop good driving skills, while keeping those drivers free of the possible distractions caused by friends under age 18 who are present while the drivers are behind the wheel.

An applicant for a driver's license between ages 16½ and 18 must comply with several requirements to obtain a Junior Operator's License (JOL):

- Have a valid learner's permit for at least 6 consecutive months before taking the road

test (Any suspension will invalidate the permit and the 6 months will start to run anew when the suspension is lifted.)

- Maintain a clean driving record for at least 6 consecutive months before taking the road test
- Successfully complete a Registrar-approved driver education and training program, which includes 30 hours of classroom instruction; 6 hours of in-car, behind-the-wheel training; and 6 hours of in-car experience observing other student drivers
- Complete at least an additional 12 hours of supervised, behind-the-wheel driving as shown by a certified statement provided by a parent or guardian
- You may not operate a motor vehicle within the first 6 months of receiving a JOL while any passenger **under age 18** is in the vehicle (other than you or an immediate family member of any age) unless you are accompanied by a person who is at least 21 years old, has at least 1 year of driving experience, holds a valid driver's license from Massachusetts or another state, and is occupying a seat beside you. **A Junior Operator who violates the passenger restriction shall be subject to a license suspension of 30 days for a first offense, 60 days for a second offense, and 90 days for a third or subsequent offense.**

The 6-month passenger restriction period will stop running when a suspension begins; the remainder of the restriction period will start running again when the suspension is completed.

- As the holder of a JOL (or a learner's permit), you may not operate a motor vehicle between 12:00 a.m. and 5:00 a.m. unless accompanied by your parent or your legal guardian.
- You may not operate a motor vehicle requir-

ing a **commercial driver's license (CDL)**.

Age Requirements

- To apply for a Class D (passenger vehicle) or a Class M (motorcycle) **learner's permit**, you must be at least 16.
 - You can obtain a learner's permit at age 16, but you may not receive a Class D or a Class M **driver's license** until you are at least 16½ and have had your permit in good standing for 6 months and have completed a driver education training program approved by the Registrar.
-

Parental Consent

All customers applying for permits, licenses, or identification cards who are under age 18 (minors) must obtain written consent from a parent, a legal guardian, a Child Guardian Division (Department of Transitional Assistance) social worker, or a boarding school headmaster. For a learner's permit, or identification card, a person gives written consent by signing the front of the permit application.

If the person signing the front of the application is not a parent, documentation of the person's guardian status must be shown at the time of the written test and road test. Forging a signature may result in license suspension or revocation.

Exceptions to the parental consent requirement are granted to customers under age 18 who can produce valid marriage certificates or legal emancipation documents.

Identification Requirements

Anyone applying for a learner's permit must show a valid SSN card or a valid passport. You must also show **proof of age** at the time of application. Acceptable documents showing date of birth include birth certificates, baptismal

records, passports, school certifications on official letterhead, and military IDs. If you are under 18, you must provide a Social Security Card or current valid passport. If you are over 18, you must also provide **proof of Massachusetts residency** and **proof of signature** with your application.

All identification documents **must be originals**. Photocopies will *not* be accepted. For a complete list of documents that are accepted for identification purposes and for rules on foreign language translations, see *Appendix A*.

Social Security and License Numbers

You must have a valid Social Security number (SSN) to apply for any permit, license, or ID, including a replacement or a renewal. When you submit an application at an RMV Branch, the Registry will attempt to validate the SSN you provide against computer records at the Social Security Administration (SSA). If you do not have a SSN, you may request an application for one by calling 1-800-772-1213. Note: If you have recently married and are changing your name, you should make the change with the Social Security Administration (SSA) before you change your name on your driver's license. This is to ensure that the SSA recognizes your new name when the RMV attempts to validate your SSN.

If you are not a citizen and do not have a SSN, you should apply for one at a Social Security Office as soon as possible. If you are denied a SSN, you may still qualify for a Massachusetts driver's license if you can meet other identification requirements proving your age, signature, and Massachusetts residency. However, to prove that you applied for a SSN, you must present the written Denial Notice the SSA provided you, which informed you that you were not eligible for a SSN.

The RMV maintains very strict policies on acceptable forms of identification. See **Appendix A** for a complete list of acceptable forms.

IMPORTANT NOTICE:
All customers must present a valid, current U.S. Passport, or non-U.S. Passport, Social Security Card, or Denial Notice from the Social Security Administration prior to being issued a license.

For information on obtaining a SSN, call 1-800-772-1213.

RMV May Reject SSN Denial Notice

The RMV reserves the right to reject any Social Security Denial Notice that does not appear to be genuine, or which appears to have been altered, or is incomplete, or that indicates the application for a SSN has not been properly completed.

A Denial Notice from the SSA which indicates that the applicant has failed to properly complete the application process will be treated by the RMV as an **unacceptable Denial Notice**. An application for a Learner's Permit, Driver's License or ID card that is accompanied by an unacceptable Denial Notice will be rejected. Evidence of failure to properly complete the SSN application process includes, but is not limited to, failing to provide documents required as part of the SSN application process, including failing to provide evidence of class admission, and failing to comply with a request by the SSA to visit an SSA office for an in-person interview.

The RMV can keep your SSN confidential by assigning you a random driver's license number.

The RMV requires your SSN to confirm your identity and to maintain your license and driving records. In the past, your Massachusetts driver's license number was automatically your SSN unless you requested a random state number to be assigned.

You should notify your insurance company of any license number changes.

Because many customers want to keep their SSNs confidential, the RMV license system now automatically assigns special **S** numbers as license numbers. **If you want your license number to be your SSN, you can make this request when you submit your permit application, immediately before your license is issued, or at renewal.**

If your current Massachusetts license displays your SSN and you wish to use a state-assigned license number instead, you may make the change at any RMV Branch or License Express location. If you change your license number, you must get a new license with the new number. To get a new license, you must pay a \$20 license replacement fee.

Vision Screening Requirements

Testing your vision is a necessary part of ensuring that you are capable of operating a motor vehicle safely. An RMV clerk will screen your vision when you apply for a learner's permit or driver's license. You will be screened for visual acuity, color vision, and peripheral vision. If you normally wear contact lenses or corrective lenses to see at a distance, then you must wear them during the vision screening examination.

Your vision must be at least 20/40 visual acuity in your better eye (corrected) and at least 120 degrees of horizontal peripheral vision (both eyes together) for a full license. If your corrected vision is between 20/50 and 20/70 in the better eye, you may be eligible for a daylight only license. If you fail the vision screening examination, decline to take the examination, or are unable to take the vision screening examination, you may submit an original RMV Vision Screening Certificate that your physician or optometrist, licensed in Massachusetts, has completed. The RMV may accept this Vision Screening Certificate in lieu of the vision screening examination to demonstrate compliance with the minimum vision standards to obtain a Massachusetts driver's license.

For information on other physical qualifications necessary to hold a Massachusetts driver's license or for more information regarding the voluntary reporting procedure, please call the Medical Affairs Bureau at 617-351-9222.

The Vision Screening Certificate is available at any RMV Branch or License Express counter. You may also be able to download the certificate from the RMV's Web site or pick up a copy at many eye-care providers.

Driving Record Verification

Whenever you apply for or renew a permit or license, the RMV's licensing computer system checks your name, birth date, SSN, and any out-of-state driver's license numbers with the Problem Driver Pointer System (PDPS), which stores information about license suspensions and revocations for drivers in all 50 states. If your record matches PDPS, you will not be allowed to continue the application process until

If you doubt a driving school's credentials, ask to see a license certificate, which the RMV issues.

Professional
Driving Schools
Registry of Motor
Vehicles
P.O. Box 199100
Boston, MA
02119-9100

all out-of-state suspensions or convictions are resolved.

Driver's Education Certification

The RMV requires drivers under age 18 to take professional driving lessons at a local high school or driving school. Professional driving instruction can help you become a more skillful, knowledgeable driver, and it can increase your chances of passing the Class D or Class M road test on your first try. Another benefit of learning to drive through a licensed school is the ability to use a school vehicle for your road test and a school instructor as your test sponsor.

To apply for a Class D or M driver's license when you are between 16½ and 18 years old, you *must* have a driver's education certificate from a licensed driving school or a high school program that is approved by the Registrar. The fact that you have fulfilled this requirement will be available on your RMV computer record at the time of your road test. You must also have an additional 12 hours of driving with a parent or guardian.

If you recently moved to Massachusetts and had already completed a driver's education program in another state, you should mail an original of your out-of-state driver's education certificate; a \$20 check; and a self-addressed, stamped envelope to the address in the margin. Verification will be made with the state that originally issued your driver's education certificate. The RMV will send you a new driver's education certificate. Once you receive it, you may book your road test.

Professional driving schools in Massachusetts must be licensed and are monitored by the RMV. You can obtain information on driving instruction

Getting a Learner's Permit

consulting your telephone directory.

You must be at least 16 years old to apply for a Class D or Class M learner's permit. A learner's permit gives you permission to drive while you practice your skills and prepare for your road test. A Permit is valid for two years. To earn your permit, take the following steps:

1. Complete a learner's permit application and submit it to any full-service RMV Branch. Applications are available at all Branch and License Express sites, and on our website **www.mass.gov/rmv**. If you are under 18, you must have your parent or guardian sign your application.
2. Pay a \$30 written test fee, which covers the cost of your test.
3. Show proof of your age and provide your Social Security Card or valid current passport. If you are 18 or older, you must provide proof of Massachusetts residency and proof of signature. See *Appendix A* for acceptable forms of identification.
4. Pass a vision test at the RMV Branch or submit a RMV vision screening certificate from your medical practitioner.
5. Have your photo-image and signature captured electronically.
6. Pass a written test based on information in this manual.

When applying for a permit, you may wish to prepay the cost of your license. If fees have been prepaid, your driver's license will be automatically generated once you pass the road test.

IMPORTANT NOTICE:

All customers must present a valid, current U.S. Passport, or non-U.S. Passport, Social Security Card, or Denial Notice from the Social Security Administration prior to being issued a license.

You must carry your learner's permit whenever you drive until you earn a Junior Operator's License or a full driver's license.



Your Class D learner's permit allows you to drive with the following limitations:

- You must be accompanied by a licensed operator who occupies the passenger seat next to you and is at least 21 years old, holds a valid driver's license from Massachusetts or another state, and has at least 1 year of driving experience.
- If you are under 18, you may not drive between 12:00 a.m. and 5:00 a.m. unless accompanied by a parent or legal guardian who is a validly licensed operator with at least 1 year of driving experience.



A Class M learner's permit allows you to operate a motorcycle with these limitations:

- You may *not* carry a passenger.
- You can drive *only* during daylight hours (between sunrise and sunset).
- You must wear a DOT standard helmet.
- You must wear eyeglasses, goggles, or a protective face shield unless the motorcycle you are driving has a windshield or screen.

With a Class D or Class M learner's permit, you may operate motor vehicles in another state as long as doing so does not violate that state's laws.

Written Test Procedures

You must study the rules and regulations in this manual to pass the written test.

The learner's permit written examination tests your understanding of Massachusetts motor vehicle laws and safe driving practices. This manual covers all the rules you must know to pass your written test. Each test has 20 multiple-choice questions. To pass the test, you must answer 14 questions correctly within the allotted time of 20 minutes.

Written examinations are offered *only* on a walk-in basis when you submit your application for a learner's permit or a license conversion. You cannot schedule your written test in advance.

Each full-service RMV Branch has an automated testing station (ATS), which is an easy-to-use vide screen kiosk that uses a computer program to deliver test questions visually. The ATS examination is available in both English and Spanish. You have about 1 minute to answer each question. The ATS lets you practice with sample questions before beginning the actual test. You can choose to take the test using headphones. When you take the test using headphones, you can hear the questions as well as see them on the vide screen.

Once the test starts, you may only skip a question once. When you skip a question twice, the ATS automatically registers an incorrect answer. If you are caught cheating on an ATS or a written test, you will immediately receive a failing score. In

addition, you will be banned from holding any learner's permit or driver's license for 60 days.

Foreign Language Tests

If English is not your primary language, you may ask to take the written test in a foreign language. The RMV currently offers written examinations in a variety of languages. As was stated previously, the ATS test is available in Spanish.

Simplified English, Oral, and Hearing Impaired Examinations

For customers who cannot take the standard written test due to reading or hearing difficulties, the RMV offers special examinations by appointment. A simplified English or oral examination (head-phone) may be arranged for situations involving...

- Dyslexia or other learning disabilities
- Hearing impairment, when a sign language interpreter is required

You can ask for and schedule a special written test with any RMV Branch supervisor. You may be asked to submit official medical documentation to support your request. To arrange for an oral examination requiring a sign language interpreter,

Learner's Permit written tests are available in the following languages . . .

Albanian
Arabic
Armenian
Cambodian
Chinese
Czechoslovakian
English
Farsi (Iranian)
Finnish
French
German
Greek
Hebrew
Hungarian
Italian
Japanese
Korean
Laotian
Polish
Portuguese
Rumanian
Russian
Spanish
Turkish
Vietnamese

Taking the Road Test

you must submit to the branch manager a letter explaining your condition from a licensed physician or the Massachusetts Office of Deafness.

The next step toward earning your Massachusetts driver's license is taking a road test with an RMV examiner. Whether you are applying for your first license or completing a license conversion that requires a road test, you must have a learner's permit to schedule a test. Road test procedures are described in the following pages.

Currently, you can opt to pay the written test, road test, and license fees when you take the written exam. If you choose not to pay all the fees at the same time, you can pay the remaining fees when you book your road test.

For information on motorcycle rider courses for both beginner and experienced drivers, call 617-351-9585 or visit www.mass.gov/rmv.

If you are adding a motorcycle class (Class M) to your Massachusetts driver's license, you do *not* have to take a road test if you have successfully completed a motorcycle rider education course approved by the Registry of Motor Vehicles.

For a Class D license, you are not allowed to attempt more than six road tests in a 12-month period. (Class M see page 23).

Scheduling a Road Test

Most road tests are scheduled by telephone.

To schedule a road test, call the . . .

**RMV Automated Service Line at
866-MASSRMV (866-627-7768)**

You may cancel or reschedule your road test at no additional fee if you call the RMV Phone Center and give more than 24 hours' notice.

You *must* be on time for your road test, because road tests are scheduled closely. If you are late for your appointment, you will *not* be tested and you will forfeit the fee.



Being Prepared for the Road Test

On the day you take your Class D road test, you must fulfill several requirements:

1. Have a completed road test application, and have your parent or guardian complete the parental consent section if you are under age 18

In completing the application for the road test, you will be required to disclose whether you have a physical, mental or medical condition or are taking any medications that might affect your ability to operate a motor vehicle. If you do, prior to taking a road test, you will be required to submit medical clearance, from your physician, to a Branch manager.

A Branch manager will review your application and either approve it or forward it to the Medical Affairs Bureau for appropriate review.

2. Have your learner's permit

3. Bring a qualified sponsor (see *the Sponsor Requirements section*)
4. Provide an acceptable vehicle to use in your test (see *the Vehicle Requirements section*)

If you are between 16½ and 18 years old, you must have a driver's education certificate before you can schedule a road test. As part of the road test application, your parent or guardian must certify, in writing, that you have also completed 12 hours of driving supervised by a licensed driver aged 21 or over. If you are under 18, your parent or legal guardian must sign the front of your license application.

If you are under age 18, you must maintain a clean driving record for the 6 months immediately preceding the date you apply for the test. You will not be able to take the test if you...

- Have experienced any surchargeable incidents (e.g., at-fault accidents, moving violations) under Massachusetts law or the law of another state
- Have had your permit suspended for committing drug- or alcohol-related motor vehicle violations, or
- Have been convicted for violating any drug- or alcohol-related laws in Massachusetts or another state



For a Class M road test, you *must* bring your learner's permit and a completed license application form, but you are *not* required to bring a sponsor.

Sponsor Requirements

For a Class D license, including a JOL, you need a sponsor for your road test. When you arrive at the test location, you *must* be accompanied by a licensed operator who...

- Is at least 21 years old
- Has had at least 1 year of driving experience
- Has a valid driver's license issued by his or her home state. Holders of foreign driver's licenses are *not* eligible to be sponsors.

If you are not accompanied by a sponsor, you will *not* be given a Class D road test.



You are not required to have a sponsor for a Class

Vehicle Requirements

For all road tests, you must supply a properly equipped, legally registered vehicle.



Passenger Vehicles

In general, the vehicle you use for your Class D road test should be safe and in good working order. Your test will be canceled if the examiner believes your vehicle is unsafe. In addition to being safe, your vehicle must have these features:

To be acceptable to the examiner, the vehicle you bring to the road test *must* meet all the requirements in this section.

In some larger vehicles, like certain minivans, the service brake is too far from the examiner to be easily accessible in an emergency. These vehicles are *not* suitable for road tests and may be rejected by the examiner.

- Adequate seating so that the examiner may sit next to you and your sponsor may sit in the rear. You may not use a vehicle that does not have a seat for your sponsor. Sponsors may *not* sit in the bed of a two-passenger pickup truck.
- An accessible foot brake or an emergency hand brake so the examiner can make an emergency stop. It is up to the individual examiner to determine if the foot brake or emergency hand brake would be accessible to him or her in an emergency. To help ensure that brake access will not be a problem, you should bring a vehicle to the exam that either has a bench seat with easy access to the foot brakes from the passenger seat, or has a centrally located emergency hand brake. If you are prevented from taking the road exam **solely** because the examiner determined that he/she could not access the braking system, you will not be charged a fee for that scheduled exam. Driving instruction vehicles must have a second foot brake for instructors or examiners.
- A registration certificate and a valid inspection sticker.

If your test vehicle is registered out of state, you must show the examiner proof of insurance coverage equal to Massachusetts' minimum limits, which are \$20,000/\$40,000 for bodily injury

and \$5,000 for property damage.

A policy or a certificate that lists coverage limits serves as proof of a vehicle's insurance.

If you are renting the vehicle you are using for your road test, you must show your examiner your rental agreement and a letter from the rental company, on its letterhead, that authorizes you to use the vehicle for a driver's license road test. You are not required to provide this information for leased vehicles.



Passenger Vehicle Test

Procedures

You should arrive at least 15 minutes early for your scheduled road test appointment. You will not be able to take your test if you are late.

Before your road test, the RMV examiner will inspect your vehicle to ensure that it is properly registered, that all equipment is in good working order, and that the motor vehicle provides a safe, adequate, and clean seat for the examiner and easy access to the brake.

After the examiner inspects and approves the vehicle, the driving test will begin. Only you, the examiner, and your sponsor are allowed in the vehicle during the exam. The examiner will sit in the seat next to you; your sponsor must sit in the rear. No children or pets are allowed. If the examiner so authorizes, a language interpreter may also be allowed in the vehicle.

You and your sponsor are not allowed to converse unless authorized by the examiner. The examiner's goal is to observe your driving performance. Road tests may vary, but you should be prepared to demonstrate your ability to...

- Use hand signals
- Start the engine
- Start and stop the vehicle
- Parallel Park
- Back the vehicle approximately 50 feet

- Make left - right turns
- Start, stop, and turn the vehicle on a hill
- Turn around between curbs
- Enter and leave intersections
- Recognize and obey traffic signs, lights and signals, and other rules of the road
- Use good driving rules

In addition to judging your overall driving skills, the examiner will note how well you follow general good-driving procedures, including whether you...

- Use good driving posture, with both hands always placed properly on the wheel
- Drive in the proper traffic lane and look carefully and signal properly before changing lanes
- Maintain enough distance between your vehicle and the one ahead of you
- Always drive at safe speeds to comply with speed limits and varying traffic conditions
- Yield the right-of-way correctly
- Are generally aware of your actions and particularly those of other drivers



Motorcycles

In general, the motorcycle you use for your Class M road test should be safe and in good working order. Your test will be canceled if the examiner believes your vehicle is unsafe.

In addition, you must show the examiner...

- Your motorcycle's registration document
- A valid inspection sticker

If your motorcycle is registered out of state, you will have to show the examiner proof of insurance coverage equal to Massachusetts' minimum limits, which are \$20,000/\$40,000 for bodily injury and \$5,000 for property damage.

A policy or a certificate that lists limits of coverage

serves as proof of the vehicle's insurance.

As a motorcycle operator, you must also...

- Wear a US DOT standard helmet

State law requires your helmet to comply with the DOT's Federal Motor Vehicle Safety Standard No. 218.

Helmets that meet this standard will be labeled with stickers on the inside and outside.

- Wear eyeglasses, goggles, or a protective face shield, unless your motorcycle has a windshield or a screen

For information on motorcycle rider courses for both beginner and experienced drivers, call the RMV at 617-351-9585.



Motorcycle Test Procedures

You should arrive at least 15 minutes early for your scheduled motorcycle road test appointment. You will not be able to take your test if you are late.

Before your road test, the RMV examiner will inspect your motorcycle to ensure that it is registered, inspected, and insured properly and that all equipment is in good working order.

As a pre-road test, the examiner will assess your knowledge of motorcycle equipment and controls. For the road test, the examiner will observe your ability to operate a motorcycle. Your road test will consist of some or all of the following riding skills:

- "Figure eights" and 360° circles in both directions without your feet touching the road
- Normal starts and stops
- Driving in traffic
- Crossing intersections
- Making turns
- Riding up and down hills

If you fail two motorcycle road tests for a Class M license, you must enroll in and successfully complete a beginner rider course before you can schedule another test.

Common Reasons for Failing a Road Test

- You were at fault in an accident with another motor vehicle, pedestrian, or object.
- You were driving in a way that may have caused an accident or in a way the examiner considered dangerous.
- You violated a motor vehicle law, rule, or regulation.
- You demonstrated a lack of experience safely operating a motor vehicle.
- You refused to follow the examiner's instructions or drove contrary to the examiner's instructions.

Policies on Cancellations and Fees

Whenever a public school system cancels classes for weather-related reasons, road tests scheduled in the school system's community will be canceled *automatically* for the entire day. Road tests will also be canceled automatically when the Governor declares a state of emergency. If the Governor declares an emergency in a particular region, only road tests in that region will be canceled.

RMV examiners also may cancel road tests when weather conditions are considered unsafe. To determine if your road test has been canceled, please call the RMV's Phone Center. In any of the preceding cases, you may schedule a new road test at no additional fee. However, you *will* be charged the road test fee if you...

- Fail the test
- Are unprepared for the test
- Are refused the test because your vehicle fails to pass the examiner's inspection
- Do not bring a qualified sponsor
- Fail to appear for or are late for your test
- Cancel or reschedule your test less than 24 hours before your scheduled test time

If you pass the road test and **you have prepaid**

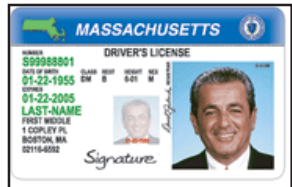
Your New License

for your license, the examiner will stamp the back of your learner's permit and it will become a temporary license, valid up to 30 days. The RMV will manufacture your new, permanent photo-image license and mail it to you.

If you pass the road test and **you have not pre-paid** for your license, you must take the permit with the road test results indicated on the back, to an RMV branch **within 30 days**. You must then pay for and obtain a temporary license while your permanent license is being manufactured. If you do not obtain a temporary license within 30 days of passing your road test, you will be **required to retake** the road test.

If your permanent license does not arrive in the mail within 4 weeks of issuance, of your temporary license, please call the RMV Phone Center at 617-351-4500 (from the 339/617/781/857 area codes) or 1-800-858-3926 (from the 413/508/978 area codes).

Whenever you operate a motor vehicle in Massachusetts, the law requires you to carry a valid driver's license on your person or within easy reach inside your vehicle.



Junior Operator's License

If you are 18 or younger when you receive your license, the permanent license that will be mailed to you will be identified as a "Junior

Operator's License (JOL)." As indicated earlier, as a Junior Operator you will be subject to certain restrictions and to certain penalties for violating those restrictions.



- You may not operate a motor vehicle within the first 6 months after receiving your JOL while any person **under age 18** is in the vehicle (other than you or an immediate fam-

ily member), unless you are accompanied by a person who is at least 21 years old, has at least 1 year of driving experience, holds a valid driver's license from Massachusetts or another state, and is occupying a seat beside you.

General Rule: The passenger restriction that applies to you as a JOL holder under age 18 is lifted once you complete the 6-month period (or the portion that applies to you) **or** you reach age 18, whichever occurs first.

If you violate the passenger restriction, you will be subject to a license suspension of 30 days for a first offense, 60 days for a second offense, and 90 days for a third or subsequent offense. The law requires the Registrar to impose this suspension in addition to any other penalty, fine, suspension, revocation, or requirement that may be imposed in connection with a violation committed at the time you were violating the passenger restriction. The suspension for violating the passenger restriction will not begin to run until any other suspension has been completed.

The 6-month passenger restriction period will stop running, temporarily, during any suspension. When your JOL is reinstated, you will still have to complete the remainder of the 6-month restriction period that existed at the beginning of the suspension period, unless you have already turned 18.

- As the holder of a JOL, you may not operate a motor vehicle between 12:00 a.m. and 5:00 a.m. unless you are accompanied by one of your parents or your legal guardian. If you are found operating a motor vehicle in violation of this restriction, you may be charged with operating a motor vehicle without being licensed; this is a criminal violation.

Note: The law states that between the hours of 12:00 a.m. and 1:00 a.m. and between 4:00 a.m. and 5:00 a.m., the provisions of the law shall be enforced by law enforcement agen-

cies only when a junior operator of a motor vehicle has been lawfully stopped for a violation of the motor vehicle laws or some other offense. This is called "secondary enforcement." However, it is still illegal for you to operate during those times without a parent present in the car.

- You may not operate a motor vehicle that requires a **commercial** driver's license (CDL).
- You will be suspended for 1 year if you are under 18 when you have committed certain driving offenses and alcohol or drugs were involved (180 days if age 18 to 21), **in addition to any penalty assessed by a court or other law.** (*For details, see the License Suspension or Revocation section of Chapter 2.*)
- You will be ineligible for a full license until you have completed any period of suspension imposed while operating with a JOL and you reach age 18.
- You will face additional suspension periods of up to 1 year for a second or third offense involving speeding or drag racing violations.

Policies for New Residents

To retain driving privileges, out-of-state or foreign-licensed drivers *must* obtain Massachusetts driver's licenses upon becoming Massachusetts residents. If you currently carry a valid license from another state, a U.S. territory, Canada, or Mexico, you may be eligible to submit your license for conversion. The following table summarizes the requirements for license conversion. License conversions require that you pay all application, testing, and license fees, regardless of whether you must take an exam. In most cases, if you hold a license from most foreign countries, you will need to pass both the written and the road tests.

For any of these categories, you must supply proof of Massachusetts residency.

If you have an out-of-state license that lacks a photo or a certified driving record, you must also submit an acceptable form of photo identification (see *Appendix A*).

Driving records must be no more than 30 days old.

Requirements for New Residents				
Place of Issue	License Status	Written Test	Road Test	Driving Record
Out-of-State	Valid or expired less than 1 year			
	Expired more than 1 year but less than 4 years	✓		
	Expired more than 4 years	✓	✓	
14 U.S. Territories, Canada, or Mexico	Valid or expired less than 1 year			✓
	Expired more than 1 year but less than 4 years	✓		✓
	Expired more than 4 years	✓	✓	✓
Other Foreign Countries	Valid license (with English translation if needed)	✓	✓	

Out-of-State Conversions

If you have an out-of-state license that is current or has been expired for less than a year, you can exchange it for a Massachusetts license simply by paying the required fees and showing proof of Massachusetts residence and...

IMPORTANT NOTICE: All customers must present a valid, current U.S. Passport, or non-U.S. Passport, Social Security Card, or Denial Notice from the Social Security Administration prior to being issued a license.

- Do not have a physical disability that might limit your ability to operate a motor vehicle properly
- If between 16½ and 18, you have a Massachusetts driver's education certificate and logged an additional 12 hours of driving supervised by a parent or guardian
- Cleared background checks with the PDPS

For out-of-state conversions, you must take the written test if your license has been expired for more than a year. If your license expired more than 4 years ago, you must take the written test and the road test.

Junior Operator (16-18 years old) License Conversion

License Conversion for a Junior Operator requires that you provide a certified copy of your driving record from the state you are leaving. You will be subject to all of the provisions of the Massachusetts JOL law. *See the Graduated License Law/JOL section for more information.* The only exception is the period of time you will be subject to the passenger restriction, which depends on your driving record. If your record indicates you have had a valid license for a full 6 months, without suspension or revocation, you will not be subject to the passenger restriction.

Permit Conversion

Class D and M Learner's Permits may be converted to an equivalent Massachusetts permit.

To convert your out-of-state permit, you must present your permit along with a driving record, which is not more than thirty days old, from the state of issuance. You will not be required to take the written test; however, you will need to pay the applicable fee. A converted permit will be dated to reflect the issue date of the original permit in order to meet the six month experience requirement for applicants under 18. The Massachusetts permit will expire two years from the adjusted issue date.

Nonphoto License Conversions

In addition to the requirements described previously, if your out-of-state license does not display your photo, you must provide photo identification when you convert your license. Acceptable forms of photo identification are listed in *Appendix A*.

Conversions from a U.S. Territory, Canada, or Mexico

When converting a license from one of the 14 U.S. territories, Canada, or Mexico, the out-of-state conversion policies apply (*see the Out-of-State Conversions section preceding*). The only additional requirement is that you submit an

IMPORTANT NOTICE:

All customers must present a valid, current U.S. Passport, or non-U.S. Passport, Social Security Card, or Denial Notice from the Social Security Administration prior to being issued a license.

original certified driving record from your home territory or country. Driving records must be no more than 30 days old. An original certified driving record is required from the 14 U.S. Territories, Canada and Mexico because the driving records of those jurisdictions are not available for electronic review by the RMV through the National Driver Register.

Other Foreign Licenses

If you hold a driver's license from any country other than the United States, U.S. Territory, Canada, or Mexico, you must take both the written test and road test. While you may drive in the United States with your valid foreign license for up to 1 year from the date you entered the country as a visitor, you must still apply for a Massachusetts license when you establish residency in the Commonwealth.

Many motor vehicle agencies around the country, including Massachusetts, are reviewing their rules for converting licenses from other countries, so there may be changes in this area. If you have a question about converting a foreign license, you should call the RMV Phone Center.

The United Nations Road Traffic Convention of 1949 and the Inter-American Automotive Traffic Convention of 1943 extend the 1-year driving privilege to all member countries (*see Appendix C for a complete list of participating nations*).

License Renewals and Replacements

Renewals

Although the RMV mails license renewal forms, you are obligated to renew your driver's license before the expiration date and to inform the RMV and the U.S. Post Office of any address change. As a license holder, you are solely responsible for its safekeeping, renewal, and replacement.

Your Massachusetts driver's license is valid for 5 years unless it is your first license, which expires on your fifth birthday after the date of issue. You may renew your license up to 1 year before the

expiration date. **If your license expired more than 4 years ago, you may be required to take a written test and road test.**

To renew your driver's license, visit any RMV Branch or License Express location (*see Appendix F for locations and business hours*). Each time you renew, you will have to pass a vision screening test, supply your SSN or current Social Security Denial Letter, and pay the renewal fee.

Please note that at License Express locations (as opposed to full-service Branch locations), you can pay your renewal fee by check or credit card *only*.

Eligible customers may also renew their licenses online. Visit www.mass.gov/rmv for more information.

If you have outstanding parking tickets, unpaid excise taxes, outstanding warrants, unpaid child support, or a suspended or revoked license, you will *not* be able to renew your license. For detailed information on reasons for nonrenewal, *see Chapter 2, Keeping Your License*.

RMV Phone Center
617-351-4500
in the 339/617/781/857
area codes

1-800-858-3926
from all other MA
area codes

Monday—Friday
9 a.m.—5 p.m.

Internet Address
www.mass.gov/rmv

Duplicates

To apply for a duplicate of your photo-image license, simply log on to www.mass.gov/rmv or call the RMV's Phone Center, request a duplicate, and pay the \$20 replacement fee by VISA, MasterCard or Discover. Alternatively, you can visit an RMV Branch.

If your lost license was *not* the photo-image type, you must apply for a duplicate in person at a full-service RMV Branch. The replacement fee is \$20. You must provide a **Social Security Card or current valid passport, proof of age, proof of Massachusetts residence, and proof of signature** (*see the Identification Requirements section earlier in this chapter*). In addition, you will have to supply your SSN. All identification documents *must* be originals. Photocopies will *not* be accepted. For a complete list of docu-

Customer Assistance
Bureau
Registry of Motor
Vehicles
P.O. Box 199100
Boston, MA
02119-9100

ments that are accepted for identification purposes, *see Appendix A*.

**Customer Assistance
Bureau
Registry of Motor
Vehicles
P.O. Box 199100
Boston, MA
02119-9100**

Temporary Replacements

If you are temporarily out of Massachusetts and cannot return home before your driver's license expires, you may ask the RMV to issue you a temporary "pink" license. A temporary license is valid for a maximum of 120 days after the expiration date of your original license, and this extension can be granted only once. To request a temporary replacement license, call the RMV Phone Center or write to the RMV's main office at the address listed in the margin. In any correspondence, be sure to include your name, license number and out-of-state address.

Voluntary Surrender

If you become unqualified to operate a motor vehicle safely due to a physical or mental condition or simply wish to cease driving for other reasons, you may voluntarily surrender your license to the RMV. You may voluntarily surrender your license at any full service RMV branch during normal business hours or by mailing the license to the Medical Affairs Bureau of the RMV. A voluntary surrender of license does not have the negative insurance ramifications that a suspension or revocation of license has and involves no fee. In addition, upon surrender, the RMV will issue you a Massachusetts Identification Card at no fee. If, at any point thereafter, you wish to resume driving the RMV may re-issue your license upon receipt of appropriate medical documentation. In appropriate circumstances, a competency road examination may be required prior to re-issuance of license. A re-issuance of license which was voluntarily surrendered involves no fee unless your license passed its normal renewal date during the time in which it was surrendered. In this case, the fee for reissuance of license would be the normal renewal fee.

**Medical Affairs Bureau
Registry of Motor
Vehicles
P.O. Box 199100
Boston, MA 02119-9100**

Change of Address / Name

If you hold a Massachusetts learner's permit or driver's license, the law requires you to notify the RMV in writing of any address change within 30 days of the change. Go to the RMV website or call the RMV Phone Center and give your new address. You should also notify the U.S. Post Office of any address change within 30 days of making the change.

You should notify the Social Security Administration any time you change your name.

When you give the RMV your new address, you can add a sticker to the back of your driver's license to reflect the change or pay \$20 to obtain a new license with your new address.

If you change your name, you must report the change promptly to the RMV so that it can update all your license and vehicle records. Also, you must obtain a new driver's license bearing your new name and signature. This transaction costs \$20 and must be done in person at a branch office.

Voter Registration

You can now register to vote when you conduct a permit or license transaction at a RMV Branch or License Express location. All licensing transaction forms contain a section in which you can indicate if you wish to register to vote or update your current voter registration.

You must be a U.S. citizen and at least 18 years old at the time of the next election to register to vote.

You can choose to register with a political party or with one of the political designations on file at the State Elections Office. If you do not want to register with a particular political group, you can select "UNENROLLED" status. If you register or change your affiliation, your information will be forwarded first to the Central Voter Registry and then to your local election office, which will send you a confirmation notice in the mail.

For more information on registering to vote or the election process, call the State Election Line at 1-800-462-VOTE.

When you receive your license in the mail,

Organ Donor Program

you will have the opportunity to decide whether to donate your organs and tissues. In the envelope containing your license you will find information and a donor card. If after reading the information you choose to become a donor, sign the donor card in the presence of two witnesses, who may also sign the card (family members are recommended witnesses).

The most important step in this process is sharing your decision with your family. Most people do not realize that next of kin will be asked for their consent even if a donor has a signed donor card. If you would like to donate but do not want to sign a donor card or have this designation listed on your license, simply tell your family members of your decision. If you change your mind and no longer want to be an organ donor, simply destroy your donor card and inform your family.

If your current driver's license does not show you are an organ donor, you may complete the organ donor card at any time. You can also change your donor designation anytime you apply for or renew a license.

If you are in active military service and want to

For more information on organ donation, call:

New England Organ Bank: 1-800-446-6362

NorthEast Organ Procurement Organization and Tissue Bank: 1-800-874-5215

Lions Club: Lazarus Project 1117 Main St. Reading, MA 01867

Licensing Rules for Military Personnel

drive in Massachusetts, you must have a valid driver's license from your home state. If you are a permanent resident of the Commonwealth, you must have a valid Massachusetts license.

Following are exceptions to this rule:

- If you are returning from active duty outside the United States and have a driver's license issued by a branch of the Armed Forces based in another country, you may drive with that license in Massachusetts for up to 45 days.
- If you have a Massachusetts driver's license that expired during your active service, you may use that license to operate a motor

You are not required to renew your Massachusetts license while you are in active military service.

vehicle for up to 60 days after your honorable discharge from military service. If you choose to exercise this option, you *must* carry your expired license and proof of your discharge with you when you drive.

Renewals and Replacements for Military Personnel

Military personnel are *not* required to renew their Massachusetts driver's licenses during active service. However, you may wish to renew your license during your military service. In such cases, the RMV will issue a special nonphoto driver's license if you are stationed outside Massachusetts.

You can only request a nonphoto driver's license by mail. To order a nonphoto license renewal, for military personnel and their dependents, mail your request, the renewal fee (see the License Fees section preceding), and a copy of your military ID to the address in the margin. A nonphoto driver's license will be mailed to you as long as you are located outside Massachusetts. In any correspondence, be sure to include your out-of-state address.

Active members of the Armed Forces and their dependents who wish to obtain duplicates of their licenses can simply send letters of request stating whether their licenses were lost or stolen to the address in the margin and include copies of their military IDs.

For military personnel and their dependents, duplicate licenses are free.

**Driver Licensing
Registry of Motor
Vehicles
P.O. Box 199100
Boston, MA 02119-9100**

Keeping Your License

Driving in Massachusetts is a privilege, not a right. You earn driving privileges by passing written and road tests that prove your ability to operate a motor vehicle safely and within the law. Once you have earned your driver's license, you are responsible for your actions as a driver.

The RMV tracks your history as a driver in your **driving record**. This record lists three types of events that can cause you to lose your driving privileges:

- Civil motor vehicle infractions
- Criminal violations
- Motor vehicle accidents where you are found to be more than 50 percent at fault

This chapter explains these three events, how the law works, and how to avoid losing your driving privileges.

The RMV is required to suspend or revoke your driver's license in a number of situations described in this chapter. A **suspension** or **revo-**

CHAPTER 2

citation means that your license and driving privileges are taken away for a specific period or indefinitely. (See the License Suspension or Revocation section later in this chapter for information on what causes you to lose your driver's license.)

In addition, you will not be able to renew your expired license if you have unpaid parking violations, unpaid excise taxes, outstanding court warrants, or unfulfilled child support obligations. (For details, see the Reasons for License Nonrenewal section at the end of this chapter.)

Motor Vehicle Violations and Penalties

When you break a motor vehicle law, you are subject to a citation. A citation may require that you pay a fine, lose your driving privileges, appear in court, or go to jail. Major traffic law violations, such as driving while intoxicated or leaving the scene of an accident, carry severe penalties and could cause you to lose your license. You can also lose your license through a series of traffic violations, such as driving above the speed limit or failing to obey traffic signals.

Motor vehicle violations fall into two categories: *civil* and *criminal*. The following sections explain the differences between the two violations. For many motor vehicle violations, the penalties may be more severe if you hold a Junior Operator's License, if you are under 21, if you are a repeat offender, or if you are driving with a commercial driver's license (CDL).

Depending on the seriousness of your violation, you may face combined penalties, such as a fine, loss of license, and/or a prison sentence.

Civil Motor Vehicle Infractions

Civil violations, such as not obeying traffic signals or speeding, are considered noncriminal and can usually be settled by paying fines. If you receive a citation from a law enforcement officer for a civil motor vehicle infraction (CMVI), you must pay the required fine or request a hearing

to dispute the citation within 20 days. CMVI fines usually range between \$35 and \$175.

If you do *not* respond to a citation within 20 days, you will be found responsible and charged a substantial late payment fee. Continued failure to pay the citation and late fee will cause your license to be suspended. Paying a motor vehicle citation fine means you accept responsibility for that violation. Your driving record will note that you have accepted responsibility for a citation whether you paid the citation by mail, requested a hearing and were ordered by a court to pay the fine, or you failed to respond to the citation within the 20-day period.

All moving violations are tracked in Massachusetts by the RMV and are recorded on your driving record. Moving violations can affect your motor vehicle insurance rate (see *Chapter 6*) and may cause your license to be suspended.

Parking violations are not considered CMVIs. They are handled by the city or town that issued the citations or tickets. However, unpaid parking violations will prevent you from renewing your driver's license or vehicle registration.

Speeding Violations

The beginning of Chapter 4 explains the speed-limit laws in Massachusetts. If you are given a citation for driving above the speed limit, the minimum penalty is a \$100 fine. If you are convicted of driving more than 10 miles per hour (mph) over the speed limit, you will be fined an additional \$10 for each mph you were traveling above the first 10. By law, all fines for speeding violations include a \$50 surcharge. This surcharge is applied to the Head Injury Treatment Services Trust Fund. Speeding is a common factor in motor vehicle crashes resulting in serious head injuries. The legislature established this trust fund for rehabilitation services for those with head injuries. For example, if you were traveling 73 mph on a highway with a posted speed limit of 55 mph, you would incur a \$180 dollar fine:

You may pay for speeding violations using a credit card by calling the RMV phone center at 617-351-4500 or 1-800-858-3926 (from the 413/508/978 area codes) or through the RMV website at www.mass.gov/rmv or you can mail the payment to: RMV Citations-Processing Center Box 199125, Boston, MA 02119-9125

Three speeding violations in a 12-month period means your license will be suspended for 30 days. If you hold a Junior Operator's License, two speeding violations before you turn 18 years old means your license will be suspended for 180 days.

Criminal Violations

Criminal motor vehicle violations are serious

Your Speed	73 mph
Speed Limit	55 mph
	18 mph over the limit
First 10 mph	\$100
Next 8 mph (8 x 10) =	\$80
	\$180 total fine

offenses. If you commit a criminal motor vehicle violation, you may be arrested immediately, your vehicle will be towed, your license may be taken away, and you may be placed in jail until a court hearing can be arranged. If you are convicted of a criminal motor vehicle offense, the court will set any fine or prison term.

Criminal motor vehicle offenses include driving with a suspended license, driving under the influence (DUI), and leaving the scene of an accident. The *License Suspension or Revocation* section of this chapter includes tables that outline the penalties of many criminal motor vehicle offenses.

In addition, you may be arrested and criminally charged for not responding truthfully and fully to a police officer who has asked you to...

- Provide your name and address
- Provide the vehicle owner's name and address
- Produce your driver's license on demand
- Show a valid registration certificate for the vehicle
- Sign your name in the officer's presence

Out-of-State Violations

Massachusetts has arranged to share driving-record and criminal-violation information with other states. **Certain traffic offenses you have committed in other states will be placed on your driving record and treated by the RMV as if they had occurred in Massachusetts.**

As explained later in this chapter, out-of-state

violations count toward possible license suspension and Safe Driver Insurance Plan surcharges. Furthermore, if your license or driving privileges have been suspended or revoked in another state, your Massachusetts license will be suspended automatically.

At-Fault Accidents

In addition to civil and criminal motor vehicle violations, the third type of event that negatively affects your driving record is a motor vehicle accident for which you are considered to be at fault. You are considered to be more than 50 percent at fault for an accident if your insurance company...

1. Finds you at fault according to one of the 19 Standards of Fault listed at the end of *Chapter 6*. An example is causing an accident while driving on the wrong side of the road or crashing into another vehicle from behind.
and
2. Has paid a claim of more than \$500 for collision, limited collision claim, or damage to someone else's property.

Any at-fault accidents charged to you will be listed on your driving record with any motor vehicle violations you committed and will count toward possible license suspension.

Surchargeable Events

The motor vehicle violations or accidents described previously that are listed on your driving record are called **surchargeable events**. Each surchargeable event counts toward possible license suspension. Remember, the RMV treats most out-of-state traffic convictions as if they occurred in Massachusetts.

If you receive three speeding violations within a 12-month period, your driver's license will be suspended automatically for 30 days. The 12-month period begins when you either

pay or are found responsible for the first of the 3 citations. Junior operators (under age 18) face a tougher license suspension of 180 days for any combination of 2 speeding or drag racing citations and a 1 year suspension for a third violation before your 18th birthday.

If you collect five surchargeable events on your driving record within a 3-year period, you are in danger of having your license suspended. You will receive a letter from the RMV instructing you to complete a driver retraining program (*see the next section*). You must complete the retraining course within 90 days or your license *will* be suspended indefinitely until you complete the program. If you have taken the driver retraining program in the past 3 years, you are exempt from this requirement.

If you collect seven surchargeable events within a 3-year period, your license will be suspended automatically for 60 days.

Surchargeable events not only threaten your driving privileges, they affect your private passenger motor vehicle insurance. Using a point system and driving record information, the Merit Rating Board administers a program called the Safe Driver Insurance Plan (SDIP). Under SDIP, your insurance premium is determined by your driving record. If you are a safe driver over the years, your premium may go down. However, if you are convicted of criminal or civil moving violations, or if you are more than 50 percent at fault in an accident, your insurance rate will increase (*see Chapter 6 for more information*).

Driver Retraining Course

If you accumulate five or more surchargeable events on your driving record, you *must* complete the Massachusetts Driver Retraining Course or lose your license. This course does not teach driving skills; rather, it helps drivers learn to change their driving behavior.

Shortly after the RMV notifies you that you have five or more surchargeable events, you will

To schedule a driver retraining course, call the National Safety Council at 1-800-432-5251.

receive a driver retraining information packet, which contains fee information. The 8-hour retraining program is held at many locations throughout the state and is typically offered as two 4-hour sessions. However, one 8-hour Saturday session may be available in your area.

Completing the Driver Retraining Program does *not* erase any offenses or surcharges from your driving record and does *not* replace any other requirements you must meet for specific offenses. For example, if you were convicted of drunk driving, you may also have to complete an alcohol treatment or education program.

Driving Records

You can obtain a copy of your Massachusetts driving record by ordering it over the phone, requesting it by mail, or picking it up in person at any full-service RMV Branch. The cost of each driving record is currently \$15. To order by phone, call the RMV Phone Center at 617-351-4500 (from the 339/617/781/857 area codes) or 1-800-858-3926 (from the 413/508/978 area codes) and pay by VISA, MasterCard, or Discover. To order by mail, send a written request with your name, date of birth, driver's license number, and Massachusetts address, along with payment by check, to the address in the margin.

Checks should be made payable to the *RMV* or the *Registry of Motor Vehicles*. Make sure your name, address, and driver's license number are printed on your check. If you presently reside out of state, please indicate where you would like your driving record mailed.

The Registrar of Motor Vehicles has the right to suspend or revoke your driver's license according to Massachusetts law or when he considers you to be a threat to public safety. Some motor

**Driver Control/
Driving Records
Registry of Motor
Vehicles
P.O. Box 199150
Boston, MA
02119-9150**

**When ordering a
driving record by
mail or over the
phone, please allow
10 business days for
processing.**

License Suspension or Revocation

vehicle violations require the immediate suspension or revocation of your license. You can also

Mandatory License Suspensions (18 Years and Older)			
Situation	Explanation	Suspension Period	Fee to Reinstatement
Three Speeding Violations	Three speeding violations/convictions within any 1-year period.	30 days	\$100
Five Surchargeable Events	Any combination of moving violations and surchargeable accidents that total five surchargeable events within a 3-year period.	Must complete driver retraining program within 90 days or license will be suspended indefinitely until course is completed	\$100
Seven Surchargeable Events	Any combination of moving violations and surchargeable accidents that total seven surchargeable events within a 3-year period.	60 days	\$100
Habitual Traffic Offender	A total of three major moving violations or any combination of twelve major or minor moving violations within a 5-year period.	4 years	\$500
Out-of-State Suspension	License has been suspended or revoked in another state.	Until the out-of-state suspension is resolved	\$100

lose your license for committing a number of moving violations over time or for being at fault in a number of accidents.

Reasons for License

Suspension

The law requires the Registrar to suspend or revoke your driver’s license automatically in several instances. The charts in this section summarize the situations in which suspension is mandatory. In addition to automatic license suspension, the Registrar has the discretionary right to suspend or revoke your license in the following cases:

For penalties that apply to Junior Operators (ages 16½ to 18), see the chart on the next page.

- *Immediate threat*—If the Registrar determines that allowing you to continue

The Graduated Licensing Law mandates license suspensions, in addition to any other penalty that may be imposed, for Junior Operators who are convicted of violating any of the laws in the following chart.

driving poses an immediate threat to public safety, he can suspend your learner's permit or driver's license immediately.

- Improper operation**—If it is determined at a hearing that you have operated a motor vehicle improperly, the Registrar can suspend your driving privileges.

Out-of-State Suspensions

If your driving privileges have been suspended

Mandatory License Suspensions Junior Operators Only (16½ to 18 Years)			
Situation	Explanation	Suspension Period	Fee to Reinstatement
Conviction for Violating Passenger Restriction	Violation of passenger restriction (unsupervised vehicle operation during first 6 months)	30 days—first offense 60 days—second offense 90 days—third offense	\$100
Note: The suspensions below do not require violations to be the same type. A speeding violation following a drag racing violation will count as a second offense.			
Conviction for Speeding (c. 90, §17)	Speeding on a way	180 days—second offense 1 year—third or subsequent offense	\$100
Conviction for Speeding on Certain Highways (c. 90, §17A)	Speeding on portions of Mass Pike, portions of I-91, portions of I-95	180 days—second offense 1 year—third or subsequent offense	\$100
Conviction for Drag Racing (c. 90, §17B)	Operating on a way at a high rate of speed in competition with another	180 days—second offense 1 year—third or subsequent offense	\$100
Conviction for Violating Special Speed Regs. (c. 90, §18)	Special regulations as to speed (set by cities, towns, state highway department)	180 days—second offense 1 year—third or subsequent offense	\$100

Massachusetts state law requires the RMV to apply Massachusetts license suspension rules to *any* of these out-of-state violations, even if an offense did not cause a suspension in another state.

To determine what is a "like offense", the RMV will look at what conduct the other state's law prohibits, not whether or not the other state chose to assess a higher or lower penalty, or treat the offense as a civil or criminal infraction.

If your license has been suspended due to a bad check, you may make restitution with cash or certified bank check at any full-service RMV Branch. In addition to your reinstatement fee, you will be charged a \$25 fee to clear your bad check.

or revoked in another state, your Massachusetts driver's license will be suspended until your out-of-state suspension or revocation is resolved. Once your license has been reinstated in the state that suspended or revoked it, you can settle your Massachusetts suspension by bringing either a reinstatement letter or a current driving record from the state of suspension to any full-service RMV Branch. Your reinstatement letter or driving record must be no more than 30 days old, however.

Each state in the United States is required to notify the Massachusetts RMV of any traffic offenses you commit out of state. **Again, these offenses will be treated as if they occurred in the Commonwealth if they are a "like" offense.**

When Your License Is Suspended . . .

If the RMV suspends or revokes your driver's license, you *must* stop driving immediately. You have lost your driving privileges, and it is illegal for you to operate any motor vehicle.

Driving Without a License

It is illegal to drive in Massachusetts without a valid driver's license or permit.

Driving With a Suspended License

If your license or permit has been suspended or revoked for any reason, your license or permit is *not* valid and you are *not* allowed to drive in the Commonwealth. **Driving while your license is suspended or revoked is considered a criminal motor vehicle violation. You may face a considerable fine and/or jail sentence as well as additional suspension penalties, for doing so.**

License Reinstatement

To reinstate your driver's license or your right to operate a motor vehicle, you may need to appear for a hearing. If your license is suspended or revoked, you have the right to a hearing with a hearing officer. Hearings are available on

Criminal Offenses and Suspensions		
Criminal Conviction	Suspension Period	Fee to Reinstate
Operating a motor vehicle with a suspended or revoked license	60 days–1 year	\$500
Operating a motor vehicle without the owner's authority	1–3 years	\$500
Leaving the scene of an accident when a person is injured	1–2 years	\$500
Leaving the scene of an accident involving property damage	60 days–1 year	\$500
Operating to endanger	60 days–1 year	\$500
Motor vehicle homicide	10 years–Lifetime	\$500
Driving under the influence of alcohol or drugs	1 year (first) 2 years (second) 8 years (third) 10 years (fourth) Lifetime (fifth)	\$500 (first) \$700 (second) \$1200 (third) \$1200 (fourth)
Any drug-related conviction (Operation of a vehicle is not required)	1–5 years	\$500
Defacing real or personal property, spraying paint or applying stickers or other graffiti (Operation of a vehicle is not required)	1 year (or delay of 1 year in obtaining a License)	\$100

Many of the offenses in the accompanying chart may also require you to serve time in jail.

Additional suspension periods will apply to many of the offenses in the accompanying chart when Junior Operators commit them and alcohol or drugs are involved. For more information, see the *Under 21 Alcohol Offenses* section later in this chapter.

a walk-in basis at the Boston, Brockton, Lawrence, Worcester, and Springfield Branches, unless you received a notice in the mail for a scheduled hearing. Walk-in hearing hours are 9:00 a.m. to 5:00 p.m., Monday through Friday, except holidays.

At your hearing, the hearings officer will review your case, including your driving record and all applicable laws and regulations. Most suspensions are mandatory, and the hearing is limited to whether the law is being applied correctly to your driving record.

Once you have been found guilty of or responsible for a violation, the facts of the incident are no longer relevant, and the hearings officer will not have the discretion to waive a valid suspension.

The hearings officer may take the hearing under advisement for up to 10 business days before rendering a decision.

State law requires you to pay a fee to reinstate a suspended or revoked license.

The most common fee is \$100, but suspensions caused by serious offenses may require reinstatement fees as high as \$1,200.

Depending on the suspension, you may also be required to pass a written and road test as part of the reinstatement process.

Alcohol, Drugs, and Driving

after drinking alcohol or taking other drugs.

Alcohol is a drug. It is a depressant that affects your vision, reaction time, coordination, and judgment. Even small amounts of alcohol or other drugs—including some over-the-counter medicines—can decrease the mental and physical abilities you need to operate a motor vehicle safely. You do not have to be drunk or completely intoxicated to be a dangerous driver.

As a licensed driver, your first responsibility is safety *always*. If you have consumed any substance that impairs your awareness and your reflexes, you are no longer safe to drive.

Each year in the United States, alcohol is responsible for half of all highway deaths. This figure does not include the thousands of drivers, passengers, and pedestrians who are seriously hurt or permanently disabled in similar accidents, or the millions of dollars of damage caused, or the tragedies that friends and families must face—all at the hands of drivers operating under the influence (OUI) of alcohol or drugs.

Because driving under the influence is so dangerous, Massachusetts enforces very strict penalties for OUI violations. The chart opposite shows the penalties associated with each OUI conviction.

Penalties for Operating a Motor Vehicle Under the Influence of Alcohol or Drugs

Conviction	Fine	Prison Term	License Suspension
First Offense	\$500–\$5,000	Maximum 2½ years	1 year
For your first offense, the court may allow you to complete an alcohol education course to reduce your license suspension period.			Over 21, 45–90 days Under 21, 210 days
Second Offense	\$600–\$10,000	Minimum 30 days Maximum 2½ years	2 years
Third Offense (Felony)	\$1,000–\$15,000	Minimum 150 days Maximum 5 years	8 years
Fourth Offense (Felony)	\$1,500–\$25,000	Minimum 1 year Maximum 5 years	10 years
Fifth Offense (Felony)	\$2,000–\$50,000	Minimum 2 years Maximum 5 years	Lifetime

The accompanying chart lists the penalties for OUI offenses.

Alcohol

Whether it's in the form of beer, wine, or hard liquor, alcohol is a depressant that **slows your reflexes, increases the time you need to react, and distorts your vision and judgment.** At the same time, alcohol often makes you *feel* more confident about your actions, and it can cause you to take chances while driving that you normally wouldn't take. This is a dangerous combination that often leads to serious motor vehicle accidents and tragic deaths.

Even one alcoholic drink in an hour can affect

your driving. The effects of alcohol can increase significantly if you are tired, emotionally upset, or haven't eaten. No one is immune to alcohol. After drinking, your ability to drive any vehicle safely is impaired. No matter how much you try to be careful or how hard you try to concentrate, there is still a drug inside your body affecting you physically and mentally.

Blood Alcohol Content

When you drink an alcoholic beverage, your body works hard to eliminate the alcohol from your system. You *do not* digest alcohol as you do food. Alcohol is processed by your liver and kidneys, and the process takes time. There is no quick way to sober up or to get the alcohol out of your body. Drinking black coffee, taking a cold shower, exercising, or eating might make you feel more alert after drinking alcohol, but none of these actions has any effect on how quickly alcohol leaves your body.

Ideally, if you have had *any* alcoholic beverage, you should *not* drive. Determining exactly what is “too much” alcohol can be difficult. The amount of unprocessed alcohol in your body is measured as **blood alcohol content (BAC)**, which can be determined by a blood or a breath test. Your BAC depends on several factors:

- Your body weight
- How much alcohol you have had to drink
- The amount of food you ate before drinking
- The length of time during which you have been drinking alcohol
- The speed at which your body processes alcohol (everyone processes alcohol differently)

Regardless of the *kind* of beverage you drink, the key is the amount of alcohol you have consumed over a period of time. **Each of the following drinks contain about the same amount of alcohol** (about $\frac{1}{2}$ ounce):

- 12-ounce beer

- 4-ounce glass of wine
- 1-ounce serving of 80-proof liquor (even if mixed with a soft drink)

Any one of these drinks can increase the average person's BAC by 0.02. If you have more than one drink in an hour, your BAC starts to rise, and only time will rid you of the effects of alcohol.

Alcohol Tests

According to the Massachusetts Implied Consent Law, every licensed driver in this state agrees to consent to a breathalyzer or blood test under certain circumstances. If you are stopped by a police officer who believes you are operating a motor vehicle under the influence of alcohol, the officer has the right to ask you to...

- Perform a field sobriety test
- Submit to a breathalyzer or blood test to calculate your BAC, if you have been arrested

If you take a breath test and you register a **BAC of 0.08 or higher**, you are operating above the legal limit. For drivers under 21, Massachusetts has a "zero-tolerance" law. This means a **BAC of 0.02** is above the legal limit if you are under 21.

Police officers are required to take away your license on the spot if you register an illegal BAC or if you refuse a breathalyzer or blood test.

An officer will take away your license immediately, give you a notice of suspension, and issue you a temporary license, which will become effective after 12 hours. This temporary license is valid for 15 days and gives you an opportunity to exercise your right to a license suspension hearing.

Under-21 Alcohol Offenses

According to state and federal accident statis-

Under-21 Suspensions for OUI	
BAC of 0.02 or higher	90 days
Refusing Breath Test	180 days–1 year

tics, **drivers under age 21 are twice as likely as most drivers to be involved in motor vehicle accidents in which alcohol is a factor. This is one reason that laws applying to under-21 drivers are more strict.**

Massachusetts has a “zero-tolerance” law, which means that if you are a driver under 21 and are found to have a BAC as low as 0.02 while driving, you *will* lose your license.

Young drivers cited for operating under the influence or for refusing an alcohol breathalyzer or blood test will have their licenses suspended. If you receive a license suspension, you must also complete an alcohol education program or **face an additional 180-day suspension (youths under age 18 face an additional 1-year suspension). This suspension will be in effect regardless of your court case.**

The law specifies that a JOL holder who is convicted of any of a number of serious motor vehicle offenses will receive an additional 180 days suspension for a first offense, and a one (1) year suspension for a second offense. (Note: both offenses need not be the same type). Those offenses include:

- Operating under the Influence
- Operating to Endanger
- Leaving the Scene of a personal injury or property damage accident
- Drinking from an Open Container of an Alcoholic Beverage
- Operating under the Influence Causing Serious Bodily Injury
- Motor Vehicle Homicide

By completing an alcohol education program, you will eliminate the 180-day suspension (if you

were over 18 at the time of the offense) and will reduce to 180 days the 1-year suspension (if you were under 18 at the time of the offense), in addition to the suspension already imposed and any penalty assessed as a result of your court case or any other law. If you fail to complete the program, you will be subject to the full suspension period. A reinstatement fee will also apply.

Buying, Possessing or Transporting Alcohol

If you are under 21, it is illegal to...

- Buy alcohol or have someone buy it for you
- Possess, carry, or transport alcohol unless accompanied by a parent or guardian

Violating either of these laws requires a 90-day to 1-year license suspension and possible fines and other penalties. **The penalty for buying or attempting to buy alcoholic beverages by a person under 21 has increased to 180 days.**

Open Container Law

You may *not* drink alcohol while driving or have an open alcoholic beverage inside your vehicle. If you are convicted of this offense, you will be fined \$100 to \$500. If you are under 21, you can be arrested, fined, and have your license suspended.

False or Altered Licenses/ Identification Cards

It is against the law to use a false license or ID, to alter a license or ID, or to use another person's license or ID. It is also against the law to use false information to obtain a license or ID. In most cases illegal use of these is a felony and serious penalties may apply. These penalties are not limited to an attempt to purchase alcohol. *M.G.L.c.90, §22(e) allows the RMV to suspend your license or right to operate in Massachusetts for 6 months. A conviction is not*

required. If you are convicted of this offense, your license will be suspended for 1 year.

Illegal Drugs, Medicine, and Other Controlled Substances

Massachusetts laws that define violations and penalties for operating under the influence of alcohol also apply to drugs. Almost any drug can affect your driving skills; illegal drugs, prescription medicines, and over-the-counter remedies can all decrease your ability to drive safely.

Marijuana

Smoking or ingesting marijuana impedes your responses to sights and sounds and therefore makes you dangerous as a driver. It lessens your ability to handle a quick series of tasks. As a result, marijuana smokers' most serious driving problems occur when they face unexpected events, such as a car approaching from a side street or a child running into the street from between parked cars. These driving problems get more severe after dark, because marijuana also causes a severe loss of night vision.

Remember, you can still be considered OUI with prescription drugs. It is illegal to operate a motor vehicle while impaired by any substance.

Other Drugs

Like marijuana, many other drugs and controlled substances can negatively impact your driving ability:

- Illegal hard drugs, like lysergic acid diethylamide (LSD), heroin, and opium, make you virtually unaware of and indifferent to your surroundings.
- Prescription sedatives and tranquilizers make you drowsy and, therefore, dangerous as a driver.
- Most medicines taken for colds, hay fever, or headaches can cause drowsiness. Pain killers and medicines containing codeine can be especially dangerous.
- Stimulants like pep pills, speed, cocaine, and diet pills may make you feel more awake and more aware for short periods, but these periods are inevitably followed by fatigue,

nervousness, dizziness, and a lack of concentration. These substances can also affect your vision.

- Inhaling controlled substances like solvents or glue vapors is not only a serious health hazard, but doing so can make you unable to operate a motor vehicle properly.

For prescription or over-the-counter medicines, make sure you read labels carefully and know the drugs' potential side effects. Ask your doctor or pharmacist if you're not sure.

Combining alcohol with other drugs dramatically increases the negative effects that either one would have on its own. Do *not* mix alcohol, drugs, and driving. It's a fatal mistake.

Drug Possession Offenses

If you are convicted of *any* drug offense, whether in Massachusetts or another state, your driver's license *will* be suspended. **Even if no motor vehicle was involved in the offense, the law requires you to lose your driving privileges for 1 to 5 years, depending on the conviction.**

Reasons for License Nonrenewal

When the time comes to renew your driver's license, the RMV will refuse your renewal request if you have...

- Unpaid fines for parking violations
- Citations for abandoned vehicles
- Outstanding excise tax due in your local community
- Outstanding court warrants
- Unpaid Fast Lane violations

Before you can renew your license, you must present official **release forms** showing that all fines and taxes have been paid to local communities or that outstanding warrants have been satisfied. For an outstanding court warrant, a recall

The RMV cannot serve you until you have cleared any outstanding problems.

If you have questions about child support, contact the Department of Revenue's (DOR's) Child Support Office at 1-800-332-2733.

notice from the court is required. No other documents will be accepted by the RMV.

Unpaid parking tickets must be paid to local cities and towns. Traffic violations may be paid by credit card through the RMV Phone Center.

The RMV can only collect Fast Lane violations that are 60 or more days delinquent. This means that at least 60 days has passed since the date of violation issuance.

For more information, call Fast Lane Violation Processing Center at 1-877-627-7745

License Suspension

If your license is suspended or revoked, you will not be able to renew your license. *See the License Suspension or Revocation section of this chapter for more information.*

Safety First

Motor vehicle crashes are the leading cause of death among children and young adults in this country, and statistics show that about one in three Americans will be injured or killed in a motor vehicle crash.

One in three.

Whether or not you are driving, chances are that sometime during your life you will be involved in a motor vehicle crash. It does not matter how skillful you are or how much driving experience you have. You can never predict when and where a crash might occur.

This chapter explains the laws that address motor vehicle safety and suggests a few good practices to help you avoid serious trouble.

CHAPTER 3

Passenger Vehicle Safety

Every vehicle must pass an annual safety and emissions inspection. For details, see *Chapter 6*.

Certain equipment and vehicle modifications are illegal. For more information, see *Chapter 6*.

Passenger vehicles, including vans and pickup trucks, must have a number of safety equipment items in good working order. Each passenger vehicle must have safety belts for all occupants, a mirror, a horn, a lock for the engine's ignition, windshield wipers, an exhaust muffler, and two braking systems: a foot brake and a parking brake.

Each passenger vehicle also must have certain lights for driving in darkness or poor visibility. The vehicle must have two approved, correctly aimed white headlights in the front; two approved red lights in the back; and directional signals. In addition, the vehicle must have three red stop lights (brake lights) in the rear and a small white light to illuminate the rear license plate.

If the directional signals or brake lights on your vehicle stop working properly, you must have them repaired immediately. In the meantime, you must use the appropriate hand signals when turning or slowing (see *Chapter 4* for hand-signal diagrams).

A passenger vehicle may be equipped with a spot light, but the spot light may be used only to read signs or to serve as an emergency light when the vehicle's headlights are not working. At a distance of 30 feet from your vehicle, a spot light may not shine more than 2 feet above the roadway.

After-market glass tinting is allowed on passenger vehicles, but with restrictions. Side and rear windows may be darkened up to 35 percent. Unless the RMV issues you a special medical waiver, tinting the windshield is a traffic offense that carries a fine and a possible license suspension.

Safety Belt Law

Massachusetts law requires every occupant of a private passenger (Class D) motor vehicle—including vans and small trucks—to wear a properly fastened and adjusted safety belt when traveling on any roadway. This applies to drivers and passengers, adults, and children aged 13 and over.

- Any driver who operates a motor vehicle without wearing a safety belt or any passenger 16 years old or older who is not wearing a safety belt is subject to a \$25 fine
- For each occupant between the ages of 12 and 16 who is *not* wearing a safety belt, the driver can be fined an additional \$25 per person

This law will be enforced if you are stopped by a police officer for a possible traffic violation. Certain people are exempt from this law:

- Drivers and passengers of vehicles manufactured before July 1966
- Operators of taxis, liveries, tractors, buses, and trucks with gross weights of 18,000 pounds or more
- Passengers of authorized emergency vehicles
- Any rural carrier of the U.S. Postal Service who is operating a motor vehicle on duty
- Anyone who is physically unable to use a safety belt. In this case, the person's disability must be certified by a physician

Because a crash can happen at any time, the best way to protect yourself while riding in a motor vehicle is to wear your safety belt at all times. For drivers and passengers alike, the simple fact is that *safety belts save lives*.



An air bag is more effective and safer if you are wearing your safety belt.

For more information on the safety belt law, call 1-800-CAR-SAFE.

A child's height and weight determine which child safety seat is right for the child, *not* the child's age. Each seat is different, check manufacturer's instructions for exact height and weight limits.

The safest places for children to ride are in the back seat and, whenever possible, in the middle. Infant seats must face the rear of the vehicle.

To locate a certified Child Passenger Safety Technician to assist you to properly install a child safety seat, please call (617) 973-8900 or go to www.mass.gov/ghsb.

Guide to Child Safety Seats	
Infant seat	up to 20 pounds
Toddler convertible seat	20-40 pounds
Booster seat	40-80 pounds

Child Passenger Restraint Law
The Child Passenger Restraint Law requires infants and small children 12 years of age or under to ride in federally approved child passenger restraints until they...

1. Are at least 5 years old; and
2. Weigh over 40 pounds.

Children who are between ages 5 and 12 *and* who weigh more than 40 pounds must use booster seats or safety belts. Violating this law carries a \$25 fine.



The types of restraints allowed under the law include infant seats, toddler convertible seats, booster seats, and devices for children with special needs. Any child restraint you use should carry a sticker that says the restraint meets the U.S. Department of Transportation's (DOT's) Federal Motor Vehicle Safety Standard No. 213.

If your vehicle has a front-seat, passenger-side air bag, *never* place a rear-facing child safety seat in the front passenger seat.

How Safety Belts Work

Safety belts, especially a combination of lap and shoulder belts, keep your body from being tossed around inside your vehicle or from being thrown out of the vehicle when a collision

occurs. When used correctly, lap and shoulder belts reduce the risk of death and serious injury in a crash by about 50 percent.

In a crash, a properly fastened safety belt can help in many ways:

- **Protect you from violently hitting the windshield, dashboard, steering wheel, or other hard surfaces inside the vehicle.**

If you are traveling in your vehicle without wearing a safety belt and your vehicle collides with something head on, your vehicle will stop moving, but your unrestrained body will continue traveling at the vehicle's impact speed until it hits something hard, like the windshield. In addition to keeping you from hitting something hard, a safety belt will keep you from colliding with other occupants of the vehicle.

- **Keep you from being thrown out of the vehicle.** With lap and shoulder belts, your chances of surviving a crash are five times better, because you stay inside the protection of your vehicle.
- **Help the driver stay seated and maintain control of the vehicle to avoid a more serious crash.** The driver who wears a safety belt stays behind the wheel no matter what happens. If the vehicle were hit from the side, the safety belt would keep the driver from being pushed across the seat.

A lap belt should be fastened low, snug, and flat over the hips, not twisted. A shoulder belt should be worn across the shoulder and chest. A shoulder strap should *never* be worn under the arm or across the face or neck.

Hitting the windshield at 30 mph is like falling from the third story of a building and hitting the pavement.



The *right* way to wear a safety belt.



The *wrong* way to wear a safety belt.

Myths About Safety Belts

The truth is safety belts save lives and reduce the risk of injury in a crash. Stories about the “dangers” or “hassles” of safety belts are simply unfounded.

A common cause of death and injury to children is being crushed by unbelted adults.

"I'll be trapped inside the car if I'm wearing a safety belt in a crash."

You may have heard stories of cars catching fire or sinking in water. These types of crashes rarely happen, but if you were involved in one, wearing a safety belt would increase your chances of *not* hitting your head and losing consciousness. If you remain conscious during and after such a crash, you'll at least be able to unbuckle your safety belt and get out. You can be trapped in your vehicle whether you're wearing a safety belt or not. The fact is, even if you're upside down, it takes less than a second to unfasten your belt.

"My car has air bags, so I don't need to wear a safety belt."

An air-bag system is a *supplemental* safety device and is designed to work *with* safety belts, not instead of them. You still need to wear a safety belt whenever you drive. Furthermore, practically all air bags are designed for front-on collisions *only* and do not offer protection in collisions from the side or rear.

"I'm only driving a short distance. I don't need to wear my safety belt."

Most motor vehicle crashes happen within 25 miles of home. In fact, 8 out of every 10 accidents occur when drivers are going 40 mph or less. Don't take chances. Wear your safety belts whenever you drive.

"I'm only running to the store. It's too much trouble to put the kids in child safety seats."

Motor vehicle crashes are the most preventable cause of death in children. Most kids killed in car crashes would have survived had they been fastened properly into child safety seats. Take the extra minute to buckle your children into their seats before you set off on any drive.

Air-Bag Safety

When combined with lap and shoulder safety belts, air bags are very effective in saving adult lives in motor vehicle crashes. To maximize air

bag effectiveness and safety, however, you should follow certain procedures.

- *Children in back.* Infants in rear-facing child safety seats should *never* ride in the front seat of a vehicle with a passenger-side air bag. With or without air bags, all children are safest when riding, properly restrained, in the back seat.
- *Child safety seats.* Infants and young children should always ride in age- and size-appropriate child safety seats. For more information, see the *Child Passenger Restraint Law* section previously in this chapter.
- *Air bags do not eliminate the need for safety belts.* To ensure the safe and effective operation of air bags, you should always wear both lap and shoulder belts. For more information, see the *Safety Belt Law* and *How Safety Belts Work* sections of this chapter.
- *Move the front seat back.* To allow for proper operation of your vehicle, you should position the front seat as far back from the dashboard as is practical. Also, if your front passenger seat operates independently, you should move it as far back as possible.

Following these simple tips will improve your chances—**and those of your children**—of surviving and avoiding serious injury in a crash.

Inside the Vehicle

When driving, you must make sure that nothing interferes with your ability to see the road, react to situations, or operate your motor vehicle properly.

Distracting Objects

You must have no objects inside your vehicle that might interfere with your ability to drive safely. Nothing should block your view of the road, either ahead of you or through your mirrors. Be careful that nothing near your feet can roll and get in the way of your pedal controls

(the accelerator, clutch, and brake).

Cellular Phones and CB Radios

You are allowed to use a cellular (mobile) telephone while driving as long as you keep one hand on the steering wheel at all times and can operate your motor vehicle safely.

Headphones

It is illegal to wear a radio headset or other types of headphones while driving.

Televisions

The law requires that any television installed in a private passenger vehicle must be located *behind* and not visible to the driver. This ensures that a driver cannot be distracted by a television screen, even when looking sideways out of the vehicle.

Truck Beds

With very limited exceptions, and never at speeds greater than 5 mph, children under 12 years old are not allowed to ride in the beds of pickup trucks.

Driving Defensively

mistakes. Regardless of how many years you've been driving, at some point you will have to face equipment failures, bad weather conditions, unskilled drivers on the road, unpredictable pedestrians, and drivers who ignore traffic regulations.

The best way to prepare yourself for unpredictable events is to **drive defensively**.

- Always maintain good vision ahead and around your vehicle.
- Stay alert and be prepared to react to the unexpected.
- Maintain a safe distance around your vehicle.
- Drive at the right speed and know when to slow down and stop.

- Always wear your safety belt.
- Do not drive if you have been drinking, are on medication, or are very tired.
- Keep your vehicle in good working order.
- Obey the rules of the road and give the right-of-way when necessary.

As a defensive driver, you should constantly look ahead of and around you, and always check your mirrors. Be aware of the road conditions or possible hazards that lie in front, to the sides and behind you.

- Take in the whole scene in front of you. Scan the roadside for vehicles stopping ahead or entering from the side, pedestrians, or people getting in and out of parked cars.
- Anticipate mistakes or unsafe maneuvers from other drivers.
- Watch for reverse lights of any vehicle ahead of you.
- Pay close attention to crosswalks. Don't rely on traffic signals alone to alert you to your driving environment. Motorists and pedestrians may ignore traffic signals.
- Always pay close attention when driving in the vicinity of playgrounds, schoolyards, and shopping center parking lots.
- Remember that the right-of-way is something you give. A big part of driving defensively is giving the right-of-way to prevent unsafe traffic situations.

Your Health and Physical Condition

Have your eyesight checked every year or two, and correct any vision problems immediately. As you age, you may find the clarity of your vision decreasing, or you may find it more difficult to see at night.

Because you must be in control of your vehicle at all times, it is important that you remain alert and responsive. You not only need good vision; you need good hearing as well. There are cer-

tain situations in which you should never drive:

- When you have been drinking alcohol.
- When you have taken any prescription drug or over-the-counter medication that can cause drowsiness.
- If you are under the influence of any drug.
- When you are very tired.
- When you are emotionally upset. Emotional states like anger and depression can cause you to drive carelessly.
- On bright, sunny days wear sunglasses.

Checking Your Vehicle's Condition

The law requires you to have your passenger vehicle or motorcycle inspected for safety and/or emissions every year (see Chapter 6). However, you should always follow the routine maintenance procedures recommended by your vehicle manufacturer. Each time before you enter your vehicle or mount your motorcycle, make a quick visual check for low tire pressure or any damage you may not have noticed before.

The distance between the edge of a penny and the top of Lincoln's head is about 2/32 of an inch. A quick way to check your tire tread is to slide a penny into a tread groove. If you can see Lincoln's head, your tires are worn out.

Brakes and Tires

Pay close attention to changes in how your vehicle responds when braking. If you think you have a problem, have your brakes inspected immediately. If you feel the vehicle pull to one side when you brake, your brakes may need adjustment or repair.

Check your tires for proper inflation and wear. Rotate your tires as often as is recommended by the vehicle or tire manufacturer. It is dangerous and illegal to drive a vehicle with extremely worn or damaged tires. Tires must have at least 2/32 inches of tread depth in the proper grooves and no fabric breaks or exposed cords.

Steering

Your steering wheel should not feel so loose that you notice a delay between when you turn the

wheel and when your tires respond. With power steering, you should check the fluid level regularly. If your vehicle makes a high-pitched noise when you turn, you should have your power steering inspected.

Lights and Glass

Make sure to check your headlights, brake lights, and turn signals periodically. Keep your lights clear of dirt, snow, and ice. Keep your windows and mirrors clean. Change your windshield wipers if they streak or fail to clear your windshield properly.

Safe Distances Around Your Car

Always keep enough space between your vehicle and others. Keep a cushion of space on all sides to give yourself room to stop safely or avoid hazards.

- When driving behind another vehicle, use the "2-second" rule for keeping a safe distance. On the road ahead, pick a fixed object, like a sign post or a tree. When the vehicle in front of you reaches that object, count out "one one-thousand, two one-thousand.....". If you reach the object before you count two, you are following too closely. Slow down until you've put enough distance between you and the other vehicle.
- If you are following a motorcycle, allow even more distance than you would for another vehicle.
- Allow extra space between your vehicle and heavy equipment (for example, dump trucks, tractors).
- Never cut in front of heavy equipment or tractor-trailers. These vehicles carry more weight and need much more space to stop safely.
- Never tailgate a vehicle ahead of you. Tailgating is illegal and the main cause of rear-end crashes.

The 2-second rule is a minimum safe distance when road conditions are clear and dry and traffic is moderate but moving. Count 3 or 4 seconds for added safety, and allow more distance when traffic allows.

- If a tailgater is following you, move to another lane if possible or pull to the side of the road to let the tailgater pass.

Allow yourself an extra cushion for problem drivers and problem situations:

- Blind driveways or obstructed-view driveways or roads
- Drivers backing out of parking spaces or driveways
- Children playing in nearby yards or near the roadside

Braking and Stopping

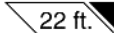
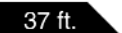
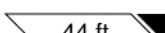
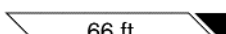
Look well ahead of your vehicle so you have enough time to brake and stop safely if something gets in your path. The time it takes you to react, think, and apply the brakes is called reaction time.

On average, it takes about three-quarters of a second for you to react to a situation and step on the brake pedal. This time can also be measured in feet traveled, or reaction distance.

For example, at 50 mph, your vehicle would travel another 55 feet along the pavement in the three-quarters of a second it would take you to react. Once you apply the brakes, it may take you another 160 feet or more to come to a complete stop.

This would be your average braking distance on dry, level, unobstructed pavement.

Sample stopping distance statistics from *How to Drive, A Text for Beginning Drivers* by the American Automobile Association (Ninth Ed.)

MPH	Stopping Distance		Total
			59 ft.
			156 ft.
			292 ft.
Total Stopping Distance			

Your total stopping distance would be about 215 feet (55 feet + 160 feet). If roadway conditions

were anything other than clear and dry, your stopping distance would be greater.

Assuming your brakes and tires are functioning properly and the roadway is dry and level, remember these facts:

- If you are traveling at 60 mph it takes an average of 292 feet (almost a whole football field) to react to a hazard, step on the brake, and come safely to a stop.
- At just 30 mph, your total stopping distance might be 104 feet.

These figures are presented for educational purposes only, to illustrate that motor vehicles have a great deal of momentum when in motion and require much more distance to stop safely than you imagine. Your actual stopping distances will vary widely with road, weather, and vehicle conditions.

Follow some useful braking tips:

- Give others plenty of warning. Brake early and gently when preparing to stop or turn.
- Do not “ride” your brakes, which is letting your foot rest slightly on the brake pedal while driving.
- If your vehicle has antilock brakes, never pump the brakes.
- Always slow down when approaching a curve or an area of road where you cannot see clearly ahead.

Using Your Horn, Headlights and Emergency Signals

It is important to know how to operate your vehicle's safety equipment properly.

Use your horn to:

- Warn pedestrians or other drivers of possible trouble
- Avoid accidents

Do not use your horn to:

- Express anger or complain about other drivers' mistakes
- Try to get a slower driver to move faster
- Try to get other vehicles moving in a traffic jam

Use your headlights:

- In rain, snow, fog, or other inclement weather that makes it hard to see
- The law required you to use your headlights from one-half hour after sunset until one-half hour before sunrise
- Anytime you have trouble seeing other vehicles
- To flash another vehicle to alert the driver to turn on their headlights

Use your emergency lights and signals when your vehicle breaks down, so that other drivers can see it. Make sure you get your vehicle as far to the side of the road as you can. For your own safety, stay off the road. Never take chances changing a flat tire in a traffic lane. Wait for help to arrive.

You can also use your emergency lights to warn drivers behind you that a traffic accident or major hazard lies ahead. Give other drivers as much warning as possible.

Night Driving

Nighttime driving is more dangerous than daytime driving because you cannot see as well. The law requires you to use your headlights from one-half hour after sunset to one-half hour before sunrise. Always use extra care when driving at night by doing the following:

- Do not drive when you are tired or drowsy.
- Drive more slowly at night than you would in daylight, particularly when you are unfamiliar

with the area. Drive at a speed that allows you to react and stop safely within the distance you can see ahead.

- Keep more space between your vehicle and other vehicles than you would normally.
- Switch your interior rearview mirror to the "night" position. This will cut down on the glare from headlights behind you. Keep interior dome lights off.
- To reduce the effects of glare from oncoming headlights, do not stare directly at the headlights. Instead, look to the lower right side of your traffic lane.
- Make sure your windows and headlights are clean.
- If another driver flashes headlights at you, your headlights may not be on when they should be, or you may not have lowered your high beams.

High Beam Headlights

In normal conditions, high beam headlights allow you to see about 350 feet ahead. Low beam headlights allow you to see about 100 feet ahead.

- Only use high beams in dark or remote areas where you cannot see the road surface ahead.
- If you are driving with your high-beam headlights, you must lower your headlights to low beam when you are within 500 feet of an oncoming vehicle or within 200 feet of a vehicle traveling ahead of you.
- If an approaching driver is using high beams, you may flick your headlights to remind the driver to dim his or hers. If the oncoming driver does not switch to low beams, stay to the right and avoid the temptation to turn on your high beams.

Driving in Rain or Fog

Rain and wet roads make it harder to start, stop,

and turn. Hard rain, fog, and mist can also reduce your visibility dramatically. You are advised to use your headlights whenever you are using your windshield wipers.

Slow down at the first sign of rain. Many roads are most slippery when rain first mixes with road dirt and oil, forming a greasy film on the road's surface. If a road is slippery, your tires can lose traction and, in a heavy rain, your car can hydroplane.

Hydroplaning, which results from a combination of road conditions, water, and speed, means your tires are riding on a layer of water and have lost all contact with the road. If you feel your vehicle start to hydroplane, you're driving too fast for conditions. Slowly ease up on the gas pedal. Never hit the brakes or turn suddenly. You may lose control and go into a skid.

Following are some useful driving tips for driving in rain or fog:

- Increase the space between you and other vehicles. You need more distance to stop your vehicle. Be prepared to stop quickly, and keep within the limits of what you can see ahead.
- Be careful of wet leaves on the road. They can be as slippery as ice.
- Make sure your windshield wipers and window defoggers are in good condition.
- In fog, use your low beam headlights to reduce glare.
- Always use your directional signals.
- If it is hard to see the pavement or sign posts, slow down and look for road edge markings to guide you.
- Avoid driving through puddles. Wet brakes do not work properly. If you drive through a large puddle, apply your brakes lightly as soon as you can to dry them until you feel them working normally again.

Winter Driving

Driving in winter is probably the most difficult and hazardous situation for both new and experienced drivers. You should practice driving in winter conditions, because motor vehicles handle much differently on ice and snow than they do on warm, dry pavement.

- Reduce your speed according to road conditions. Drive cautiously and accelerate gently.
- Never lock your brakes on icy roads. You will lose steering control. If you do skid, remember to **turn into the direction of the skid** (see Driving Emergencies in Chapter 5).
- Increase the space between your vehicle and others. You need more distance to stop safely on slippery surfaces.
- Because the earth does not insulate them, bridges and highway overpasses tend to freeze before the rest of the road and can be very slippery.
- If it is snowing, start slowly. Test your brakes by tapping them gently to see how much traction your tires have.
- Make sure your windshield wipers and defroster are in good condition.
- Before driving, remove ice and snow from your vehicle. Clear all windows, windshield wipers, headlights, and brake lights. Clear ice and snow from your vehicle's roof so they do not blow off while you're driving and create hazards for drivers behind you.
- Keep your fuel tank at least half full to prevent the fuel line from freezing.
- Make sure you fill your windshield washer reservoir with a cleaning solution that won't freeze.
- Keep a blanket, flashlight, and small shovel in your trunk.

Pedestrians

At least one in five motor vehicle deaths involve a pedestrian. Take extra care to look for pedestrians when you drive. Be especially careful of...

- **Children** – Children are often the most unpredictable and hardest to see. Be cautious when driving near school zones, parks, bus stops and playgrounds.
- **Joggers and Skaters** – The popularity of jogging and in-line skating has created more pedestrian hazards. Joggers and skaters do not always obey traffic signal and crosswalk rules.
- **Pedestrians, when you're backing up** – Use more than your mirrors when in reverse. Turn your head and look out the windows before you begin to back up. If children are nearby when you are backing out of a driveway, get out of your vehicle and check behind it.

Remember, the law says that you must slow down and stop if necessary if a person is walking in the street you are traveling on. Always look ahead for places where pedestrians may be in the road but not visible, such as around a curve, at the top of a hill, or between parked cars.

Bicycles and Mopeds

Except on limited-access or express state highways where prohibited by posted signs, bicyclists and moped riders have the same rights to use the public roadways as any other drivers. They must obey the same traffic control and right-of-way laws. But, like pedestrians, these riders are often difficult to see in traffic and are poorly protected against being hit by motor vehicles.

Be safe, when passing a bicycle or moped:

- Reduce your speed. The wind turbulence or

air pressure change caused by your passing vehicle can throw a rider off balance.

- Leave plenty of room between your vehicle and riders.
- If you have too little room in your lane to pass safely, you must wait for oncoming traffic to pass or for the lane to widen.

At night, you should dim your headlights if you meet an approaching bicyclist. Be aware that a bicyclist or moped rider might react to a road hazard and swerve suddenly, just like any other driver. Remember, you should respect the rights of a bicyclist to use the roadway, as you would respect the rights of another driver.



When parked on the side of a roadway, remember to check carefully for approaching bicycles or mopeds before opening your vehicle door.

Motorcycles

Check Twice, Save A Life Motorcycles Are Everywhere

Motorcycles are motor vehicles, just like cars and trucks. In recent years the number of motorcycles registered in the Commonwealth has grown steadily. Although the typical riding season lasts from March through October, there are motorcyclists that ride throughout the year. By being aware of their presence and operating characteristics, you can share the road safely and courteously.

Although motorcycles travel as fast as cars and trucks, riders are exposed to additional dangers on the road, including weather and changing road conditions. Because motorcycles lack the safety features of an automobile, the risk of injury to a motorcyclist involved in a crash is much greater.

- **Changing lanes** – While driving on the highway, pay particular attention during lane changes and merges. Motorcyclists are often hidden in blind spots due to their size. Always check your mirrors and blind spots for motorcycles. Signal early, and check twice before changing lanes.



It is illegal for a motorcycle operator to weave between lanes at any time.

- **Following Behind** – Leave plenty of space between your vehicle and a motorcyclist in front of you. Use a 4-second following distance (compared to a 2-second for other motor vehicles).
- **Sharing lanes** – Motorcycles have the same right as other vehicles to use the full lane width. Although a motorcycle may only use a small portion of the road, never share a lane of travel. Motorcyclists often move within a lane to prepare for an anticipated traffic maneuver or to avoid road debris, potholes or surface oil. **Never move into the same lane space as a motorcycle, even if the lane is wide and the cyclist is riding to one side.** Crowding into a lane with a motorcycle is illegal and extremely dangerous.
- **Turning at Intersections** – Cars or trucks turning left in front of an oncoming motorcycle cause a high number of crashes. While turning at intersections, pay particular attention to motorcycles in the area. Because motorcycles are smaller and often obscured by other traffic, it is sometimes difficult to accurately judge their speed and position. Although you may have enough time to turn, an approaching motorcycle may not have time to safely adjust speed. Allowing the motorcycle to clear the intersection first will allow both you and the rider to move safely.
- **Road and Weather Conditions** – Conditions that are minor problems for cars and trucks are often major hazards for motorcycles. Gravel, potholes and slippery surfaces can force a motorcyclist to change speed and direction suddenly. Inclement weather requires increased stopping distance for motorcycles. Please allow sufficient room both in front of and behind a motorcycle should sudden stopping be required.

By following these few simple tips, you can share the road safely with motorcycles and other motor

vehicles, making the Commonwealth safer for all.

Motorcycle Safety

number of safety equipment items in good working order. These items include a horn, rear-view mirror, fenders, a muffler, and brakes. One left mirror is required by law, but two are recommended. Use the mirrors constantly to check traffic to the rear, especially before stopping.

The front of your motorcycle must be fitted with a white, properly aimed headlight. When it is attached to a motorcycle, a sidecar must have a white, forward-facing light. The law also requires your motorcycle to have a rear, red tail light, a stop light, and a white light to illuminate the license plate. You should make sure that both brake controls light up the stop (brake) light.

Your motorcycle seat or saddle must be secured properly, and handlebars must not be above your shoulders when you are seated properly.

Every motorcycle must pass an annual safety inspection. For details, see Chapter 6.

Riding Gear

As a motorcyclist, you should dress for comfort and protection. Riding gear provides protection from the elements and can reduce your chances of serious injury in a crash.

State law requires motorcyclists and their passengers to wear helmets that meet the current U.S. DOT's Federal Motor Vehicle Safety Standard No. 218. Labels indicating that a helmet meets this standard must be placed both inside and outside the helmet. DOT standard helmets can prevent or reduce head injury in case of a crash.

Eyeglasses, goggles, or a protective face shield *must* be worn, unless the motorcycle has a windshield or a screen. Ideally, you and your passengers should always wear eye protection.

You should wear long sleeves and full trousers to help maintain body heat and moisture, protect against sunburn, and reduce skin abrasion in case of a crash. Heavy clothing provides more protection if it fits properly. Leather and modern abrasion-resistant synthetic materials provide the best protection. To make yourself more visible to drivers, use retroreflective tape to brighten darkly colored riding gear. In addition, you should wear full-fingered leather gloves to protect your hands and better grip the motorcycle's hand controls.

To ensure good footing and protection against hot metal or moving parts, you should wear sturdy, over-the-ankle shoes, rather than sneakers or sandals. Boots provide the best protection and offer additional ankle support.

If you have a Class M learner's permit, not a full license, you may *not* carry a passenger on your motorcycle.

Carrying a Passenger

Before carrying a passenger on your motorcycle, you should have enough experience to feel confident about riding on your own. It is important to understand that carrying a passenger dramatically changes the handling characteristics of any motorcycle. Practice carrying a passenger in a controlled area, like an isolated parking lot, before trying to ride double on a public street for the first time.

Your passenger should wear the same riding gear as you do, and he or she *must* wear a DOT standard helmet and eye protection. Your passenger should sit behind you on the motorcycle and never ride sidesaddle. Your motorcycle must have separate footrests, a handstrap, and a securely fastened passenger seat, unless it has a sidecar that is designed to carry a passenger.

Rider Training

More than 90 percent of the motorcyclists involved in crashes either teach themselves to ride their motorcycles or learned from family or friends. To help reduce the number of motorcycle-related fatalities and injuries, it is strongly recommended that you seek

professional, licensed motorcycle riding instruction before pursuing your Class M driver's license.

The Registry of Motor Vehicles sponsors the Massachusetts Rider Education Program (MREP). Beginner and experienced rider courses are available, and graduates of both courses are exempt from the RMV's road test for a Class M license.

**For more information
on the Massachusetts
Rider Education
Program, 617-351-9585
or go to
www.mass.gov/rmv**

**A course certificate
entitles you to a
limited 10 percent
discount on your
motorcycle
insurance.**

Rules of the Road

All travel on public roadways is controlled by a system of signs, signals, pavement markings, and driving laws. No matter what type of vehicle you are driving or what kind of road you are driving on, you *must* obey these “rules of the road.”

You must learn how to drive properly on

- Streets, roads, alleys, and avenues
- Traffic rotaries (circles)
- Highways, expressways, and freeways

You must also learn how to drive safely when you come upon

- Special crossings
- Intersections
- Traffic hazards

CHAPTER 4

Speed Limits

Driving too fast (speeding) is one of the major causes of motor vehicle crashes. Because it's a safety issue, speed laws in Massachusetts are strictly enforced and carry severe penalties (see *Chapter 2*). The faster you drive, the greater the distance you need to react to a situation and to stop your vehicle safely.



If you were driving 40 mph in a heavy rainstorm on a highway with a posted speed limit of 50 mph, you could be issued a citation for driving too fast for conditions.

1. The fundamental speed law for motor vehicles is that **you must never travel faster than is reasonable and proper for the current conditions and public safety.**

Regardless of what a posted speed limit sign says, how fast you drive *must* depend on several factors:

- **Traffic conditions**—number of vehicles on the road and the speeds at which they are traveling
- **Road conditions**—quality of the road surface (rough or smooth); the amount of water, ice, or snow on the road surface; and the width of the roadway
- **Weather conditions and visibility**—adverse situations, including rain, snow, ice, dust, and wind
- **Pedestrians or bicyclists**—people who might be traveling along or crossing the road

Again, regardless of any posted speed limit, you must decrease your speed if any hazard exists.

2. Never drive faster than the **posted speed limit**. Sample speed limit signs appear in the margins. All speed limits are based on ideal driving conditions. If conditions are hazardous, you must drive slower.



Most roadways in the state have posted speed limits. Be aware of changes in speed limits as you drive on different kinds of roads or enter and exit highways. Limited-access highways, like the interstate routes, have posted speed limits ranging from 50 to 65

mph, while smaller highways have limits of 55 mph or lower.

Also, be aware that some highways post **minimum** speed limits as well. In Massachusetts, the minimum speed on interstate and limited-access highways is 45 mph.

3. Unless posted otherwise, **your speed would not be considered reasonable and proper if you were driving over...**

- 20 mph in a school zone
- 30 mph in a thickly settled or business district
- 40 mph outside a thickly settled or business district
- 50 mph on a highway outside a thickly settled or business district

A “thickly settled district” is an area in which houses or other buildings are, on average, fewer than 200 feet apart.



School Zones

The speed limit on roads near schools, 20 mph, can be posted in various ways. The signs stating such limits may be accompanied by flashing yellow lights or posted for certain hours of the day. Look closely for signs saying you are approaching or entering a school zone.

When entering a school zone, drive carefully. Be aware of children crossing the street or riding bicycles. Look out for school safety patrols or crossing guards.



Traffic Signals

Traffic signals are lights that control the movement of vehicles and pedestrians, usually at intersections. You must know what each light means and obey its signals at all times.



Motor Vehicle Signals

Traffic signals typically consist of three round lights: red, yellow, and green, from top to bottom. There are other types of signals, however, such as single flashing lights or colored arrows.



Steady Red

A steady red light means “stop.” Do not go until the light turns green. You may make a right turn on a red light *only* after coming to a complete stop, then yielding to pedestrians or other vehicles in your path. You may *not* turn on red if a **NO TURN ON RED** sign is posted.

If you are traveling on a one-way street and turning left onto another one-way street, you are allowed to turn left on a red light. Come to a complete stop and yield to pedestrians and other vehicles before turning.

Steady Red Arrow

A steady red arrow means the same as a steady red, circular signal (*see the preceding Steady Red section*), but a steady red arrow applies only to vehicles intending to proceed in the direction of the arrow. The same rules for “turning on red” apply.



Flashing Red

A flashing red light means the same as a **STOP** sign. Come to a complete stop. Obey the right-of-way laws and proceed when it is safe to do so. If a white stop line or crosswalk line is painted on the pavement, you must stop **before** the line. When there are no pavement markings you must stop as close to the intersection as needed to view traffic in both directions without entering the intersection.



Steady Yellow

A steady yellow light means the traffic signal is changing from green to red. You *must* stop if it is safe to do so. If you are already stopped at an intersection or a stop line, you may *not* proceed.



Flashing Yellow

A flashing yellow light is a warning. Proceed with caution, and stay alert. Look both ways when crossing an intersection.

Steady Green

A steady green light means “go,” but only after you have yielded to other vehicles, bicycles, or pedestrians in the road. If you are crossing an intersection, make sure you have enough room to make it completely through. Never block an intersection. You may make a turn as long as you have enough space to complete the turn and avoid creating a hazard. Look out for drivers who are not obeying traffic signals or are racing through intersections.



Green Arrow

A green arrow means you may make a “protected” turn in the direction of the arrow. As long as a green arrow displays for your turning lane, pedestrians and oncoming vehicles should be stopped for red lights. Look closely for signs saying you may turn *only* when given the green arrow.



Traffic Lights Not Working

If traffic signals are not working as they normally do, they will simply flash red or yellow lights. In these cases, follow the rules for flashing lights. If signals are blacked out and not functioning, you must treat the intersection as having stop signs in all directions. Proceed when it is safe to do so.



Pedestrian Signals

Special lighted signals are often used at crosswalks to indicate when pedestrians may cross a roadway. Pedestrians must obey the orange **DON'T WALK** and white **WALK** signals.

Laws for Drivers

- You must yield to any pedestrians entering or using a crosswalk in your travel path.
- Never let your vehicle block a crosswalk.
- You must yield to pedestrians if your traffic signal is *red* or if it is *red* and *yellow*.
- Never pass a vehicle that has stopped or is slowing for a pedestrian.





Laws for Pedestrians

- Use a crosswalk if one is available.
- At crosswalks with pedestrian signals, use the push button on the signal pole and wait for the **WALK** signal. Intersections without push buttons will give you **WALK** signals automatically.
- Before you cross a roadway, stop at the curb and look left and right for traffic. *Be alert.* Look out especially for cars turning onto the road you are crossing.

Traffic Signs

Traffic signs control the flow of traffic, warn you of hazards ahead, guide you to your destination, and inform you of roadway services. The shapes (see page 85) and colors of traffic signs are meaningful. Sign colors mean the following:

RED—stop or prohibition

GREEN—direction, shows where you can go

YELLOW—general warning

BLACK/WHITE—regulation

BLUE—motorist service (e.g., gas, food, hotels)

BROWN—recreational, historic, or scenic site

ORANGE—construction or maintenance warning

Know signs by their appearances so you can recognize them at a distance.

Stop and Yield Signs



The **STOP** sign always means “**come to a complete halt**” and applies to each vehicle that comes to the sign. You must stop before any crosswalk or stop line painted on the pavement. Come to a complete stop, yield to pedestrians or other vehicles, and proceed carefully. Simply slowing down is not enough. If a **4-WAY** or **ALL WAY** sign is added to a **STOP** sign at an intersection, all traffic approaching the

intersection must stop. The first vehicle in the intersection or four-way stop has the right of way.

When you see a **YIELD** sign, slow down and be prepared to stop. Let traffic, pedestrians, or bicycles pass before you enter the intersection or join another roadway. You must come to a complete stop if traffic conditions require it.



Regulatory Signs

The United States is now using an international system of traffic control signs that feature pictures and symbols rather than words. The red-and-white **YIELD** and **DO NOT ENTER** signs are examples, and you've probably seen signs that use a red circle with a diagonal slash. These signs prohibit access or movement. When you see one, think of the word *no*.



No right turn

Warning Signs

Yellow warning signs alert you to hazards or changes in conditions ahead. The road layout may be changing, you may be approaching a school zone, or you may need to be aware of some special situation ahead. Slow down and obey the sign. Disregarding a warning sign is not only dangerous, it is against the law.

Guide Signs

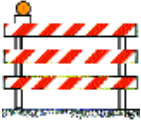
In the “guide signs” category you’ll find route markers, distance-and-destination signs, and informational signs. Green signs give highway directions and guide you through highway interchanges. Blue signs list motorist services, like gas, food, and lodging. Brown signs direct you to public recreational areas, state and national parks, historical points of interest, and scenic sites.

In Massachusetts, numbered state highway routes are posted on white, rectangular signs with black letters and borders. Interstate highway signs are blue, red, and white shields.

Construction and Maintenance Road Work Warnings



Drum



Barricade



Tubular
marker



Traffic
cone

When people are repairing or constructing roadways, their work areas are protected from traffic by orange warning signs and other devices. These signs and devices may be mounted with warning flags or yellow flashing lights. These warnings help to guide pedestrians and vehicle traffic safely through a work zone and past any hazards.

Many of these warning signs use the same symbols as yellow warning signs, but you should take extra care when orange signs are posted. Traffic and road conditions around work zones often change quickly.

In addition to posting orange warning signs, road work crews can use a number of “channeling” devices to keep traffic in lanes and away from hazards. Sometimes, electric warning arrow signs will direct traffic flow near a work zone.

Continued on Page 89



Lighted directional signs

**Know traffic signs
by their shapes**



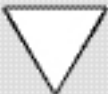
Stop



School Zone



Guide/Information



Yield



Regulation



No Passing Zone



Warning



Railroad Crossing



Interstate Highway

Regulatory



No right turn



No left turn



No U-turn



All traffic must go left



Keep to the right of the upcoming median or lane divider



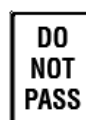
No trucks



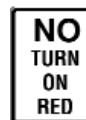
No bicycles



Traffic moves only in direction of arrow



You may not overtake another vehicle



You may *not* turn right after stopping at a red light



No pedestrians



No parking allowed between posted hours

Warning



Traffic signal ahead



Stop ahead



Road curves right



Winding road, do not pass



Crossroad ahead



Road entering from the



Road ends at junction



Lane merging from right, watch for other traffic



Road narrows or right lane ends



Road slippery when wet



Area off paved road is soft dirt and could be hazardous



Pedestrian crossing



Deer crossing



Traffic may flow on both sides of sign



School zone



School crossing



Maximum height allowed



Divided highway begins



Divided highway ends



You may not cross the yellow line to pass



Playground

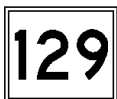


Two-way traffic

Guides and Directions



Interstate
highway
route marker



Massachusetts
state highway
route marker



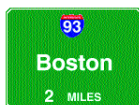
Junction with
a numbered
route ahead



Destination
directions



Destination
distances, in miles



Notice of
highway exits,
in miles



Information



Hospital



Telephone



Access for those
with disabilities



Highway rest area



Highway mile
markers



Parking
facilities



Gas



Lodging



Food



Picnic area



Motorist services



Point of interest



Freeway interchange sign

Road Work



Road crew flag
person ahead



Work in prog-
ress on the side
of the road



Maintenance
or public utility
crew ahead



Notice



Roadway detour
directions

When a flag person or police officer is directing traffic around a work zone, you *must* obey the flagger's or officer's signals or directions.



Work zone flag

Railroad Crossings

A round warning sign will usually alert you to an upcoming railroad crossing. When you see this sign, slow down and prepare to stop. If you see or hear a train approaching, do *not* speed up and try to beat the train to the crossing.



Railroad crossing ahead

The point at which train tracks cross a road is marked with a white crossbuck sign. If more than one track crosses a road, the number of tracks is posted below the crossbuck.



A railroad crossing may also feature red flashing lights, a bell, and a red-and-white striped gate that is lowered across the roadway when a train is passing. If the lights begin to flash, you *must* stop at least 15 feet before the light post or gate and remain stopped until the gate raises and the lights stop flashing. Failure to stop is a violation that carries a heavy fine. Even if you don't see a train approaching, *never* drive around a lowered gate or ignore the flashing lights.



Railroad crossbuck

Pavement Markings

Lines, symbols, and words are often painted on a roadway to help direct drivers and control traffic flow. You must know what the different lines and colors mean and obey them as you would traffic signs or signals.

White and yellow lines are used along pavement edges and between lanes to keep vehicles in line. These lines may be solid or broken (long dashes), single or double. A solid white or solid yellow line that turns into a dotted line (short dashes) is simply a continuation of the line through an intersection or a highway interchange.

Unless you are turning, exiting a highway, or changing lanes, always stay between the lines marking your lane.

White Lane Lines

White lane lines separate lanes of traffic moving in the **same** direction. Single white lines may also mark the right edge of the pavement.

Broken White Line

A broken white line separates two lanes traveling in the same direction. Once you have signaled, and if it is safe to do so, you may cross this line

Broken white lines separate lanes in the same direction.



when changing lanes.

Solid White Line

A solid white line marks the right edge of the roadway or separates lanes of traffic moving in the same direction. You may travel in the same direction on both sides of this line, but you shouldn't cross the line unless you must do so to avoid a hazard.

Double Solid White Line

A double solid white line separates two lanes of traffic going in the same direction. Crossing a double solid white line is prohibited.

Yellow Lane Lines

Yellow lane lines separate lanes of traffic moving in **opposite** directions. Single yellow lines may

also mark the left edge of the pavement on divided highways and one-way streets.

Broken Yellow Line

A broken yellow line separates lanes of traffic moving in opposite directions. Stay to the right of



the line, unless you are passing a vehicle in front of you. When passing, you may cross this line temporarily when it is safe to do so.

Double Yellow Lines: One Solid, One Broken

As with all yellow lines, the one-solid-one-broken combination keeps opposing lanes of traffic separated. If the *solid* yellow line is closer to



you, you may *not* cross the double yellow line. If the *broken* line is closer to you, you can cross the line *only* to pass another vehicle and *only* when it is safe to do so.

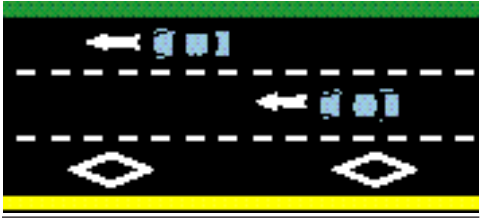


Do *not* cross a double yellow line unless turning left.

Double Yellow Lines: Both Solid

Two solid yellow lines prohibit vehicles moving in either direction from crossing the lines to pass another vehicle. You may not cross these lines unless turning left when it is safe to do so.

In the accompanying three-lane diagram, the far left travel lane is reserved for buses or high-occupancy vehicles (HOVs), like those used in carpools.



Words and Symbols

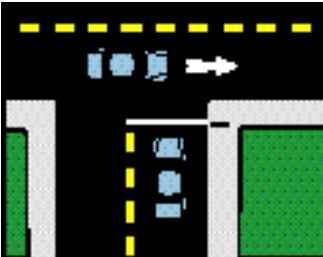
Words or symbols may be painted on roadway surfaces to help guide, warn, or regulate drivers. Words or symbols are often used with traffic signs, signals, and other pavement markings. White arrows show lane directions or restrictions.

You must stop behind stop lines and crosswalk lines if required to stop by a sign or signal.

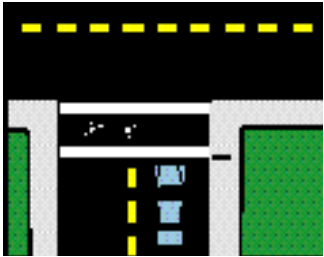
A white diamond alerts you to a special lane restriction, like “high-occupancy vehicle (HOV) only,” “bus only,” or “bicycle only.”

Stop Lines and Crosswalks

An intersection or a pedestrian crossing controlled by a stop sign, yield sign, traffic signal, or traffic officer may have a solid white **STOP** line painted across it. You must stop your vehicle



Stop line



Crosswalk

behind this line.

Lanes, Intersections, and Turns

across a lane that guides pedestrians from one side of the road to the other. A painted crosswalk is also a warning to drivers that pedestrians are crossing the road at that point. Crosswalks may have diagonal or vertical lines painted between the two main lines for added emphasis.

This section explains the rules of driving that apply to any roadway or intersection. In addition to standard travel lanes, there are...

- Special lanes for turning
- Restricted lanes for buses, car pools, and bicycles
- Breakdown lanes on the right-hand shoulder of highways and expressways

Signaling

Unless you indicate otherwise, other people using the roadway you are on expect you to travel straight ahead. This is why you must use signals whenever you make *any* move in traffic. Your signals notify pedestrians and other motorists of your moves and give them time to react.

Regardless of the kind of vehicle you are driving, you *must* use signals. If the electronic signals on your vehicle are not working, you must use the three hand signals shown in the margin. Signals should be made through the driver's side window.

You must signal in certain situations:

- Changing lanes
- Turning at an intersection or into a driveway
- Pulling away from a curb
- Pulling over to the side of the road
- Entering or exiting an expressway or a freeway

Once you have completed your move, you must turn your signal off. Any time you want to turn, merge, join traffic from a stopped position, or change lanes, you must...

1. Check your mirrors for traffic behind you and check your blind spot on the side you are moving or turning toward.



Bicyclists may use either arm to signal.

2. Signal your intent to move.
3. Make your move.

Using Lanes

Always use traffic lanes as they are defined by pavement markings and road signs. Many intersections have special lanes marked for turns. Follow the rules of the road, using the proper lanes for turning and driving straight ahead.

On roadways with two or more lanes in your travel direction, use the right lane for driving unless...

- You are passing another vehicle.
- You are making a left turn.
- The right lane is blocked.

Here are a few more general rules for using lanes properly:

- Never change lanes in the middle of an intersection. It is illegal and dangerous.
- As a general rule, do *not* use a highway breakdown lane as a travel or passing lane. On some highways, however, motorists may use the breakdown lane as a travel lane during “rush hour.”
- If you come to a curve in the road and cannot see ahead, keep to the right and slow down.

Special rules for motorcycles:

- Do *not* ride along pavement lines, between lanes of traffic.
- Ride no more than two abreast.
- Unless your motorcycle can travel safely at minimum posted speeds, do not travel on highways or expressways.

Restricted Lanes

You must not drive in lanes posted as restricted, except when preparing for a turn. Look for signs like the one in the margin.

The use of breakdown lanes as travel lanes is *very* restricted, and hours of use are posted clearly.

Take extra care when exiting a highway on which breakdown lanes are being used as travel lanes. Look to your right and check your right-hand blind spot before exiting.



Highway Driving

A divided highway has separate roadways for traffic in opposite directions, often with multiple lanes on each side. Typically, highway speed limits range from 45 to 65 mph.

Some highways intersect other roads and are controlled by traffic signals. Others are “controlled access,” which means they have no signals or intersections; you enter and exit these highways using ramps. Such highways are called “expressways” or “freeways,” and the points at which you can enter or exit the highways are known as “interchanges.” In Massachusetts, interstate Routes 90 and 495 and State Highway 128 are examples of expressways.

Highway driving can make any new driver nervous. Following are some useful tips for driving on highways:

Entering and Exiting the Highway

- Make sure you are in the proper lane well in advance so you can safely enter or exit the highway.
- Yield the right-of-way to drivers already on the highway.
- As you approach and enter a highway travel lane, increase your speed to match that of vehicles already on the road.
- **If you miss your exit, do *not* stop. Never back up on the highway.** Get off the highway at the **next** exit and look for signs showing you how to rejoin the road in the other direction.
- Be sure to signal your exit at least 500 feet before you reach the exit ramp.
- As you leave the highway and drive along the exit ramp, slow to the posted exit ramp speed limit.

Driving on the Highway

- Make sure your vehicle is in good operating order and can maintain highway speeds.

- Stay to the right and only use the left lane for passing. If you are traveling on an expressway with three lanes, treat the far right lane as a slower-speed through lane, the middle lane as a faster through lane, and the far left lane as the passing lane.
- Drive in the middle of your lane, staying between the lines.
- Use your rearview mirror and your directional signals when changing lanes. Remember these three steps: **(1) look, (2) signal, (3) move**. Also, check your blind spots before making your move.
- Do not drive in another driver's blind spot. If you see yourself in another driver's blind spot, safely drive through the blind spot as quickly as you can.
- Be alert for cars entering the highway and any vehicles or pedestrians using the breakdown lane.
- Do *not* weave in and out of traffic.
- Be aware of road construction signs, work crews, and signs requiring you to reduce speed or change lanes.
- Avoid "highway hypnosis." If you've been driving for a long period and feel drowsy, you should get off the highway at the next exit, rest stop, or service area.
- If you plan to drive a long distance, stop and stretch after every 2 hours or every 100 miles.

Some roads have multiple turning lanes. While on these roads, you should follow the applicable road signs or markings.

Intersections

Intersections are the points at which any two or more roadways meet. Traffic flow through these meeting points is often controlled by signals, signs, and/or pavement markings. The next two sections in this chapter, *Turns* and *Right-of-Way Rules*, describe the very specific rules and procedures you must follow when driving through intersections.

Because the actions of drivers at intersections

are so important to the general flow and safety of traffic, **it is illegal to block an intersection with your vehicle.** When driving through an intersection, you must follow any directions given to you by signs or traffic signals. **However, you may *not* enter an intersection or drive across a crosswalk unless there is enough room for you to drive through to the other side safely. Obstructing the paths of other vehicles or pedestrians in an intersection or a crosswalk causes traffic jams and violates traffic law.**

Turns

Many motor vehicle crashes are caused by improper turns. In general, take the following steps to turn safely:

1. Plan for the turn. Do not turn suddenly.
2. Signal your turn at least 100 feet before making the turn. On a highway, signal at least 500 feet before a turn. It is best to signal before you apply your brakes, so you make your intentions known to other drivers.
3. Reduce your speed.
4. Check your mirrors for traffic behind you and check the blind spot on your turning side.
5. Give the right-of-way when necessary (see the *Right-of-Way Rules* section following).
6. Complete the turn carefully, making sure you turn into the proper lane.

The road diagrams on this and the following page show examples of proper turns. It is very important that you turn from and turn into the proper lane. Be aware of yellow or white pavement lines marking the road you are turning into. If you need to change lanes, do so *after* you turn. Here are a few rules:

- Turn from the lane closest to the lane you want to enter. For a right turn, turn from the far right lane. For a left turn, turn from the lane closest to the center lane.

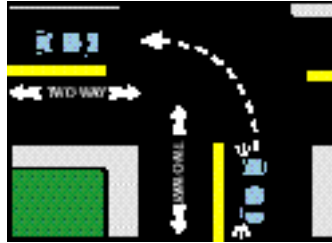


The accompanying diagram shows the “blind spots” around your vehicle, in which you cannot see with your vehicle’s mirrors.

- Do not swing your vehicle out of your lane when making a turn or swing wide through the intersection. Keep your vehicle balanced in the middle of the lanes you are leaving and entering.
- Once you have started a turn through an intersection, you must follow through. Do *not* stop in mid-turn and change direction. If you



Right turn



Left turn from a two-way road to a two-way road



Left turn from a two-way road to a one-way road



Left turn from a one-way road to a two-way road

decide you do not want to make the turn, simply drive to the next intersection and work your way back.



Turns on Red

After coming to a complete stop at a red traffic light, you are allowed to turn *right* on red after giving the right-of-way to pedestrians and other vehicles, unless a **NO TURN ON RED** sign is posted. You may turn *left* on red following the same rules *only* if you are turning from a one-way street onto another one-way street.

U-Turns

A U-turn is a tight left turn that puts you in the

opposite direction in which you were just traveling.

Unless a **NO U-TURN** sign is posted, you are allowed to make a U-turn as long as your path is clear and it is safe to do so.

- You may only make a U-turn from the lane closest to the center line.
- Make sure you have enough room to complete the turn. Don't create a hazard for



oncoming vehicles.

- Do not attempt a U-turn at the crest of a hill, near a curve, or at any other point at which you or other drivers cannot see from 500 feet away.

Left Turns from Center Lanes

On some two-way roads, a center lane may be marked as a common left-turn lane to be used by vehicles in both directions. You may *not* travel in a center turning lane.

Right-of-Way Rules

So-called “right-of-way rules” help drivers decide how to handle traffic situations that are not determined entirely by signs or signals. These rules are based on safety and courtesy; they do not give you any “rights.” **Remember, the right-of-way is something you give, not take.** If another driver fails to follow these rules in a certain situation, you should always give the right-of-way for safety's sake.



This section summarizes many right-of-way rules. Other, related rules, like giving the right-of-way to emergency vehicles, are presented in the appropriate sections of this chapter.

Pedestrians

You must always yield to pedestrians who are walking in or crossing a roadway. Also note these rules concerning pedestrians:

- If you are stopped at a traffic signal and the light turns green, you must yield to any pedestrians already in the crosswalk before proceeding.
- When turning, look for pedestrians crossing your intended path. Pedestrians have the right-of-way if using a sidewalk or crossing a driveway or an alley.
- Always yield to blind people crossing a street. If a blind person using a special cane or a guide dog is trying to cross the street, you must stop until the person has crossed safely to the other side.

Intersections Not Controlled by Signs or Signals

If you come to an uncontrolled intersection, slow down, look left and right for oncoming traffic, and proceed if the way is clear. However,

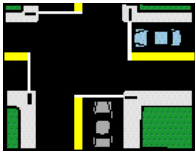
- You *must* yield the right-of-way to any vehicle that has entered the intersection from your *right* or is approaching from your right.
- Look for any traffic approaching from the left. Even though you may have the legal right-of-way, make sure that the other driver is yielding to you before you proceed.

Four-Way Stop

At an intersection controlled by stop signs in all directions, you must yield the right-of-way to...

- Another vehicle that has **already** come to a full stop at the intersection
- A vehicle on your immediate *right* that has stopped at the intersection at the **same time** as you

Confusion can develop at four-way stop intersections. You should try to make eye contact with the drivers of other vehicles at the intersec-



At a four-way stop, vehicles must proceed in the order they stopped. The first to stop is the next to go. If in doubt, give the right-of-way to the driver on your right.

tion to better judge their intentions and avoid accidents.

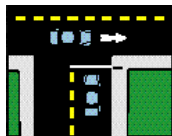
Turning Left

When making *any* left turn, you must first yield the right-of-way to any...

- Oncoming vehicle
- Vehicle already in the intersection
- Pedestrians or bicyclists crossing your intended path of travel

Private Roads, Driveways, and Unpaved Roads

If you are entering a paved thoroughfare from a private road, a driveway, or an unpaved road, you *must* stop first and give the right-of-way to pedestrians, bicyclists, or vehicles traveling along the road you are entering.



You must give the right-of-way at throughways.

Throughways

If you approach a designated throughway, you must yield the right-of-way to traffic on the throughway before you turn.

Traffic in a rotary circles counter-clockwise.

Intersection of Single- or Two-Lane Road and Multiple-Lane Road

If you are traveling on a single- or two-lane road and come to an intersection with a larger road, you must yield the right-of-way to vehicles driving on a divided highway or a roadway with three or more lanes.

Rotaries

Because only a few states in America have traffic rotaries (traffic circles), many drivers are unfamiliar with rotaries' right-of-way rules. Be especially careful and generous when extending the right-of-way to other drivers in and near rotaries. When you approach a rotary, you must yield the right-of-way to any vehicles already in the rotary. If traffic in the rotary is heavy, stop at the edge of the rotary and wait until you can enter safely.



Rules for Passing

In general, the law requires you to drive on the



If you are operating a motorcycle, you may only pass single file.

right side of the road. When passing is allowed, you should pass on the left. Passing on the right is allowed only in certain situations.

You should pass a pedestrian, bicyclist, or motor vehicle *only* when it is necessary and safe to do so. **You may *not* exceed the speed limit when passing.** If you have any doubt, do not pass.

Never use a breakdown lane, the shoulder of a road, or a sidewalk for passing another vehicle.

Passing on the Left

On a multiple-lane roadway with several lanes in one direction, you must use the middle and left lanes for passing. A broken yellow line on a two-way road allows you to cross over into the oncoming lane temporarily to pass a vehicle in front of you, **if it is safe to do so**. The following numbered steps correspond to the diagram in the margin:

1. Keep a safe distance between you and the vehicle you intend to pass. Check the passing lane to make sure it is clear. If you are crossing a broken yellow line to pass, you must be able to see clearly **at least 400 feet** in front of you. Check your mirror and your blind spot.
2. Signal left and gradually move into the passing lane.
3. Maintain your speed until safely past the other vehicle, then signal right.
4. Make sure there is enough distance between you and the other vehicle before moving back into the right lane. Wait at least until you can see the vehicle's headlights in your mirror.
5. You must return to the right lane before any oncoming vehicle comes within 200 feet of you. Turn off your signal once you have returned to the right lane.

Passing on the Right

Passing on the right is permitted only in certain circumstances:

- On a multiple-lane highway that is divided by a barrier or a median

Road Respect/Sharing the Road

- On a one-way street with two or more lanes
- When a vehicle in the left lane is turning left or preparing to turn left

Being Passed

If you are being passed by another vehicle, you must slow down and stay to the right. Allow the other driver to pass safely. Do *not* speed up.

The Governor's Highway Safety Bureau has a program entitled, "Road Respect-Tame the Rage," which is enforced by the RMV and the Massachusetts State Police. The premise is that a little courtesy won't kill you and it will go a long way towards increasing safety on our roads. We ask that you show respect for those you share the roadway with. Don't let your anger get the best of you when someone else drives irresponsibly.

How Can You Identify Aggressive Drivers?

Aggressive Drivers typically exhibit many of these tendencies:

- Cutting people off
- Exceeding the speed limit
- Switching lanes without signaling
- Tailgating
- Running red lights
- Preventing other motorists from passing them

What Can You Do When confronted by an Aggressive Driver?

- Attempt to get out of his/her way
- Do not challenge that person
- Avoid eye contact
- Ignore rude gestures
- Wear your safety belt; it will keep you in control of your vehicle and protect you in the event of a crash.

Do not become an Aggressive Driver!

Control your anger and do not let the situation escalate.
Never underestimate the other driver's potential for aggression.
If you have a cellular phone, call State Police at *77 to report dangerous drivers.

As part of this program, special State Police teams are patrolling the highways in unmarked vehicles. They are looking for **aggressive drivers** who endanger themselves and everyone else on the road. If you are stopped and cited for conduct that can constitute **aggressive driving**, the Registrar may be asked to review the evidence in your case. If he finds your driving is so dangerous that allowing you to continue would pose an immediate threat to public safety, he has the ability to suspend or revoke your license and registration long before a scheduled court date.

Be a safe driver, be courteous, and always treat other drivers as you would like to be treated. As the driver of a passenger car, van, small truck, or motorcycle, you must constantly share the roadway with other people and other vehicles.

Obey school bus signals from either side of the road.



School Buses

Yellow school buses have flashing red lights and stop signs that fold out from the driver's side. School pupil transport vehicles, like vans, station wagons, or family sedans, have flashing red lights and **SCHOOL BUS** signs on top. Drivers of either kind of school vehicle use these warning signals when letting pupils on and off.

No matter which side of the road you are traveling on, if you come upon a school bus or a school pupil transport vehicle with its lights flashing and a stop sign extended, you *must* stop. It's the law. Remain stopped until

the lights stop flashing or the stop sign folds back.

Violation of this law can result in license suspension and fines of up to \$200.

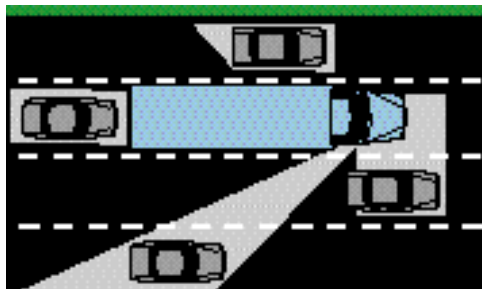
Even after the warning signals have stopped, you should proceed slowly and continue to look around for children.

The only exception to this law is if a school bus has stopped on the other side of a divided highway with a barrier between travel directions. In this case, you do not have to stop.



Trucks and Other Large Vehicles

One of the most serious “sharing-the-road” problems occurs between large vehicles, like trucks and buses, and smaller ones, like cars and motorcycles. Several organizations have started campaigns to educate each group of drivers about the other. Following are a few rules for driving safely among trucks, tractor-trailers, and buses:



Blind spots on a large tractor-trailer can extend up to 20 feet in front of the vehicle and 200 feet behind.

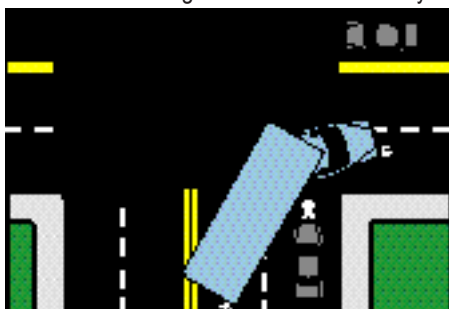
- **Blind Spots**—Although most large vehicles have several rearview mirrors, it is easy for a car or a motorcycle to be hidden in a large vehicle’s blind spot. Therefore, do *not* follow closely behind a truck or a bus. When driving near a large vehicle, be aware of the driver’s blind spots on the right, left, front, and behind
- **Tailgating**—If you can’t see a truck’s rearview mirrors, you are tailgating, and tailgating is dangerous. By following too closely, you’re eliminating the cushion of safety you’ll need if the vehicle in front of you stops short.

According to studies by the National Safety Council and the Insurance Institute for Highway Safety, a fully loaded tractor trailer may require more than *twice* the distance to stop than does a passenger vehicle.

If you're thinking about passing, remember that a tractor may be pulling more than one trailer.

- **Cutting in Front**—Drivers of large vehicles try to keep a safety cushion of space around them. Depending on conditions, a large truck may need twice as much distance to stop as an automobile or a motorcycle, especially when roads are wet or icy. In general, do not drive into the space immediately surrounding a large vehicle. Do *not* pull in front of a large vehicle and slow down or stop suddenly. The driver will have too little room to stop and will crash into you or may risk “jackknifing” by trying to stop suddenly at highway speeds.
- **Driving Too Slowly**—On a multiple-lane highway, trucks and buses are restricted to driving in the two right-hand lanes. They use the far right lane for normal travel and the second lane as a passing lane. If you are traveling in the second lane, stay with the flow of traffic and avoid driving below the speed limit.

By driving too slowly in this lane, you can create a bottleneck of large vehicles, which can increase highway traffic hazards. If a truck or bus wants to pass you, move over when it is safe to do so and let the vehicle pass.
- **Passing on the Left**—Remember that it takes longer to pass a tractor-trailer or a bus than it does to pass another car or a motorcycle. Also be aware that large vehicles tend to travel more slowly uphill and faster downhill.
- **Passing on the Right**—Do not pass a truck or bus on the right unless it is absolutely



necessary. Large vehicles often make wide turns, and sometimes they must move to the *left* before making a wide turn to the *right*. If you are driving alongside a truck or bus, you are most likely driving in a blind spot. Watch for possible right-hand turns, and stay safely behind until you are sure what the driver is doing.

- **Truck or Bus Approaching**—If a large vehicle is coming toward you on an undivided road, stay to the right to avoid being sideswiped or shaken by air turbulence. At intersections, take extra care in judging the speed of the oncoming vehicle. Trucks and buses cannot slow down easily if you cut in front of them to turn.



Buses and Trolleys

Especially in urban areas, you must take extra care when driving near public transport buses and trolleys. Buses stop frequently. Be courteous and make way for buses signaling to pull away from bus stops.

State law is very specific about driving near trolleys and their tracks:

- If you come to a trolley letting passengers on or off, you must *not* drive any closer than within 8 feet of the trolley passenger step.
- Look for oncoming trolleys before crossing any tracks. Do *not* turn in front of a trolley if one is approaching.
- Maintain a safe distance between your vehicle and a trolley if the trolley is sharing the roadway.

Remember, a trolley's path is limited to the tracks. A trolley driver cannot swerve to avoid **you**.

Slow-Moving Vehicles

Most farm vehicles, construction rigs, and other slow-moving vehicles have orange warning signs mounted on their backs. If you approach such a vehicle, reduce your speed and use the same caution you would with bicyclists and pedestrians. Allow plenty of space around the vehicle if you

plan to pass.

Funeral Processions

If you meet a funeral procession on a roadway, you *must* yield the right-of-way until all vehicles in the procession have passed. **It is illegal to cut through or disrupt any vehicles in a funeral procession.**

Road Workers and Repair Crews

Although road construction and maintenance sites are often well posted with warning signs, you must take extra care to ensure the safety of anyone working on a roadway. Orange warning signs and work equipment usually mean that people are on foot nearby. Follow road work signs carefully, and stay alert. Look for sudden changes in road direction or condition. Be prepared to stop.



The law applies to horses, cows, and any other draft animals.

Animals and Horse-Drawn Vehicles

Always give the right-of-way to any animal that someone is leading, riding, or driving. Animals are easily frightened by motor vehicles, so when you approach any animal or horse-drawn vehicle, remember to be careful:

- Slow down.
- If the animal or vehicle is coming toward you or is crossing your path, stop and allow the animal to pass.
- If the animal or vehicle is traveling in the same direction you are, allow plenty of room for passing safely, and use reasonable speed.
- Do not sound your horn or make a loud noise.
- If the animal you are passing appears frightened, you must pull your vehicle to the

Parking

- Proceed only when it is safe.
- You must stop if a rider or driver signals you to do so.

In rural areas, take extra care when passing “hay rides,” which are usually animal drawn and

full of passengers.

Stopping and parking your motor vehicle is regulated to ensure safety and a smooth traffic flow. You should practice parking maneuvers and know the laws that govern parking.

Here are some general rules about stopping and parking:

- You must not create a traffic hazard while parking or while your vehicle is stopped.
- You must always make sure that you leave at least a 12-foot wide, unobstructed roadway for traffic to pass in either direction.
- When you leave your vehicle unattended, state law requires you to stop the motor, set the brake, make sure the ignition is locked, remove your ignition key, and lock the door.
- When you pull away from the curb, you must wait for vehicles in the travel lane to pass, signal your intention to pull out, and move slowly into traffic.

Parallel Parking

1. Choose a space on the roadside that is long enough for your vehicle. Make sure parking is legal.
2. Pull up alongside the vehicle in front of the space, leaving about 2 or 3 feet between your vehicle and the parked one. Position your vehicle so that your rear bumper or front seats align with the rear bumper or front seats respectively of the other vehicle.
3. Look behind you *both* ways to see if your path is clear of pedestrians and other traffic.
4. Slowly back up and turn the steering wheel all the way toward the curb. Rest your foot lightly on the brake. Look directly out your rear window. Do *not* use your mirrors.



The steps in parallel parking



- When your front passes the parked vehicle's rear bumper, turn your steering the opposite way and continue backing up. Do not hit the vehicle behind you.
- When you are back far enough, straighten your wheels and pull forward. Make sure you keep enough space in front of and behind you so that other vehicles can get out.

Parking on a hill is a common sight. Always use proper technique when parking on a hill. If you have a manual transmission, you must turn your front wheels into the curb. If you have an automatic transmission, you must turn your front wheels out of the curb. If your vehicle is parked, you must turn your front wheels in the proper direction to prevent it from rolling downhill.



- No Curb**—Turn your wheels *inward*, toward the edge of the road.
- Uphill Against a Curb**—Turn your wheels *outward*, toward the travel lane.
- Downhill Against a Curb**—Turn your wheels *inward*, toward the curb.

Parking Regulations

Parking regulations are generally determined by state law but are enforced by local cities and towns. If you are parking in a business or residential district, you must position your vehicle within 12 inches of the curb, except where angled parking is allowed. Parking spaces on roadway edges are often marked by white road lines. You must park your vehicle between these lines, not straddling two spaces. In Massachusetts, you may *not* park your vehicle in certain places:

- In a zone posted with a NO PARKING, NO STANDING, or NO STOPPING sign.

- In a bus stop or taxi stand.
- In a zone and at a time posted for street cleaning.
- In a posted loading zone.
- Within 20 feet of an intersection.
- In a crosswalk, in front of a driveway, or in front of a handicap-access ramp.
- In a zone posted for HP-DV parking only (disabled person plates or placards, disabled veteran plates). Violating this parking regulation carries a heavy fine.
- Within 10 feet of a fire hydrant or fire lane.
- On a sidewalk, curb, center traffic island, or median.
- During a weather or roadway emergency.
- Facing the wrong way against traffic.
- On a state or an interstate highway, unless authorized.
- On a roadway in a rural area or outside a thickly settled district.
- In a traffic lane next to a row of parked vehicles ("double parked").
- To make nonemergency repairs to your vehicle.

If you violate a parking regulation, you may receive a citation with a fine. Remember, unpaid parking tickets can prevent you from renewing your license or vehicle registration.

Parking Meters

Many public parking spaces are regulated by coin-fed meters. Meter regulations are usually in effect during posted days and hours. In most areas, a maximum time limit is also posted.

Miscellaneous Rules of the Road

If you exceed the limit or fail to pay the meter fee, you may be issued a parking citation.

Parking Permits

Many cities and towns in the state issue special parking permits to residents. Certain residential streets have **RESIDENT PERMIT PARKING ONLY** signs. If you do not have a permit or a special visitor's placard, you may not park in these zones. Contact your local community for information on obtaining a permit.

Following are motor vehicle traffic laws that have not been covered in a specific section. **It is illegal to...**

- Drive on a bet or wager
- Engage in drag racing
- Throw garbage or glass onto a roadway or onto public or private land

Rules for Pedestrians



- Throw lighted cigarettes or anything else from a motor vehicle that can cause a fire near a forest or open field
- Bypass or cut out a motor vehicle's muffler system

By law, you should return used motor oil, transmission fluid, and other hazardous materials to the place you bought the materials. The garage or store that sold you the goods is responsible for disposing of the goods.

When you are a pedestrian, you must remember the following rules:

- State law requires you to use a crosswalk when one is available. When crossing at an intersection with a traffic signal, use the pedestrian button and wait for the **WALK** signal. Intersections without push buttons automatically give you **WALK** signals. Be patient!
- If the crossing signal flashes **DON'T WALK**,

do not begin crossing. If the signal stops flashing and stays steady, you may not cross.

- Before you cross a roadway, stop at the curb, look left, look right, and look left again for traffic—even if it's a one-way street. Be alert while crossing. Be especially alert at intersections that allow motor vehicles to turn right on red.

Rules for Bicyclists

If you must enter the street from between parked cars, stop and look before crossing.

- You must use a sidewalk when one is available. When no sidewalk is available on a local roadway, you should walk on the shoulder **facing** traffic.
- Never walk along or across expressways, interstate highways, or turnpikes.
- Wear clothing with bright colors or reflective strips, especially at night.

When you are riding a bicycle on public ways, state law subjects you to the same basic laws and regulations that apply to motor vehicle operators.

- You must obey all traffic signs and signals, ride single file with the flow of traffic, and yield to pedestrians.
- You must ride on the right side of the roadway, unless you are turning left. To turn left, signal, look, and move into the lane closest to the center line.
- It is strongly recommended that you avoid listening to headphones while riding.
- Before entering or crossing a roadway, you should stop, look left, look right, and look left again for traffic—even if it's a one-way street.
- When stopping, turning, or passing, you



About 75% of bicycle-related deaths and disabling injuries could have been prevented if riders wore a proper bike helmet.

For a free brochure with additional bicycle safety tips, call the Governor's Highway Safety Bureau at 617-973-8900.

should use hand signals and an audible warning to communicate your intentions to pedestrians and other roadway users. You may use either hand to signal.

- You and your bike must have proper lights and reflectors when operating at night.
- You may use sidewalks outside business districts, unless there is a local ordinance prohibiting it.
- When operating on a sidewalk, you must yield the right of way to pedestrians.

State law requires all bicyclists under age 13 to wear approved helmets when bicycling or riding as passengers on public ways or property. A properly fitted and fastened helmet sits just above the eyebrows. As an adult, you can set an important example for children by always wearing a helmet when cycling.

Special Driving Situations

Only practice and experience can make you a good driver. Almost 40 percent of highway crashes involve drivers under 25 years old, and most of these crashes are due to driver inexperience. To become a good driver, you must follow several rules:

- Give driving your full attention. Don't let yourself be distracted while moving. Talking to passengers, adjusting a car stereo, or eating can all be dangerous distractions.
- Drive defensively, and keep your eyes on the road ahead. By staying alert, you will be able to see possible hazards and have time to avoid them.
- Learn how to drive in different situations. Practice highway driving, night driving, and handling a motor vehicle in various weather conditions.
- Know how to handle emergency driving situations, such as skidding or tire blow out.
- Know, understand, and obey the rules of the road.

This chapter explains what defensive driving means and how to tackle special driving situations. It also offers a few more rules of the road, such as what you must do in the event of a motor vehicle accident, even if you are only a witness.

CHAPTER 5

Your Health and Physical Condition

Because you must be in control of your vehicle at all times, it is important that you remain alert and responsive. You not only need good vision, you need good hearing as well. There are certain situations in which you should never drive:

- When you have been drinking alcohol.
- When you have taken any prescription or over-the-counter medication that can cause drowsiness.
- If you are under the influence of any drug.
- When you are very tired.
- When you are emotionally upset. Emotional states like anger and depression can cause you to drive carelessly.

Checking Your Vehicle's Condition

The distance between the edge of a penny and the top of Lincoln's head is about $\frac{2}{32}$ of an inch. A quick way to check your tire tread is to slide a penny into a tread groove. If you can see Lincoln's head, your tires are worn out.

The law requires you to have your passenger vehicle or motorcycle inspected for safety and emissions every year (see *Chapter 6*). However, you should always follow the routine maintenance procedures recommended by your vehicle manufacturer. Each time before you enter your vehicle or mount your motorcycle, make a quick visual check for low tire pressure or any damage you may not have noticed before.

Brakes and Tires

Pay close attention to changes in how your vehicle responds when braking. If you think you have a problem, have your brakes inspected immediately. If you feel the vehicle pull to one side when you brake, your brakes may need adjustment or repair.

Check your tires for proper inflation and wear. Rotate your tires as often as recommended by the vehicle or tire manufacturer. It is dangerous and illegal to drive a vehicle with extremely worn or

damaged tires. Tires must have at least $\frac{2}{32}$ inches of tread depth in the proper grooves and no fabric breaks or exposed cords.

Steering

Your steering wheel should not feel so loose that you notice a delay between when you turn the wheel and your tires respond. With power steering, you should check the fluid level regularly. If your vehicle makes a high-pitched noise when you turn, you should have your power steering inspected.

Lights and Glass

Make sure to check your headlights, brake lights, and turn signals periodically. Keep your lights clear of dirt, snow, and ice. Keep your windows and mirrors clean. Change your windshield wipers if they streak or fail to clear your windshield properly.

Moving Emergency Vehicle

- You must always yield the right-of-way to fire engines, ambulances, police cars, and other emergency vehicles when those vehicles are using a siren and/or emergency flashing lights.
- If you see or hear an emergency vehicle coming from any direction, you must pull as close as possible to the right side of the road and stop until the vehicle has passed. Slowly rolling is not acceptable.
- Check your mirrors and find a safe place to pull over to the right. You should not pull your vehicle to the left or slam on your brakes and stop suddenly. Use your right turn signal to let those driving behind you know what you plan to do.
- NEVER stop in the middle of an intersection. Continue driving through an intersection and pull over as soon as it is safe to do so.
- After the emergency vehicle has passed, use your left turn signal and make sure the lane

is clear before merging into traffic. Be sure that there are no other emergency vehicles approaching before you enter traffic.

- It is illegal to follow closer than 300 feet behind an emergency vehicle responding to an alarm.

Stationary Emergency Vehicle

- All drivers should slow down and stay alert whenever you see an emergency vehicle stopped with its emergency lights on. Emergency lights should be treated in the same manner as a flashing yellow light.
- If you are traveling on a divided highway, approaching a police cruiser or other emergency vehicle, that has stopped in the breakdown lane with the emergency lights on, you should move out of the right lane into the middle lane if it is safe to do so.
- Always be prepared to stop if necessary when passing an emergency vehicle.
- If approaching at nighttime, be sure to dim your high beams.
- If you need help, pull in front of the police cruiser and ask for assistance. Never stop behind a police cruiser. (Do not attempt to approach a police officer who appears to be dealing with a stopped motorist. Stand next to your vehicle on the shoulder until the police officer is finished.)
- It is illegal to drive by or park within 800 feet of a fire. You are not allowed to drive over an unprotected fire hose unless directed to do so by a firefighter or other public safety official.

General Guidelines if You Are Stopped by a Police Officer

State law requires you to pull over to the right side of the road and stop when signaled to do so by a police officer-whether the officer is in a

police car or on foot. Being pulled over may cause anxiety for both you and the police officer. Your anxiety may be caused by the fear of getting a ticket or because you are not sure why you are being stopped. Police officers rarely know what to expect from a driver or his or her passengers during a traffic stop and are likely to be anxious about their own personal safety.

As a driver you should understand that the way you act during the traffic stop may well determine the police officer's reaction. Becoming argumentative, disregarding the officers instructions or requests, suggesting that the officer could be more productive by stopping other drivers, or allowing yourself or your passengers to suddenly reach under the seat or into unseen areas of the passenger compartment, are not appropriate reactions during a traffic stop and may increase the officers own anxiety.

Traffic law enforcement is one of the most important duties that police officers perform. Their efforts are aimed at helping to ensure the orderly flow of traffic and to help prevent deaths and injuries on our public roads. There is an obvious need for a constant enforcement effort. More persons are killed and injured in motor vehicle traffic crashes across the U.S. each year than are killed and injured in all other forms of violence-combined. In 1999 (the last year for which figures are available), over 41,600 persons (drivers, passengers, pedestrians and cyclists) were killed and over 3,235,000 were injured in the U.S. as the result of motor vehicle traffic crashes. (National Highway Traffic Safety Administration-NHTSA). Locally, in 1999, Massachusetts recorded 414 deaths and 81,747 injuries from motor vehicle traffic crashes. (RMV Statistics Section).

Statistics show that police officers have reason to be concerned about their personal safety while performing traffic enforcement duties.

Each year in the United States a number of police officers are killed and thousands more are assaulted in the performance of traffic law enforcement duties. During 1998 alone, nine (9) police officers were killed and 6,242 others were assaulted as a result of traffic pursuits and stops. (Federal Bureau of Investigation-Uniform Crime Reports).

You can help reduce the levels of anxiety during a traffic stop, both your own and the officers, and help to lessen the chance of that stop unnecessarily erupting into something more serious, by reading and following these common-sense guidelines. The Registrar strongly urges you to do so.

- Do not ignore the officer's signal by pretending you didn't see it or by assuming it wasn't

meant for you.

- Turn on your right-turn signal to let the officer know you intend to stop and carefully move

your vehicle completely to the right side of

the road after checking your mirrors. (If the

officer continues on by without ordering you

to stop you can return to the flow of traffic

when it is safe to do so).

- Gradually slow the vehicle and bring it to a

safe stop by the right side of the road (not in

an intersection, or in front of a driveway or in a travel lane).

- Put the car in park (if an automatic transmis-

sion) or in neutral with the parking brake on

(if a standard transmission) and turn off the

engine.

- Both you and your passengers should stay in the vehicle unless you are instructed to get

out by the officer.

- If it is after dark, leave your headlights on

and you should put the interior overhead light on, also.

- Roll down the driver's window as the officer

approaches.

- Wait to be instructed by the officer to produce your license and registration, but have them ready, and **do not** present them to the

officer in a wallet or in a holder. (You are required by law to have your license and registration when operating a vehicle).

- You should make sure that your hands are in plain sight and tell your passengers to do the same.
- Neither you nor your passengers should

make any sudden movements or gestures that could be construed as threatening by the officer, such as reaching under the seats or reaching into any other unlit areas of the vehicle.

- Stay in your vehicle when the officer goes

back to the police car. If you have a question to at that point you should remain in your vehicle until the officer returns. If you are able to find any documents the officer previously requested, hold them out the window so he or she can see you have them and wait until

the officers return.

- Accept the return of your paperwork politely. If the officer issues a citation to you, do not

attempt to argue your case or to persuade the officer to change or rescind it. Once a citation is issued, the police officer is

required to file the appropriate copies with his or her superior officer. You have the right to challenge the issuance of the citation in Court, if you choose to do so.

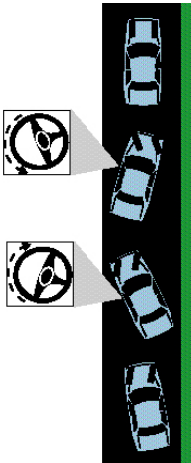
- When the officer tells you that you can go,

put on your left-turn signal, check your mirrors prior to re-entering traffic and, if on a

divided highway, accelerate to a safe speed while in the breakdown lane before merging into traffic.

Driving Emergencies

Even if you never know what to expect when stopping a driver—even if the stop is unrelated to a motor vehicle violation. Don't let your emotions or sudden unexplained movements (or those of your passengers) introduce a higher degree of tension or anxiety into the traffic stop. A police officer may be more likely to listen to what you have to say and less likely to feel threatened by you (or your passengers) if you follow these simple guidelines.



If your vehicle skids, always turn your steering wheel in the direction of the skid.

IMPORTANT: If you believe that you were stopped by a police officer because of your race or your gender, you may report the incident by calling the Commonwealth of Massachusetts Executive Office of Public Safety at the following toll-free number:

1-866-6RACIAL (1-866-672-2425), or by contacting the police department of the officer who made the stop.

In any emergency driving situation, it is very important that you think clearly and don't panic. In most emergency situations, you have only a short time to react. Read this section to learn what to do when an emergency occurs. It could save a life.

Skidding

The technique for handling a skid is the same for front- and rear-wheel drive vehicles:

- Ease off the gas, and shift into neutral.
- Don't hit the brakes. You will make the skid worse.
- Turn your steering wheel **in the direction of the skid**. If your rear tires are skidding to the left, turn your steering wheel left. If they are sliding right, steer right.
- Be prepared to steer left and right a few times until you get your car completely under control.

Running Off the Pavement

If you drive off the pavement edge and onto the shoulder of the road. . .

- Grip the steering wheel tightly and ease your foot off the gas pedal.
- Gently apply the brake to reduce your speed.
- Check for traffic behind you, then steer gently back onto the road.

Flat Tire, Blowout, or Wheel Loss

If while driving, you get a flat tire, your tire blows out, or you lose a wheel. . .

- Grip the steering wheel tightly and ease your foot off the gas pedal.
- Gently apply the brakes.
- If you begin to skid, turn the steering wheel **in the direction of the skid**.
- As you recover, gently straighten the car and don't use the brake until you have the vehicle under control.
- Pull your car well off the road as soon as it is

safe to do so.

Brake Failure

If your brake pedal is fully depressed but the brakes fail to respond. . .

- Pump the brake pedal several times rapidly to build up brake fluid pressure, but **do not pump antilock brakes**.
- Down shift to a lower gear, and work your way down to the lowest gear, if necessary.
- Apply the parking brake gently, but hold the brake release in case your vehicle starts to skid.
- If you cannot slow your vehicle, sound your horn and flash your lights to warn drivers or pedestrians around you.

Stuck Gas Pedal

If your gas pedal (accelerator) sticks. . .

- Put your car in neutral and apply the brakes to slow down.
- Using your foot, try to free the gas pedal.
- If the gas pedal doesn't release, reapply the brakes.
- Keep your eyes on the road.
- When safe to do so, pull your vehicle to the side of the road and bring it to a stop.

Vehicle Approaching Head On

If a vehicle approaches you head on in your lane. . .

- Slow down and pull to the right.
- Sound your horn to alert the other driver.

Headlight Failure

If your headlights suddenly go out. . .

- Turn on your parking lights, emergency flashers, or turn signal.
- Try the headlight switch a few times.
- Pull off the road as quickly as possible and leave your emergency flashers on.

If your car is caught on a crossing for any reason, contact the local or state police as quickly as possible and ask them to call the railroad station manager. The police may be able to stop any approaching trains before a collision.

Stalling on Railroad Tracks

If your vehicle stalls on railroad tracks and you know a train is approaching. . .

- Get yourself and any passengers out of your vehicle and off the tracks, and move as far from the tracks as you can.
- To avoid being hit by debris, run from your vehicle in the direction the train is coming from.

If your vehicle stalls on railroad tracks and you are unsure whether a train is approaching. . .

- Roll down your window or open your door and listen for an approaching train.
- Try to start your engine.
- If your vehicle won't start, shift to neutral and try to push the vehicle off the tracks.
- If you cannot move your vehicle from the tracks, call the police immediately to report the situation.

Breakdowns

- Move your vehicle off the pavement to the side of the road. Never park on a hill or on a curve where others cannot see you. If you cannot get your vehicle off the pavement, safely get all passengers out of the vehicle and off the road.

On a highway with a breakdown lane or shoulder, move your vehicle as far from the travel lane as possible. Do *not* stand anywhere near the travel lane or in the breakdown lane, if you can avoid doing so.

- Turn on your emergency warning lights (flashers). At night, also turn on your vehicle's interior lights.
- Tie a white cloth to your antenna or door handle (use a red cloth when it's snowing). Raise your vehicle's hood.
- If you have flares or reflective signs, place them 200 feet in front of and behind your vehicle to warn other drivers.

Car Catches Fire

If you see smoke coming from under your vehicle's hood. . .

- Pull off the road, turn off the ignition, and move away from the vehicle.
- Call the fire department or emergency services

Traffic Accidents

- Do not try to fight the fire unless you have an extinguisher.

Vehicle Plunges into Water

If your car plunges into water. . .

- Unfasten your safety belt and escape through a window.
- If you have power windows, open them quickly before the water causes them to short circuit.
- Do not open a door, because doing so would cause water to rush in and your vehicle could turn over on top of you.

If your vehicle sinks before you can get out, climb into the rear seat. An air pocket may form there, because the weight of the engine will cause the car to sink nose first. When the vehicle settles, take a deep breath and escape through a window.

Each year, more than 170,000 motor vehicle crashes are reported in Massachusetts. Obeying the rules of the road, following the guidelines in this manual, and learning to drive defensively can reduce your risk of a collision or fatal accident. If you are involved in or witness a crash of any sort, state law requires you to respond as explained in this section.

If You Are Involved in an Accident

When you're involved in a crash, regardless of how minor it seems, you must stop your vehicle.

Never leave the scene of an accident. It's against the law. You could be charged with a "hit and run" violation.

Property Damage Only

1. Move your vehicle off the road, if possible.
2. Exchange name, address, driver's license number, vehicle registration, and insurance information with all drivers or property owners who are involved. You must show your driver's license, if asked to do so.
3. If you have damaged a parked vehicle or stationary property, **you must try to locate the owner to report the accident or notify the local police.**
4. Within 5 days of the event, you must complete and file an accident report with both the RMV and the local police department. You must report *any* crash in which there has been \$1,000 or more of property damage.
5. If you've injured a cat, a dog, or any other animal, **notify the local police and, if possible, the animal's owner.**

If you have a cellular phone, you can contact the state police to report any emergency by dialing *sp (*77).

Accidents Involving Injuries

1. Check to see if anyone is injured.
2. Call the police and request an ambulance or a rescue squad, if necessary.
3. If possible, move your vehicle off the road.
4. Exchange name, address, driver's license number, vehicle registration, and insurance information with anyone who is injured or with any other driver who is involved. You

must show your driver's license if asked to do so.

5. Within 5 days of the event, you must complete and file an accident report with both the RMV and the local police department. The law requires you to report *any* accident in which someone is killed or injured or in which there has been \$1,000 or more of property damage.
6. Notify your insurance company.

Reporting an accident to your insurance company alone does not satisfy your legal obligation.

Emergency First Aid Tips

- Don't move an injured person unless it is absolutely necessary. If you must move someone because of a life-threatening situation, fully support the person's head and spine.
- Check to see if the person is breathing. If the person is not breathing and you are certified in cardiopulmonary resuscitation (CPR), begin performing CPR immediately.
- If the person is bleeding, put pressure directly on the wound. Maintain pressure until help arrives.
- Cover the injured person with a blanket or coat to provide warmth and prevent shock.

If You Witness an Accident

If you drive by an accident with police and emergency vehicles at the scene, use common sense and good judgment. Reduce your speed and drive cautiously, looking out for people and equipment in the road. Do not stop or slow down to "sightsee." You will only create a hazard and disrupt traffic.

If you arrive at an unattended accident scene:

1. Park your car off the road and turn on your emergency flashers so that your vehicle

warns others.

2. Check to see if anyone is injured.
3. If you have a cellular phone, call the police. If you don't have a cellular phone, tell the next person with a phone who stops to call the police.
4. If you or someone else at the scene has flares, emergency triangles, or reflectors, place them 200 feet or more in front of and behind the accident scene to warn approaching traffic.
5. Follow the emergency first aid tips described in the preceding section.
6. If possible, move any vehicle involved in the accident out of the traffic lane.
7. Turn off the ignition of any vehicle involved in the accident.

If utility poles have been hit and any electrical wires have fallen, do not go near them. If electrical wires have landed on one of the vehicles involved in the crash, tell the occupants to remain inside their vehicles until emergency personnel arrive.

**Crash Records
Registry of Motor
Vehicles
P.O. Box 199100
Boston, MA
02119-9100**

Reporting an Accident

The law requires you to report any motor vehicle accident in which you are involved, in which someone is killed or hurt, or in which there has been \$1,000 or more in property damage. You must file a written report with the RMV within 5 days of the accident.

Accident/Motor Vehicle Crash Operator Report forms are available at local police stations, RMV branches or by calling the RMV's Phone Center. You can also download these forms from our Web site at www.mass.gov/rmv.

Owning a Vehicle

If you own or lease a motor vehicle in Massachusetts, you must meet certain obligations to keep your vehicle legally registered and safe for the road, with some exceptions:

- Any vehicle to be driven on public roadways in Massachusetts must be insured, registered, and inspected.
- Each vehicle must have a Certificate of Title.
- You must pay 5 percent sales tax on any vehicle you buy.

This chapter presents information on meeting each of these obligations for private passenger vehicles and motorcycles. Each person operating a motor vehicle should have a Certificate of Registration on his or her person or in his or her vehicle at all times.

CHAPTER 6

Vehicle Registration

Although there are a few exceptions, if you are a Massachusetts resident, to drive a vehicle legally on the roads of Massachusetts you must register your vehicle with the RMV and your vehicle must bear the assigned license plates. All vehicle registrations are subject to periodic renewal with fees.

When you are issued two plates, you must display both plates.

When you register a passenger vehicle or motorcycle, you will be issued license plates that you must mount on your vehicle. Newly registered passenger vehicles are issued two plates for front and back mounting; motorcycles require single plates. For each renewal period that your registration is valid, you will receive a plate decal that must be placed in the upper right corner of the rear plate. Failure to place the decal as instructed can result in a fine. For motorcycles, you must also affix an inspection sticker each year (*see the Vehicle Inspections section later in this chapter*).

New Registrations

To register a newly acquired new or used vehicle, you must follow these steps:

1. Go to an authorized Massachusetts insurance agent and have the agent fill out, stamp, and sign an RMV-1 form, which is an application for registration and title.
2. After verifying the information, sign the application.
3. Take the completed RMV-1 application, along with the Certificate of Origin for a new vehicle, the previous owner's certificate of title for a used vehicle, or a bill of sale and copy of last registration for a non-titled vehicle, to a full-service RMV branch.

Translation Required

If you present a document that is not written or printed in the English language, the Registrar may require the document to be accompanied by an original translation that is certified by a bilingual Massachusetts Notary Public; a bilingual teacher

at an accredited Massachusetts college, university, or private language school; a Registry-recognized sponsoring agency; or by the local consulate for the document's country of origin. The interpreter's name, address, and telephone number must accompany the translated document.

4. For a new vehicle, you will pay a 5 percent sales tax based on the price you paid the Massachusetts dealer or an out-of-state dealer. If the vehicle is used and was purchased from a private party or an out-of-state dealer who is *not* registered with the Massachusetts Department of Revenue (DOR), the vehicle sales tax is calculated as 5 percent of the actual purchase price **or** 5 percent of the NADA trade-in (book) value, **whichever is higher**. Acceptable evidence of the purchase price you paid includes the following documents:

- a. **If the vehicle was purchased from a licensed Massachusetts dealer or an out-of-state dealer who is registered with the Massachusetts DOR**, the following rules apply: You will need a completed RMV-1 form (Application for Registration) that clearly shows, in the area labeled "Sales or Use Tax Schedule," the price you paid for the vehicle. If it is an out-of-state dealer, you will need either a completed RMV-1 form or a completed purchase contract that clearly shows the price you paid.
- b. If the vehicle was purchased from a private party, if the vehicle does not have a title, if the Certificate of Title does not have a space provided for sale price information, or the price information was not included, you need a bill of sale that clearly shows the price you paid.

5. Pay the registration fee and title fee (\$50) if applicable (the regular fee for private passenger vehicles is \$36; special registration plates require an additional fee for each renewal period).

Sales tax may be paid in cash or by certified check, personal check, or money order, made payable to the RMV.

To apply for a tax abatement (rebate), you must submit a form to the DOR. To obtain a form, visit an RMV Branch or call the DOR at 1-800-392-6089.

In addition to sales tax, your local city or town levies an annual excise tax.

6. **State law requires you to have your vehicle undergo a Massachusetts motor vehicle inspection within 7 days of registration** (*see the Vehicle Inspections section later in this chapter*).

Rules for Military Personnel

If you are serving on extended active duty in the military, the following two cases generally apply:

- If your vehicle was purchased, titled, and registered in your home state, you may retain your home state registration indefinitely, regardless of where you are stationed in the country. The only requirement is that you carry insurance at least equal to Massachusetts minimum levels.
- If your vehicle was purchased, titled, and registered in a state *other* than your home state, you will need to register the vehicle in each state you are assigned to. If you are not a Massachusetts resident and your vehicle falls into this category, you may drive the vehicle with the existing out-of-state registration for 30 days only. You must register and title the vehicle in Massachusetts before the 30-day period has expired.

If you are returning from service abroad and your vehicle bears plates issued by the Armed Forces, you may drive the vehicle for up to 30 days for the purpose of traveling to military duty or to your place of residence.

Registration Renewal

You are obligated to renew your vehicle registration, when necessary. About 6 to 8 weeks before your registration expires you should receive a renewal card (RMV-2) in the mail. If you do *not* receive a renewal notice, please call the RMV Phone Center to make sure your correct address is listed in your RMV records.

Renewal by Mail

When you receive your renewal card, you are asked to do the following:

1. Verify that all information on the renewal card is correct.
2. Indicate any changes or corrections on the card by marking an **X** in the box.
3. If you have outstanding parking tickets, excise tax bills, abandoned vehicle citations, or unpaid Fast Lane violations, you must obtain release forms from the city or town involved before you can renew your registration.

If you have outstanding court warrants, you must obtain a recall notice from the court that issued the warrants.

If you have outstanding child support obligations, you must contact the DOR at 1-800-332-2733.

4. If your renewal card shows **Ins Stamp Required**, have your insurance agent stamp and sign the renewal card.
5. Make sure the renewal card has been signed by **all** owners listed on the front of the card and that all owners have included their driver's license numbers and dates of birth in the space provided.
6. Mail the completed insurance-certified renewal card and payment (check or money order only made payable to the *Registry of Motor Vehicles*) to this address:

Mail-In Registration/Data Scan
Registry of Motor Vehicles
P.O. Box 199106
Boston, MA 02119-9106

Please allow at least 10 days for processing.

Renewal by Phone or Internet

Eligible customers can renew registrations by calling the RMV Phone Center or by using the Internet (may be restricted by plate type).

RMV Phone Center
617-351-4500
in the
339/617/781/857
area codes

1-800-858-3926
from all other MA
area codes

Monday—Friday
9 a.m.–5 p.m.

Internet Address
www.mass.gov/rmv

To renew over the phone, call 866-MASS-RMV (866-627-7768). To renew using the Internet, go to www.mass.gov/rmv. If you have outstanding parking tickets, unpaid excise taxes or a suspended or revoked registration, you will *not* be able to renew your registration.

Duplicate Registration

If you lose your registration certificate, you may apply for a duplicate by taking one of the following steps.

By Phone or Internet

If you have a MasterCard, VISA or Discover charge card, you can call the RMV Phone Center or visit the RMV's Web site (www.mass.gov/rmv) to order a duplicate registration.

In Person or by Mail

To order a duplicate registration in person or by mail, you must complete and submit a Universal Form, and pay the \$15 duplicate registration fee. RMV Branches accept cash, check, or money order. Make checks payable to the *Registry of Motor Vehicles*. Stop by any RMV Branch with these items or mail them to this address:

Duplicate Registrations
Registry of Motor Vehicles
P.O. Box 199106
Boston, MA 02119-9106

Your request will be processed and returned to you in about 10 days from the postmarked date.

Canceling a Registration

To cancel a vehicle registration, turn in your plates and registration certificate at any RMV office. You will receive two plate return receipts. Send one receipt to your insurance company, and keep the other for your records. You may be able to use the second return receipt to seek an abatement of your excise tax from your local city or town.

You may be able to cancel your registration through your insurance agent. Contact your agent to see if they can process this transaction for you.

If you cannot go to an RMV office, you can mail your plates and registration certificate to this address:

Registration Cancellations
Registry of Motor Vehicles
P.O. Box 199106
Boston, MA 02119-9106

If you wish to cancel the registration but do *not* have the plates to turn in, you must fill out and submit a Lost Plate Affidavit (C-19) form, which is available at RMV Branches or through the Phone Center, or download it from www.mass.gov/rmv.

Transferring a Registration to a Newly Acquired Vehicle

The 7-Day Registration Law

Transfer

The 7-day registration transfer law allows you enough time to transfer the registration from your current vehicle to a vehicle you just bought and to arrange for insurance coverage on your newly acquired vehicle.

Under this law, if you transfer ownership or lose possession of your vehicle or trailer, you have 7 calendar days to transfer your registration to another vehicle or trailer. During these 7 days, you may operate your new vehicle with the registration plates from your old vehicle. However, you must transfer your registration to your new vehicle by 5:00 p.m. of the seventh day after transferring ownership of your former vehicle. The day of transfer counts as the first day.

The following conditions of the law apply:

- The seller has properly assigned the Certificate of Origin (if a new vehicle) or the Certificate of Title (if a used vehicle) and delivered it to the buyer when the newly acquired vehicle is delivered (MGL c. 90D, §15).

You cannot use the 7-Day period to transfer your registration if you have retained the currently registered vehicle.

- The term *vehicle* means a motor vehicle or trailer.
- The term *owner* means a person, a corporation, or another entity that is legally qualified to hold title to property.
- The owner, if a person, must be at least 18 years old.
- The previously owned vehicle and the newly acquired vehicle must be the same type and have the same number of wheels.
- When operating the newly acquired vehicle, the owner must carry an original copy of the bill of sale that indicates the registration number to be transferred or, if the vehicle was purchased from a dealer, a dealer-issued Certificate of Transfer.
- The registration plates must be attached to the newly acquired vehicle.
- The phrase *lose possession* means an involuntary circumstance, like theft or repossession.
- The newly acquired vehicle may be a **new** or **used** motor vehicle or trailer.

Registration Policies for New Residents

Converting an Out-of-State Registration

You must register your vehicle in Massachusetts as soon as you become a Massachusetts resident. The law does not provide a grace period.

To convert your out-of-state vehicle registration, follow the instructions in the *New Registrations* section earlier in this chapter.

If you want to convert your out-of-state registration and your current certificate of title is being held by your lienholder, you must submit your out-of-state registration and list your lienholder information on the application for Massachusetts registration and title (RMV-1 Form). A memorandum

non-negotiable title will be mailed to your lienholder. Note: This vehicle cannot be sold unless the Massachusetts' memorandum title is accompanied by the original out-of-state title.

If your vehicle has been registered in another state, you may have to pay some sales tax. To determine your Massachusetts sales tax, call the DOR at 617-887-6367.

Follow the instructions earlier in this chapter for applying for a title and registration. The registration and plates are valid for 2 years. The RMV will process and mail your new title to you.

Nonresidents Registering in Massachusetts

Even a nonresident (anyone whose legal residence is outside the Commonwealth) may be required to register and/or insure a motor vehicle or trailer in Massachusetts in certain situations. Following are some examples:

- Nonresidents whose primary residences are in other states may not operate motor vehicles or trailers in Massachusetts for more than 30 total days in one year unless they have liability insurance (*see the Insurance and Merit Rating section later in this chapter*).
- Nonresidents must register in Massachusetts the motor vehicles or trailers they use for their Massachusetts businesses. If nonresidents use their vehicles in Massachusetts and one or more other states, they must register the average number of vehicles they use in Massachusetts. Other rules apply to vehicles owned by nonresidents who have "apportioned" license plates from other states.
- Nonresidents who own motor vehicles or trailers that are registered in other states or countries must register those vehicles and trailers in Massachusetts if Massachusetts residents have or control those vehicles or trailers for more than 30 total days in one calendar year.

If you know of an illegally registered out-of-state vehicle, contact the RMV's anonymous tip line at 1-800-I PAY TAX (1-800-472-9829).

Please report the vehicle type, the plate number, the location, and how long the vehicle has been in the area. Include local address of the person you believe owns the vehicle, if you know it.

Nonresidents who must register their motor vehicles or trailers in Massachusetts may still be required to register those vehicles or trailers in their states of residence. This is called “dual registration.”

Exemption for Enrolled Students: While nonresidents who are enrolled as full-time students in Massachusetts schools, colleges, and universities do not have to register their out-of-state vehicles in Massachusetts, they must complete and file **Nonresident Student Vehicle Information Forms** with the police departments **in the cities and towns where their schools, colleges, and universities are located.** These forms, which should be available at schools, colleges, universities and on www.mass.gov/rmv, provide registration, residence, and insurance information. In addition to submitting these completed forms, full-time nonresident students must carry full liability insurance policies.

This exemption does not apply to graduate students who are compensated beyond the cost of tuition or to fully registered medical practitioners.

Special Design Plates

In addition to the initial registration fee, specialty license plates require a special fee each renewal period.



In 1995, Massachusetts introduced its first environmental fundraising plate, which features the tail of a right whale and two roseate terns. The state introduced its second environmental plate, Fish and Wildlife, in 1998, and its third, Blackstone Valley, in 1999. The special fee for these plates, which is \$40 every 2 years, is contributed to the Massachusetts Environmental Trust, which provides grants to educate and preserve the Massachusetts environment. A portion of the initial fee for these plates, and the plates' full renewal fee, are tax deductible.

Another specialty plate highlights Cape Cod and the Islands. Its design features Eastham's Nauset Lighthouse along with the cliffs of Siasconset and Aquinnah. Proceeds from this plate go toward promoting economic development and tourism on Cape Cod, Martha's Vineyard, and Nantucket. The special plate fee for this plate is \$50 every 2 years.



The RMV has issued an Olympic Spirit plate that shows the five colored Olympic rings. The every-2-year special plate fee of \$50 is used to help Massachusetts residents on the US Olympic teams.



In 1998, the RMV issued the Invest in Children plate, which features artwork provided by the United Way. The special plate fee of \$40 for this plate benefits the Child Care Quality Fund, which is a division of the Massachusetts Office of Child Care Services.



If you own an antique car, you may be able to apply for permission to use an originally issued, year-of-manufacture plate as your license plate. For more information, contact the RMV Phone Center or visit the RMV's Web site.



Annually renewed vanity plates are also available for an extra fee of \$50. You can apply for vanity plates over the phone or obtain the necessary form from the RMV's Web site.

If you have questions about registrations or special plates, please call the RMV Phone Center or visit the RMV's Web site.

RMV Phone Center
617-351-4500
in the 339/617/781/857
area codes

1-800-858-3926
from all other MA
area codes

Monday-Friday
9 a.m.-5 p.m.

Internet Address
www.mass.gov/rmv

Disabled Plates and Placards

Through its Medical Affairs Bureau, the RMV issues special license plates and placards to people with disabilities who meet certain medical qualifications. Designated disabled plates and placards allow people with disabilities to park vehicles in spaces posted with HP-DV parking only signs and at coin meters without paying fees or penalties.

These special privileges are extended *only* to people with disabilities who have been granted special disabled plates or placards.

**For toll-free, hear-
ing-impaired assis-
tance, call**

These privileges are *not* available to any other person using a vehicle displaying such a plate or placard. Abuse of an HP plate or placard may result in plate or placard revocation. The person who abuses this special parking privilege may face additional penalties which may include a fine and license suspension.

Disabled Plate

If you own a vehicle, you may apply for a disabled registration number plate. The vehicle must be registered in the disabled person's name. If you have a vehicle registered in your name, you may choose to apply for a plate. Holders of disabled plates may apply for a placard on a temporary basis.

Note: Temporary placards are now available to holders of HP plates by written request. The applicant must provide information showing good cause for the temporary placard.

Disabled Placard

Any disabled individual who meets the eligibility criteria described below, may apply for a placard, regardless of whether or not they have a valid license or own a vehicle. Placards are issued on a temporary or permanent basis and hang from the rear-view mirror when in use. Temporary placards are valid anywhere from 2 months to 24 months, based on your particular need. Permanent placards must be renewed every five years. Before the RMV can issue you a disabled placard, you must be photo-imaged (*see the Photo-Image License section of Chapter 1*). The RMV includes a solid plastic sleeve with your placard that slides over your picture and name to protect the privacy of placard holders. The use of this sleeve is not required. Placard holders may use it at their discretion.

Disabled Veteran Plate

The disabled veteran (DV) plate has the same purpose as a disabled plate (*see the Disabled Plate section earlier in this chapter*). To be eligible, you must meet the same qualifications as if you were applying for a disabled plate. In addition you will also need a statement of disability from the U.S. Department of Veteran Affairs.

Medical Affairs
Bureau
Registry of Motor
Vehicles
P.O. Box 199100
Boston, MA 02119-
9100

Note: If you currently have an old dashboard style placard, you will be notified by the RMV on how to convert to the new hanging style placard. In the meantime, your dashboard style placard is valid.

Eligibility Standards

To obtain a disabled plate, disabled placard, or DV plate, you must be a Massachusetts resident. In addition, a licensed physician, chiropractor, or nurse practitioner must certify that you meet one of the following conditions:

- Cannot walk 200 feet without stopping to rest, or cannot walk without the assistance of another person, prosthetic aid, or other assistive device, as a result of a described clinical diagnosis;
- Has a cardiovascular disease to the extent that your functional limitations are classified in severity as Class III or Class IV according to the guidelines set by the American Heart Association (*if you are a Class IV heart patient you must surrender your license*);
- Has a pulmonary disease to the extent that forced expiratory volume (FEV-1) in one second when measured by spirometry is less than one liter, or requires continuous oxygen therapy, or has an O₂ saturation rate of 88% or less at rest or with minimal exertion even with supplemental oxygen (*if your O₂ saturation rate is 88% or less at rest or with minimal exertion even with supplemental oxygen, you must surrender your license*);
- Legally blind: is blind to the extent that your central visual acuity does not exceed 20/200 (Snellen) in the better eye of the corrective lenses, or has a visual acuity that is greater than 20/200 in the better eye but with a limitation in the field of vision such that the widest diameter of the visual field subtends an angle not greater than 20 degrees. Please attach a copy of certification that you are legally blind with your application (*if you are in this classification, you must surrender your license*);
- Has lost, or permanently lost the use of one or more limbs

**Contact Medical
Affairs directly at
617-351-9222.**

Applying for Plates and Placards

Application forms are available at all RMV Branches and License Express locations, or you can call the RMV Phone Center and have an application mailed to you or download the application from the RMV website. The application must be completed by both you and your attending Massachusetts registered physician, physician's assistant, chiropractor, or nurse practitioner. There is no fee for a disabled plate or placard, but customers must pay the registration fee.

Send all written correspondence involving medical affairs to the following address:

Medical Affairs Bureau
Registry of Motor Vehicles
P.O. Box 199100
Boston, MA 02119-9100

Please allow ample time for processing any plate or placard transaction.

Transferring a Plate to a Placard

To transfer from disabled plates to a placard, please submit a written request stating the disabled plate number and enclose a copy of the vehicle registration. As soon as the RMV processes your letter of request, you will receive instructions by mail for completing the transaction.

Applying for Replacement Placards

To apply for a replacement placard, you must submit a letter stating the reason you need a replacement. In your request, please include your name, address, social security number (SSN), date of birth, and the placard number or the date the placard was first issued.

In October 1999, the Enhanced Emissions and Safety Test was adopted to comply with federal requirements to help clean the air. Under this program, registered motor vehicles are

RMV Phone Center**617-351-4500****in the****339/617/781/857****area codes****1-800-858-3926****from all other MA****area codes****Monday—Friday****9 a.m.—5 p.m.****Internet Address****www.mass.gov/rmv**

Vehicle Inspections

required to be inspected each year for safety and every other year for emissions. These inspections are conducted at licensed stations across the state. Stations are easily located because they display the official sign. You can find them by calling the toll free number or using the web site listed. The annual fee is \$29.00. While the safety test is required every year, vehicles which are model year 1983 or older will not be required to have an emissions test. New cars will also be exempt from the emissions test for their first 2 years. Safety and emissions tests must be conducted within 7 days of registration of a vehicle, regardless of the calendar/model year.

Motorcycles require an annual safety inspection which is performed at licensed Class M motorcycle inspection stations. The annual fee is \$15.00.

When you buy a motor vehicle or motorcycle, state law requires you to have your vehicle undergo a safety and emissions inspection within 7 days of registration. You must have a new inspection, even if the vehicle bears a valid sticker from the previous owner.

If your motor vehicle passes the annual inspection, a sticker will be affixed to the lower right inside windshield of your vehicle. This sticker is valid for 1 year. If your motorcycle passes the inspection, a sticker will be affixed to your license plate. This sticker is valid until May 31. For motorcycles inspected in January through April, stickers will be valid until May 31 of the following year. If your vehicle or motorcycle fails the inspection, you will receive a "reject" sticker.

- If the problem is safety related, you must have the problem fixed immediately. You are not allowed to drive the vehicle until the safety issue is resolved.

To find an inspection station in your area, call the toll free Hotline at 1-877-387-8234 or visit the Enhanced Emissions and Safety Test web site at <http://vehicletest.state.ma.us>

Driving any motor vehicle without a valid inspection sticker is a traffic violation and can result in a fine and affect your insurance rate.



For emissions information, call the Department of Environmental Protection, Division of Inspection Maintenance, at 617-292-5604

- If the problem involves vehicle emissions, you have 60 days to correct the problem and resubmit your vehicle for inspection. For more details call toll free 1-877-387-8234 or visit the web site at <http://vehicletest.state.ma.us>

The Lemon Aid Law

You may have protection under the Massachusetts Lemon Aid Law and be able to void or cancel a motor vehicle contract or sale if you meet the following two conditions:

1. Your vehicle fails to pass inspection within seven days from the date of sale

AND

2. if the estimated costs of making the repairs of emissions or safety related defects exceed 10% of the purchase price

Don't worry if your situation does not meet these standards, you may have other laws to protect you. To find out how to receive your refund or if you have any questions, contact the Office of Consumer Affairs and Business Regulation at (617) 973-8787 or (888) 283-3757 (in MA only).

Consumer Affairs
10 Park Plaza
Suite 5170
Boston, MA 02116

A Certificate of Title is a legal document showing proof of ownership. When you buy a vehicle,

Titles

after printing and signing his or her name on it and entering the sale price and the required odometer information at time of transfer. Buyers are also required to sign and print their name(s). Signing your name at the time of transfer indicates that you are aware of the odometer disclosure statement made by the seller(s). You must then present the title to the RMV with your application for a new title. You must also obtain a registration if you are going to operate the vehicle on public ways. If you are borrowing money to pay for the vehicle, the Certificate of

Title will be sent to the lending institution, also known as the **lienholder**, which is listed on the title.

Massachusetts title law requires all motor vehicles and trailers to be titled within 10 days of purchase. This applies to both new and used vehicles purchased from either a dealer or private party. There are some exceptions:

- Trailer with gross weight of 3,000 pounds or less
- Vehicle owned by a manufacturer or dealer and held for sale, even though it may be driven on the highway or used for testing or demonstration purposes
- Vehicle used by a manufacturer solely for testing
- Vehicle owned by a nonresident of the Commonwealth that has a current, valid Certificate of Title issued by the state of residence
- Vehicle regularly used for transporting people or property between states that has a current, valid Certificate of Title issued by another state or country
- Vehicle moved solely by animal power
- Implement of husbandry (farming or agriculture)
- Special mobile equipment
- Self-propelled wheelchair or invalid tricycle
- Manufactured (mobile) home as defined in Massachusetts General Law (MGL) c. 140, §32Q
- Vehicle owned by the U.S. Government, unless it is registered according to the provisions of MGL c. 90

Basic Title Transactions

There are several basic title transactions:

Basic Title Transactions

Transaction Type	Forms and Documents	Fee	RMV Office or Mail Department	Processing Time	Notes
Original Title	- Application for Title (RMV-1) - Certificate of Origin or - Certificate of Title or - Bill of Sale (If Nontitled Vehicle)	\$50	Full-Service Branch	6 to 8 weeks	If you borrow money to buy the vehicle, the title will be mailed to the lienholder. You must pay 5 percent sales tax on any vehicle you buy.
Duplicate Title	- Duplicate Title Application - Lien Release Letter (On Original Letterhead) If Lien Has Been Paid Off	\$25	<i>Mail to:</i> Duplicate Titles Title Division P.O. Box 199136 Boston, MA 02119	7 to 10 business days after receipt of application	If lien has been paid off, remember to include an original lien release letter from the lending institution.
Adding a Lienholder to Certificate of	- Universal Title Application (20065) - Original Certificate of Title	\$25	<i>Mail to:</i> Adding Lien Title Division P.O. Box 199136 Boston, MA 02119	7 to 10 business days after receipt of application	Don't forget to send the original title with your application. The RMV will send the new title to the lienholder.
Corrected Title	- Universal Title Application (20065) - Original Certificate of Title - Notarized Affidavit (For Mileage Only)	\$25	<i>Mail to:</i> Title Correction Department Title Division P.O. Box 199136 Boston, MA 02119	7 to 10 business days after receipt of application	If you are correcting an odometer problem, you must get a notarized affidavit stating the true mileage. This affidavit must be signed and witnessed by a notary public.
Salvage Repairable Title	- Application for Title (RMV-1) - Current Title	\$25	<i>Mail to:</i> Salvage Title Title Division P.O. Box 199136 Boston, MA 02119	7 to 10 business days after receipt of application	You must list the salvage repairable brand as collision, salt, flood, theft, or vandalism.
Owner-Retained Total Loss Title	- Application for Title (RMV-1) Listing Current Odometer Reading - Current Title (Original Only) - Copy of Appraisal from Insurance Company	\$50	<i>Mail to:</i> Salvage Title Title Division P.O. Box 199136 Boston, MA 02119	7 to 10 business days after receipt of application	To secure an owner-retained title, the vehicle must be driveable, able to pass a Massachusetts safety inspection, and have an active registration.
Reconstructed Title	- Application for Title (RMV-1) Listing Current Odometer Reading - Previous Salvage Title - Salvage Inspection Form	\$50	<i>Mail to:</i> Salvage Title Title Division P.O. Box 199136 Boston, MA 02119	7 to 10 business days after receipt of application	You must list the brand as reconstructed (collision, salt, flood, vandalism).
Recovered Theft Title	- Application for Title (RMV-1) Listing Current Odometer Reading - Previous Salvage Title - Salvage Inspection Form	\$50	<i>Mail to:</i> Salvage Title Title Division P.O. Box 199136 Boston, MA 02119	7 to 10 business days after receipt of application	You must list the brand as recovered theft (collision, salt, flood, vandalism).
Parts-Only Title	- Application for Title (RMV-1) Listing Current Odometer Reading - Previous Salvage Title - Appraisal Report from insurance company	\$25	<i>Mail to:</i> Salvage Title Title Division P.O. Box 199136 Boston, MA 02119	7 to 10 business days after receipt of application	You must list the salvage parts-only brand.

- Obtaining an original title
- Obtaining a duplicate title
- Obtaining a salvage-related title, which may be a
 - Salvage repairable title
 - Owner-retained total loss title
 - Reconstructed title
 - Recovered theft title
 - Parts-only title
- Adding a lienholder to your title
- Correcting information on your title

The procedures for each of these transactions are summarized on the following pages.

To apply for an original Certificate of Title and for all other basic title transactions, you can either visit an RMV office or conduct your business by mail.

For any mail-in title transaction, be sure to include all required forms and documents and a check or money order for the appropriate fee, made payable to the *Registry of Motor Vehicles*. Send your application materials to the RMV department listed in the accompanying chart to this address:

ATTN: Title Division
 (Specific Department)
 Registry of Motor Vehicles
 P.O. Box 199136
 Boston, MA 02119-9136

Title transaction forms are available at any RMV Branch, from most insurance agents, and through the RMV's Web site. Be aware that for most of these transactions, **all vehicle owners must sign the application forms.**

If you have any questions about title application procedures or would like title forms mailed to you, please call the RMV Phone Center or visit the RMV's Web site.

The chart earlier in this section provides all the

RMV Phone Center
617-351-4500
in the 339/617/781/857
area codes

1-800-858-3926
from all other MA
area codes

Monday–Friday
9 a.m.–5 p.m.

Internet Address
www.mass.gov/rmv

information you need for basic transactions. However, following are a few useful notes.

Obtaining an Original Title

If you are registering your vehicle when you apply for a title (*see the Vehicle Registration section earlier in this chapter*), an authorized Massachusetts insurance agent must stamp and sign the application to certify your insurance coverage.

If you bought your vehicle from a dealer, you must pay 5 percent state sales tax on your purchase price. For a private sale, your sales tax will be 5 percent of the actual purchase price or of the NADA trade-in (book) value, whichever is higher. If the vehicle is nontitled, you must bring the bill of sale when applying for a title.

Reminder: If you borrowed money to buy your vehicle, the title will be mailed directly to the lienholder.

Obtaining a Duplicate Title

If you had a lien on a vehicle that has been paid off, you must obtain a lien release letter on the lending institution's original stationery. Faxes and photocopies are not accepted.

Obtaining a Salvage-Related Title

A vehicle is deemed "salvage" when an insurance company has declared it to be a total loss due to fire, vandalism, collision, theft, flood, or any other cause. Once a vehicle has been given salvage classification, the classification is permanent and remains part of the vehicle's history.

If your insurance company takes possession of the salvage vehicle, the company is responsible for applying for a salvage title. If you keep the vehicle, you can apply for a salvage title or, if you have an active, valid registration and the vehicle is driveable, you can apply for an owner-retained title. Vehicles 10 years old or older are exempt from the salvage title process.

A vehicle with a salvage title cannot be regis-

tered. If you plan to sell a salvaged vehicle, you should take it through the salvage inspection process and apply for a reconstructed or a recovered-theft title, whichever applies.

Alternatively, you can advise the buyer that the inspection and title process is required before the vehicle can be registered.

Unless you are a licensed dealer, you cannot transfer a salvage title from private party to private party without the current owner first getting a salvage title in his or her name or completing the salvage process and securing the reconstructed title.

Salvage Repairable Title: If your vehicle becomes **inoperable** due to fire, vandalism, collision, theft, flood, or another event to such an extent that you or, if insured, your insurer considers it uneconomical to repair the vehicle, the vehicle will be declared a total loss.

If the vehicle is insured and the insurer retains the vehicle, you will have to assign your title to the insurer, the insurer will have to obtain a salvage title, and you will lose possession of the vehicle.

If the vehicle is uninsured or if you decide to keep possession of the vehicle, you must apply to the RMV for a salvage title. State law prohibits you from operating the vehicle until it has passed a salvage inspection (*see the Salvage Inspection section later in this chapter*) and you have obtained a new title.

To obtain a salvage repairable title, you must present, by mail to the RMV's Title Division or in person at the RMV's Boston Branch, your current Certificate of Title, a completed application (RMV-1), and a \$25 check or money order made payable to the RMV. Within 7 to 10 days, the RMV will review your application and mail you a new salvage title.

Owner-Retained Total Loss Title: If your insurer declares your vehicle a total loss due to fire, vandalism, collision, theft, flood, or another

event; **the vehicle is still driveable** and has an active registration; **and** you choose to keep the vehicle, you may continue to drive the vehicle after you have obtained an owner-retained total loss title for it.

Within 10 days of receiving the settlement from your insurance company, you can apply for an owner-retained total loss title by presenting, via mail to the RMV's Title Division or in person at the RMV's Boston Branch, your current Certificate of Title, your current Certificate of Registration, an appraisal report from your insurance company, a completed application (RMV-1), and a \$50 check or money order made payable to the RMV. Within 30 days, the RMV will review your application and mail you a new owner-retained total loss title.

Reconstructed Title: A reconstructed title is issued to a vehicle that was previously titled as salvage repairable (*see the preceding section*) but that has been repaired, inspected, and retitled as reconstructed. If you have such a vehicle, you may drive it legally when a new registration is issued. To secure a reconstructed title, bring to your local RMV Branch your present salvage title, your current Certificate of Registration (if available), an approved inspection form (Form 20613) that an inspector has completed, and a \$50 check or money order made payable to the RMV.

Recovered Theft Title: A recovered theft title is issued to a vehicle that was previously titled as salvage repairable theft with damage sustained from a theft and that has been repaired, inspected, and retitled as recovered theft. The vehicle may be legally driven when a new registration is issued.

Parts-Only Title: A parts-only title is issued to a vehicle that the insurance company has declared a total loss due to fire, vandalism, collision, theft, flood, or other occurrence and that the insurance company has declared to be "parts only." This type of vehicle can never be rebuilt or registered in the Commonwealth and may never be legally

driven.

Salvage Brands: Each salvage title requires a brand. A brand simply describes the type of damage that caused an insurance company to declare a vehicle a total loss. A brand tells you that you are buying a salvage vehicle, and it also tells you the specific reasons your vehicle is considered salvage.

Brands fall into two main categories: primary and secondary. A primary salvage title brand, which indicates how a vehicle will be used, is one of two types: repairable or parts only. A repairable brand (REPR) means the vehicle can be repaired and returned to its operating condition. A parts-only brand (PART) means the vehicle can never be registered in the Commonwealth. The insurance company that declared the vehicle a total loss determines whether a vehicle is branded “parts only.”

The second main type of brand, the secondary salvage title brand, tells you the event that caused the insurance company to declare your vehicle a total loss. Following are the six secondary salvage brands:

- Collision (COLL)
- Fire (FIRE)
- Flood (FLOO)
- Flood/Salt (SALT)
- Theft (THEF)
- Vandalism (VAND)
- Other (OTHR)

Salvage Inspections

Once you have repaired your vehicle, and before you can register it, you must have your vehicle inspected. Salvage inspections protect you because they combat fraud and prevent the sale of stolen parts. They also tell you the history of your salvage vehicle.

If you have questions about the salvage inspection process, call the RMV's Auto Theft Department at 617-351-9060.

Note: Other (OTHR) is to be used only when the listed brands cannot describe the event which caused the vehicle to be salvaged.

At the salvage inspection, the inspector checks the vehicle's identification number (VIN) and records, by number or receipt, all major component parts that were replaced. **The salvage inspection is not a safety inspection.**

If the safety inspection sticker was removed from your vehicle's windshield at the damage appraisal and replaced with a rejection sticker, you may submit the vehicle to any official inspection station for a valid safety inspection sticker any time after your vehicle's defects have been corrected. Note that the rejection sticker is valid for 20 calendar days from the date of inspection.

All salvage inspections are conducted on a drive-in basis. To have your salvage vehicle inspected, bring the following documents to one of the salvage inspection sites throughout the Commonwealth from 8 a.m. to 3 p.m. No salvage inspections are done on the last Wednesday of each month.

- Completed application for inspection of a salvage vehicle and an affidavit of reconstruction (available at inspection sites only).
- Your newly issued salvage title.
- Appraisal report from your insurance company.
- Receipts for all major component parts used to restore your vehicle. If any of the parts were used, include the vehicle identification number (VIN) of the vehicle originating the parts.
- If an airbag has been replaced with a used airbag, a copy of the certificate of title for the vehicle that the airbag came from must be presented.
- A \$50 check or money order made payable to the RMV.

Once your salvage vehicle has been inspected, you can register it. In general, all salvage-titled vehicles must be inspected in Massachusetts to be registered in Massachusetts. The Massachusetts RMV does not honor out-of-state salvage

inspections unless the Registrar and the motor vehicle administrators of those states have previously agreed to accept each others' inspections.

Vehicles from states that do not issue salvage titles (like New York, which issues only a Salvage Certificate [Form 907A]) cannot be transferred or reinspected in Massachusetts until their owners have applied for Massachusetts salvage titles.

If you have any questions about salvage title procedures or would like forms mailed to you, please call the RMV Phone Center or visit the RMV's Web site, www.mass.gov/rmv.

Obtaining a Corrected Title

If you are correcting any information on your Certificate of Title, please refer to **Basic Title Transactions** on page 148. If you are correcting an odometer reading, you must submit a notarized affidavit of this fact. In this case, the notarized document is a written statement, made by the seller who provided the incorrect information, stating the true and accurate odometer reading at time of transfer, signed and witnessed in the presence of a notary public. Faxes and photocopies are not accepted.

Title Division
Registry of Motor Vehicles
P.O. Box 199136
Boston, MA 02119-9136

When You Sell a Vehicle . . .

Whenever you sell a motor vehicle, you must sign the Certificate of Title over to the new owner and either . . .

- Turn in the plates and cancel the registration *or*
- Transfer the plates to another vehicle you own according to the 7-day registration transfer law (*see the 7-Day Registration Transfer Law section earlier in this chapter*)

Take extra care when completing the transfer form on the back of the Title Certificate. Be sure to list the purchase price and odometer reading.

As part of the registration process, Massachusetts requires every vehicle on the road to be covered by minimum levels of motor vehicle insurance.

Insurance and Merit Rating

Compulsory insurance coverage.

- **Bodily injury to others**—Minimum \$20,000 per person, \$40,000 per accident (Part 1)
- **Personal injury protection**—Pays up to \$8,000 to you, passengers, pedestrians or anyone you allow to drive your vehicle (Part 2)
- **Bodily injury caused by an uninsured auto**—Minimum \$20,000 per person, \$40,000 per accident (Part 3)
- **Damage to someone else's property**—Minimum \$5,000 for property damage (Part 4)

For more on motor vehicle insurance, call the Office of Consumer Affairs, Division of Insurance, at 617-521-7777.

Safe Driver Insurance Plan

The Safe Driver Insurance Plan (SDIP) is a program mandated by state law that encourages safe driving by rewarding drivers who do not cause accidents or receive traffic citations and by ensuring that high-risk drivers pay a greater share of insurance costs.

For information on SDIP, call the Merit Rating Board at 617-351-4400 Monday through Friday from 8:30 a.m. to 5:00 p.m.

Under SDIP, your insurance premium (rate) is determined to a large extent by your driving record. If you are a safe driver and keep your driving record clean, your premium may go down. However, if you are convicted of criminal or civil motor vehicle violations, or if you are found to be at fault in an accident, your insurance premium will increase.

SDIP applies to private passenger insurance only. The program works on a point system that the RMV's Merit Rating Board (MRB) administers. This point system uses your driving record to track certain motor vehicle incidents, called **surchargeable incidents**. A surchargeable incident is any event in which you are...

- Convicted of, or pay a fine for, a motor vehicle violation
- Assigned to an alcohol education program
- Found to be more than 50 percent at fault for an accident and your insurance company makes a claim payment above a certain

threshold.

In addition to affecting your private passenger vehicle insurance, each surchargeable event counts toward possible license suspension (see *Chapter 2 for more information on suspensions*).

You are considered to be more than 50 percent at fault in an accident if your insurance company:

1. Finds you at fault according to 1 of the 19 Standards of Fault (examples include causing an accident while driving on the wrong side of the road or crashing into another vehicle from behind); and
2. Has paid a claim of more than \$500 for collision, limited collision, or damage to someone else's property.

Under the SDIP, you collect surcharge points for traffic violations and at-fault accidents, and you earn a credit point for each incident-free year in the 6-year policy Experience Period (which is the six year period immediately preceding the policy effective date.) You will not incur any surcharge points for your first minor, non-criminal, motor vehicle violation (such as speeding), but you will not earn a credit point for that year. No points are applied to incidents that fall in the sixth year of the policy Experience Period.

Drivers start at a neutral Step 15. For each surchargeable incident, points are **added** to your step, up to a maximum of Step 35. For each year that you avoid any surcharges, up to a maximum of 6 years, a credit point is **subtracted** from your step, down to a minimum of Step 9. The Merit Rating Board determines an operator's SDIP step. The following lists surcharge points:

- Major motor vehicle violation **5**
- Major at-fault accident **4**
(claim payment over \$2,000)
- Minor at-fault accident **3**
(claim payment \$500–\$2,000)
- Minor motor vehicle traffic violation **2**

Here is how your insurance premium will be

affected by **each** surcharge point (+) or incident-free year credit (-):

- Compulsory bodily injury ± 7.5 percent
- Personal injury protection ± 7.5 percent
- Damage to other's property ± 7.5 percent
- Collision coverage ± 7 percent

For a brochure detailing insurance requirements and SDIP, call the Division of Insurance Consumer Service Unit at 617-521-7777.

At-Fault Standards

- Collision with a lawfully or an unlawfully parked vehicle
- Rear-end collision
- Out-of-lane collision
- Failure to signal
- Failure to proceed with due caution from a traffic control signal or sign
- Collision on wrong side of road
- Operating in wrong direction
- Collision at an uncontrolled intersection
- Collision while backing
- Collision while making a left turn or a U-turn across the travel path of a vehicle traveling in the same or opposite direction
- Leaving or exiting a parked position, a parking lot, an alley, or a driveway
- Opened or opening vehicle door(s)
- Single-vehicle collision
- Failure to obey driving rules and regulations
- Unattended vehicle collision
- Collision while merging onto a highway or into a rotary
- Noncontact operator causing collision
- Failure to yield right-of-way to emergency vehicles when required by law
- Collision at a "T" intersection (you entered from a side road)

A. Acceptable Forms of Identification

You must have a valid Social Security number to apply for any permit, license, or ID, including a replacement or a renewal. If you do not have a valid Social Security number, you must present a written denial notice, satisfactory to the Registrar, from the Social Security Administration explaining why you can't obtain a Social Security number.

In addition, you must also show a Social Security Card or a valid, current U.S. or current non-U.S. Passport. You must also present three (3) pieces of identification from the Registry's Primary and Secondary ID lists. At least one (1) of the three (3) pieces must be from the Primary list. Together, the documents must establish date of birth, signature, and Massachusetts residency. All documents must be originals. Photocopies will not be accepted.

Primary Documents (P)

1. Current or expired U.S. or non-U.S. passport with photograph and signature
2. Current or expired Massachusetts Firearms Permit, with photograph, signature, and date of birth
3. School yearbook with applicant's photograph
4. Certain Bureau of Citizenship and Immigration Services documents and other U.S. Government immigration documents (**see *Acceptable Immigration Documents on page 160.***)
5. Current or expired U.S. military (or military dependent) ID with photograph, signature, and date of birth
6. Current or expired U.S. Coast Guard Merchant Mariner card with photograph, signature, and date of birth
7. Current Massachusetts learner's permit or ID card
8. Expired Massachusetts driver's license or ID card (not expired more than 1 year)
9. Current or expired license (not expired more than 1 year) with photograph, applicant's signature, and date of birth that is issued by a state, territory, or possession of the United States, the District of Columbia, a province of Canada, or a state of Mexico or the Federal District of Mexico City (*a certified copy is acceptable*)
10. Original birth certificate issued in the United States or its territories or a copy certified by the agency that issued the original certificate or a copy certified by a Bureau of Vital Statistics or a state Board of Health within the United States (**a hospital issued certificate is not acceptable**)

11. Certified or attested copy of a court order of a federal, state, or county court within the United States that contains a raised court seal and includes the applicant's full name and date of birth (*examples include an adoption document, a name change document, and a gender change document*)
12. Original or certified copy of a baptismal certificate, provided the original certificate was issued within 1 year of the applicant's birth by a church in the United States and contains the applicant's date of birth
13. Original letter issued by the principal, headmaster, or official keeper of the records of a Massachusetts school that indicates the applicant is currently a resident student and that includes the applicant's name and date of birth

Acceptable Immigration Documents

1. Certificate of Naturalization N-550, or N-570
2. Certificate of Citizenship N-560, or N-561
3. U.S. Citizen Identification Card I-179 or I-197
4. Resident Alien Card ("Green Card") I-151, I-551, AR-2, AR-3
5. Temporary Resident Identification Card I-688
6. Non-Resident Alien Canadian Border Crossing Card . . . I-185 or I-586
7. Record of Arrival or Departure (in valid Foreign Passport). I-94
8. Processed for I-551 stamp (in valid, Foreign Passport)
9. Permanent Resident Re-entry Permit I-327
10. Refugee Travel Document I-571
11. Employment Authorization Card I-688A, I-688B, I-766
12. Documents specific to the applicant based upon decisions of the U.S. Department of State, U.S. Department of Justice (including Executive Office for Immigration Review, Board of Immigration Appeals and former Immigration and Naturalization Service), or U.S. Department of Homeland Security (including Bureau of Citizenship and Immigration Services.)

Secondary Documents (S)

1. Home mortgage, lease, or loan papers with the applicant's name and signature
2. Life insurance papers with the applicant's name, signature, and date of signing
3. U.S. military discharge papers (DD 214), with the applicant's date of birth and signature

4. Notarized copy of a completed income tax return filed with the IRS or a state revenue department (*not more than 1 year old if used to confirm residence*); a W-2 form is not acceptable
5. A bank passbook, bank statement, or checkbook with the applicant's name and address that has been open for six months
6. Original or certified copy of a divorce decree
7. Original or certified copy of a marriage certificate
8. Original or certified copy of a non-U.S. birth certificate (*if not in English must be accompanied by an acceptable translation*)
9. Current or expired ID (not expired more than 1 year) with photograph and applicant's signature, issued by a U.S. agency; the District of Columbia; a state, a municipality, a territory, or a possession of the United States; a province of Canada; or a state of Mexico or the Federal District of Mexico City
10. Bureau of Indian Affairs or Indian Treaty Card (*tribal ID is not acceptable*)
11. A utility bill (no more than 60 days old) or a property tax or an excise tax bill that is for the current or the immediate prior year and that contains the applicant's name and address
12. Canceled bank check (*copy acceptable if issued as part of a monthly statement*) with signature and preprinted address and dated not more than 60 days earlier
13. Original Massachusetts Department of Correction (DOC) Certificate of Discharge or Release
14. Current or expired non-U.S. driver's license with applicant's signature (*if not in English must be accompanied by an International Driving Permit or another acceptable translation*)
15. Tuition bill or student loan coupons with applicant's current address
16. Original school transcript with name and address

NOTE: It is not the function of RMV employees to advise you about which documents to present. No specific type of document on either list is required or preferred. In following these policies and procedures, RMV employees apply the same eligibility requirements to all applicants equally, without regard to race, sex, creed, national origin, or English-speaking ability.

The issuance of a driver's license, learner's permit, or ID card is not a determination of whether or not a person has legal or illegal immigration status. That is the responsibility of the Bureau of Citizenship and Immigration Services.

Translation Required

If you present a document that is not written or printed in the English language, the Registrar may require the document to be accompanied by an original translation that is certified by a bilingual Massachusetts Notary Public; a bilingual teacher at an accredited Massachusetts college, university, or private language school; or by the local consulate for the document's country of origin. The interpreter's name, address, and telephone number must accompany the translated document.

Rejection of Documents, Photographs, and Applications

The Registrar reserves the right to reject any document which, in his opinion or in the opinion of his designee, is not genuine or, if genuine, has been altered, defaced, or rendered illegible to such an extent that it cannot be relied on as credible evidence that the applicant meets the specific requirements for which the document is presented. The Registrar also reserves the right to reject any document that purports to contain a photograph of the applicant if, in the opinion of the Registrar or his designee, the photograph bears little or no resemblance to the applicant.

The Registrar may reject an application, regardless of the content of the documents presented, if the Registrar or his designee has a good faith reason to believe, based on other documents, statements from the applicant, or information from usually reliable sources, that the applicant does not satisfy the requirement for minimum age or genuine signature or is not truly a Massachusetts resident.

The Registrar further reserves the right to reject an application if the Registrar or his designee has a good faith reason to believe, based on a review of the documents and the demeanor of the applicant or sponsor, that the applicant is not the individual the documents or the sponsor purports to identify or provide support for, as part of an application for a learner's permit, driver's license, or ID card.

NOTE: A "good faith reason" is one that is based on objective facts and observations that are unrelated to the applicant's race, sex, creed, national origin, or English-speaking ability.

Review of Rejected Documents and Applications

If one or more of the documents you present when applying for a driver's license, learner's permit, or ID card is rejected and your application is denied because you do not have other acceptable documents with you, you have several options, as described in the following.

Initial Decision and Your Options

After reviewing your documents, an RMV counter official will make the initial decision. If the counter official rejects your application, he or she

will give you a form indicating the reason(s) for the rejection. This is the Document Verification/Rejection Form. You have 10 days from the time you receive this form from the counter official to file an appeal with the Board of Appeals.

You may choose to correct the problem that caused your application to be rejected, such as obtaining the appropriate documents and returning later with a new application, or you may seek further review by an RMV supervisor. The RMV offers an informal review process in each full-

service Branch so that an application (or accompanying document) that is rejected by a counter official in that Branch may be reviewed by the Manager (or the Manager's designee). You may also appeal to the Board of Appeals by paying the \$50 fee and filing the appropriate form. You must file any appeal within 10 days of the counter official's original decision.

Informal Review

You may present the form for review to the Branch Manager (or the Manager's designated assistant). Ordinarily, your requested review will be conducted immediately after the counter official's denial of your document/application. If, however, the reviewer believes that a further verification attempt may help to establish the authenticity of a disputed document, the reviewer may make a copy of the document, return the original to you, try to obtain such verification, if possible, and make a decision within 2 business days. If the reviewer disagrees with the counter official's decision, you may be asked to return to the counter for further processing, unless the reviewer finds an additional basis for rejection. If the reviewer upholds the rejection, you will be given a copy of the decision that is signed by the reviewer, indicating the reason for the rejection and reminding you of your right to file a formal "appeal" within 10 days of the counter official's original decision.

Appeals

Remember, you must file any appeal within 10 days after you have first received a written copy of the Document Verification/Rejection Form from the counter official. Any additional time required by the informal review does not extend the 10-day period. A formal appeal may be filed only with the Board of Appeals on Liability Policies and Bonds at the following address with a check or money order for \$50.

Board of Appeal on Motor Vehicle Liability, Policies and Bonds
Division of Insurance
1 South Station, 5th floor,
Boston, Ma. 02110

Penalties

Severe penalties are imposed on a person who violates the law in obtaining or possessing a driver's license, learner's permit, or ID card. Following is a brief description of some of those penalties.

Whoever loans or knowingly permits his or her license or learner's permit to operate motor vehicles to be used by any person, or whoever makes false statements in an application for such a license or learner's permit, or whoever knowingly makes any false statements in an application for registration of a motor vehicle, shall be punished by a fine of not less than \$20 nor more than \$200 dollars or by imprisonment for not less than 2 weeks nor more than 2 years or both (MGL c.90, §24).

Whoever falsely makes, steals, alters, forges, or counterfeits or procures or helps another falsely make, steal, alter, forge, or counterfeit a learner's permit, a license to operate motor vehicles, or an ID card or whoever has or uses such a permit, license, or ID card may be punished by a fine of not more than \$500 or imprisonment in a state prison for up to 5 years or in a jail or house of correction for not more than 2 years (M.G.L. c.90, §24B).

Anyone who falsely impersonates the person named in the application for a license or learner's permit, or anyone who procures or helps another to falsely impersonate the person named in the application, or who uses a name other than his or her own to falsely obtain such a license, or whoever possesses or uses a license or permit to operate a motor vehicle that was obtained in such a manner shall be subject to the same penalties (MGL c.90, §24B). Whoever is convicted of a violation of MGL c.90, §24B, shall also have his or her license, or right to operate, suspended for a minimum of 1 year.

Any person who swears or affirms falsely in regard to any matter or thing respecting which an oath or affirmation is required by the Registrar or by MGL c. 90 shall be deemed guilty of perjury (MGL c.90, §28). In addition, falsification of any information provided to obtain, renew, transfer, or upgrade a driver's license or learner's permit may result in a suspension of driving privileges.

B. Mass ID and Mass Liquor ID

For people who do not have Massachusetts driver's licenses, the RMV can issue one of two official identification (ID) cards. The Massachusetts ID and Massachusetts Liquor ID look similar to driver's licenses, but they do not extend any driving privileges. These two ID cards are official forms of identity, signature, and age that are accepted in the Commonwealth.

You can apply for a Massachusetts ID or Liquor ID at any RMV Branch. (Because these IDs are similar to driver's licenses, see *Chapter 1* and *Appendix A* for information on applications, duplicates, renewals, and so on.) When you apply for a Massachusetts ID or Liquor ID, you must provide your Social Security number (SSN) and three forms of identification showing proof of age, Massachusetts residency (unless you are applying for a Liquor ID), and signature. In addition, you must also show a Social Security Card or a valid, current U.S. or current non-U.S. Passport.

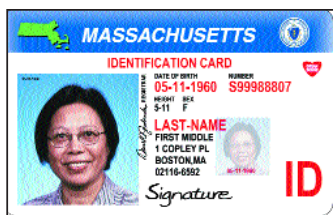
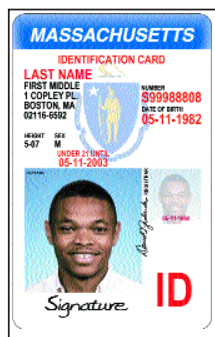
Massachusetts ID

If you do not have a valid driver's license but would like an official ID card, the RMV can issue you a Massachusetts ID. The requirements are that you . . .

- Must be at least 16 years old (*Ages 16-18 see page 10*)
- Do not hold a valid driver's license
- Are a Massachusetts resident
- Have an SSN or an acceptable denial letter

The fee for a Massachusetts ID is \$15.

If you have surrendered your license voluntarily, there is no fee. (*For more information on voluntary license surrender, see the Voluntary Surrender section of Chapter 1.*)



Massachusetts Liquor ID

In-state establishments which serve alcohol may refuse to accept a Massachusetts ID card for proof of age and identity. State law (M.G.L. c.138, '34B) provides alcohol servers with *some* legal protection if it is found that alcohol was served to a minor in reliance on a valid Massachusetts Liquor ID card, (or a **Massachusetts driver's license** or a valid U.S. Passport or a valid non-U.S. Passport only from a country recognized by the U.S., or a U.S. issued Military ID card) **but not** in reliance on a Massachusetts ID card. The Liquor ID card can be issued to Massachusetts residents and out-of-state and out-of-country residents. The requirements are that you:

- Must be at least 21 years old
- Do **not** hold a valid Massachusetts Driver's License
- Have an SSN or acceptable denial letter



The fee for a Liquor ID is \$25 and your application **must** be approved by an RMV Branch Manager.



C. Parties to the 1949 Road Traffic Convention and the 1943 Inter-American Automotive Traffic Convention

A foreign visitor from one of the countries or territories listed here may legally drive on the roads of the Commonwealth on his or her own country's license (limited to a licensed driver who is at least 18 years old and limited to a vehicle of the type covered by the license) for up to 1 year from the date of arrival. The visitor may operate his or her own private passenger vehicle if displaying valid license plates from the visitor's country (and meeting insurance standards set by the Commonwealth if operated longer than 30 days) for up to 1 year from the date of arrival.

Except for those operated in Mexico and Canada, vehicles being operated in Massachusetts that are registered in any of the countries listed in Appendix C (including Germany and Switzerland) must also exhibit the **International Distinguishing Sign** on the outside rear of the vehicle. The sign is a white oval that is obtained from the country of registration and contains one to three black letters identifying the country.

A licensed driver from one of the countries listed here, or a Massachusetts licensed driver operating in one of the listed countries, should consider obtaining and carrying, in addition to his or her valid home country license, an International Driving Permit. Permits are available, for a fee, from various automobile associations. An international Driving Permit does *not* confer any driving privileges but is a translation into ten major languages of the relevant information contained on the driver's home country license.

CAUTION: The Registrar and law enforcement agencies know that individuals or organizations have sold fraudulent documents as "International Driver Licenses" or "International Driving Permits." The Registrar *does not* recognize as valid any document purporting to be an "International Driver License" or any other document that confers driving privileges *unless issued by the government agency that issues such licenses in the driver's country of residence and the driver is validly licensed.* A person operating a motor vehicle with a fraudulent Massachusetts license is subject to arrest pursuant to MGL c. 90, §24B, and MGL c. 90, §10.

The Registrar reserves the right to amend this list at any time based on additional information received from the U.S. Department of State or other sources.

Albania	Bulgaria	Denmark
Algeria	Cambodia	Dominican Republic*+
Argentina*+	Canada	Ecuador*+
Australia	Central African Republic	Egypt
Austria	Chile	El Salvador*
Bahamas, The	Colombia*	Fiji
Bangladesh	Congo	Finland
Barbados	Congo, Democratic Rep.	France (including French Overseas Territories)
Belgium	Costa Rica*	Gambia, The
Belize	Cote D'Ivoire (Ivory Coast)	Georgia
Benin	Cuba	Ghana
Botswana	Cyprus	Greece
Brazil*	Czech Republic	<i>Continued</i>

Grenada	Namibia	Swaziland
Guatemala*+	Netherlands (also applies to	Sweden
Guyana	Netherlands Antilles, and	Syrian Arab Republic
Haiti*+	Aruba)	Taiwan (Republic of China)
Honduras*	New Zealand	Tanzania
Hong Kong	Nicaragua*	Thailand
Hungary	Niger	Togo
Iceland	Norway	Trinidad and Tobago
India	Panama*	Tunisia
Ireland	Papua New Guinea	Turkey
Israel	Paraguay*+	Uganda
Italy	Peru*+	Union of Soviet Socialist
Ivory Coast (See Cote	Philippines	Republics
D'Ivoire)	Poland	(USSR no longer exists.
Jamaica	Portugal (applies to all Por-	See individual republics)
Japan	tuguese territories)	United Kingdom (Great
Jordan	Romania	Britain and Northern Ire-
Korea	Russian Federation	land, applies to Cayman
Kyrgyz Rep.	Rwanda	Islands; Gibraltar; Baliwick,
Laos	St. Lucia	Guernsey; Isle of Man; and
Lebanon	St. Vincent and the Grena-	States of Jersey)
Lesotho	dines	United States of America*+
Luxembourg	San Marino	Uruguay*
Macao	Senegal	Vatican City
Madagascar	Seychelles	Venezuela*
Malawi	Sierra Leone	Vietnam, Rep.
Malaysia	Singapore	Western Samoa
Mali	Slovak Rep.	Zambia
Malta	South Africa	Zimbabwe
Mauritius	Spain (applies to African	
Mexico*	localities and provinces)	
Monaco	Sri Lanka	
Morocco	Suriname	

From "A List of Treaties in Force and Other International Agreements of the United States in Force on January 1, 2002," Published by the Treaty Affairs Staff, Office of the Legal Adviser, U.S. Department of State, Washington, DC). The countries or territories listed are either direct parties to one or both of the cited Conventions or the U.S. State Department considers them bound as beneficiaries by the signature of a former government.

NOTE: Until further notice, licenses from the following former republics of the USSR and countries of the Baltics should be honored:

Armenia	Moldova	Uzbekistan
Azerbaijan	Tajikistan	Latvia
Belarus	Turkmenistan	Lithuania
Kazakstan	Ukraine	Estonia

NOTE: German and Swiss Drivers Granted Privileges. The Registrar has determined that Germany and Switzerland enforce standards of fitness of operators 18 years old or over, substantially as high as those prescribed and enforced by this Commonwealth, and that they grant to properly licensed residents of this Commonwealth the privilege of operating a properly registered motor vehicle of a type that he or she is licensed to operate with his or her Massachusetts license. Therefore, pursuant to MGL c. 90, §10, the Registrar grants to residents of Germany and Switzerland who are 18 years old or over the privileges of operating in this Commonwealth, provided such nonresidents have complied fully with the laws of their home countries and have valid operator's licenses in their possession or in their vehicles in some easily accessible place.

*= Party to 1943 Int.-Am. Conv., at Washington, DC

*+= Party to 1943 Conv. and Party to 1949 Conv. at Geneva

Driving Privileges for NATO Forces:

Massachusetts is legally required to honor the provisions of the **Agreement Between The Parties To The North Atlantic Treaty Regarding the Status of Forces**, (NATO SOFA) entered into by the US on August 23, 1953. The Treaty accords driving privileges to active duty military members of NATO forces on assignment in this country (usually for training purposes) and also to civilian components attached to the NATO forces. Therefore, Massachusetts accepts as valid, without a driving test or fee, the driving permit, license or military driving permit issued by a NATO country to its own military personnel or to the personnel of a civilian component of the military force.

NATO military and civilian component personnel are required to carry and present on demand:

- (a) a personal identity card issued by the sending NATO country showing names, date of birth, rank and number (if any), service, and photograph.
- (b) an individual or collective movement order, in the language of the sending country and in the English and French languages, issued by an agency of the sending country or NATO and certifying to the status of the individual or group as a member or members of a force and to the movement ordered.

Members of a civilian component and dependents shall be so described in their passports. Dependents of military personnel of NATO force personnel on assignment in the U.S., and dependents of civilian employees assigned to those NATO forces, who are from one of the NATO member countries listed below, may legally drive on the roads of the Commonwealth, **on their home country license**, for up to one year from the date of arrival, under the Multilateral Road Traffic Convention of 1949 or applicable reciprocal agreements.

List of NATO Member Countries: Belgium, Canada, Czech Republic, Denmark, France, Germany, Greece, Hungary, Iceland, Italy, Luxembourg, The Netherlands, Norway, Poland, Portugal, Spain, Turkey, the United Kingdom, and the United States.

D. Sample Permit Written Tests

Class D Sample Test



What does a flashing red traffic light mean?

1. This means to slow down but not to come to a complete stop.
2. This means to stop only if other cars are present.
3. This means stop and not to go until the light is green.
4. This means to come to a complete stop, obey the right-of-way laws, and proceed when it is safe.



What must you do if you see or hear an emergency vehicle coming from any direction?

1. It means that you should stop immediately no matter what the conditions.
2. Pull to the center of the road and stop until the vehicle has passed.
3. Pull as close as possible to the right side of the road and stop until the vehicle has passed.
4. You do not need to stop at any point.

When may you use a breakdown lane, shoulder of a road, or a sidewalk for passing?

1. Anytime.
2. Whenever there is heavy traffic.
3. Whenever traffic has come to a stop.
4. Never, unless indicated by a posted sign.

When does the law require you to use your headlights?

1. From one-half hour after sunset until one-half hour before sunrise.
2. From 3 hours after sunset until 3 hours before sunrise.
3. Only if other cars are present.
4. You are not required to use your headlights.

What color are stop signs?

1. Blue
2. White
3. Yellow
4. Red

Class M Sample Test

A motorcyclist may ride between two adjacent lanes of traffic . . .

1. Only when the two lanes are going in the same direction.
2. Under no conditions.
3. When traffic is moving slowly.
4. When there appears to be enough room.



Wearing a protective helmet while riding a motorcycle is .

..

1. Dangerous because the helmet reduces hearing.
2. Not recommended for rainy weather.
3. Required by law.
4. Not required for passengers.

What does a flashing red light mean?

1. Proceed carefully.
2. Stop only if traffic is approaching.
3. Stop, then proceed when it is safe to do so.
4. The traffic signal is not working properly.



You may only operate a motorcycle on high-speed highways when . . .

1. Your motorcycle is equipped with an extra fuel tank.
2. You stay in the right-hand lane.
3. There are at least two motorcycles in a group.
4. You can keep up with the flow of traffic.

What kind of helmet is required by state law for motorcyclists?

1. Any helmet that covers the top of the head.
2. A U.S. Department of Transportation (DOT) approved standard helmet.
3. Any hard helmet with a visor.
4. No helmet is required.

E. RMV Customer Services

In addition to the Branches and License Express locations listed in this appendix, the RMV provides two excellent information resources to help serve you better: its Phone Center and Web site.

Customer Phone Information Center

Recorded RMV information is available 24 hours a day. Information is available on licensing, registrations, titles, suspensions, medical affairs, and RMV locations. Between 9am and 5pm, Monday through Friday, you can speak to an RMV service representative in person to . . .

- Make general inquiries
- Request forms to be mailed to you
- Book a driver's license road test
- Provide change-of-address information or change-of-vehicle-garage location
- Conduct business transactions using a MasterCard, VISA or Discover including. . .
 - Renewing a vehicle registration
 - Paying a moving violation fine, such as a speeding ticket
 - Ordering a driving record
 - Ordering a duplicate license (photo-image type only)
 - Paying license suspension reinstatement fees
 - Ordering a duplicate vehicle registration
 - Requesting a vanity license plate

RMV Phone Information Center

617-351-4500

in the 339/617/781/857 area codes

1-800-858-3926

in 413/508/978 area codes

Monday—Friday

9 a.m.—5 p.m.

RMV Web Site

The RMV maintains its own award winning Website, www.mass.gov/rmv, for customers who have online access. Now, customers can renew their Class D license, renew vehicle registrations, pay moving violation fines, order duplicate vehicle registrations, order specialty plates, check to see if a vanity plate is available, change their address, order a duplicate driver's license or Mass ID, download forms and check wait times for any Registry branch. Online transactions can be paid for using a MasterCard, Visa, or Discover Card. General information is also available on most Registry topics.

1-866-MASSRMV

Customers wishing to renew their registration, book a Class D road test, check branch wait times or have forms faxed to them using our fax on demand service can do so by calling our automated number 1-866-MASSRMV.

F. RMV Branch/License Express Locations

RMV Branches

Unless otherwise noted, all RMV Branches are full-service facilities that allow you to transact most RMV business and receive information.

Hours and locations are subject to change without notice.

Note: Commercial Driver's License (CDL) written tests are scheduled from 8:30 am - 3 pm, Monday to Friday only.

Master Card, VISA and Discover are accepted for license related transactions.

Beverly

176-186 Cabot Street
Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

Boston

630 Washington Street
Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

Brockton

490 Forest Avenue
Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

Chicopee

1011 Chicopee Street
Mon-Fri 8:30 am-5 pm

Easthampton

116 Pleasant Street
Mon-Fri 8:30 am-5 pm

Fall River

Durfee Union Mill, Building 7
203 Plymouth Avenue
Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

Falmouth

80 Davis Straits
Mon-Fri 8:30 am-5 pm

Framingham

10 Pearl Street
Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

Greenfield

91 Main Street
Mon-Fri 8:45am - 5pm
No Permit Test at this Site

Hadley

195 Russell Street
Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

Haverhill

4 Summer Street
Mon-Fri 8am - 4pm

Lawrence

73 Winthrop Street, Plaza 114
Mon-Fri 8:30 am - 5 pm, Thurs till 7 pm

Leominster

80 Erdman Way
Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

Lowell

450 Chelmsford Street
Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

Melrose

40 Washington Street
Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

Milford

14 Beach Street
Mon-Fri 8:30 am-5pm

Nantucket

16 Broad Street
Mon-Fri 8 am-12 noon, 1 pm-4 pm

New Bedford

950 Kings Highway (Kings Plaza)
Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

North Adams

420 Curran Highway
Mon-Fri 8:30 am-5 pm

North Attleboro

555 Kelly Boulevard
Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

Oak Bluffs

(Martha's Vineyard)
One Douglas Lane
Mon-Fri 8 am-12 noon, 1 pm-4 pm

Orleans

237 Rock Harbor Road
Limited Service

Tue *only*, 8:30 am-3:30 pm

Pittsfield

333 East Street
Mon-Fri 8:30 am-5 pm

Plymouth

40 Industrial Park Road
Mon-Fri 8:30 am-5 pm

Quincy

76 Ross Way
Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

Reading

275 Salem Street

Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

Roslindale (Boston)

8 Cummins Highway

Limited Service

Mon-Fri 8:30 am-5 pm

Southbridge

926 West Main Street

Mon-Fri 8:30 am-5 pm

South Yarmouth

1082 Main Street

Mon-Fri 8:30 am-5 pm

Springfield

165 Liberty Street

Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

Taunton

One Washington Street

Mon-Fri 8:30 am-5 pm

Watertown

550 Arsenal Street (Watertown Mall)

Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

Worcester

611 Main Street

Mon-Fri 8:30 am-5 pm, Thurs till 7 pm

RACE (Registry Agents Cooperative

Express) units open 9am - 5pm

at these locations: Reading, Springfield,
Taunton, Worcester.

License Express Locations

Unless otherwise noted, all RMV License Express counters are open Monday through Friday from 10 a.m. to 7 p.m. The only services available at License Express locations are driver's license renewals and amendments and duplicate photo-imaged licenses.

License Express facilities **do not accept cash**. They only accept MasterCard, VISA or Discover cards, checks, or money orders for payment.

Cambridgeside Galleria (Cambridge)

100 Cambridgeside Place

Mon - Fri, 10:00 a.m. - 7:00 p.m.

Eastfield Mall (Springfield)

1655 Boston Road

Mon - Fri, 10:00 a.m. - 6:00 p.m.

James Street Plaza Mall (Worcester)

65 James St. Plaza

Mon - Fri, 9:00 a.m. - 5:00 p.m.

RMV Phone Center

617-351-4500

in the 339/617/781/857 area
codes

1-800-858-3926

from all other MA area codes
Monday—Friday
9 a.m.—5 p.m.

The hearing impaired can
call toll free at
1-877-RMV-TTDD
(1-877-768-8833)

RMV Mailing Address

Registry of Motor Vehicles
P.O. Box 199100
Boston, MA 02119-9100

For directions, visit the RMV's
Web site:

www.mass.gov/rmv